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National Geospatial-Intelligence Agency

INSTRUCTION

NUMBER 5100.1

13 July 2016

Administrative Update 29; 28 April 2023

SPE

SUBJECT: NGA Acquisition Regulation Implementation (NARI)

References: See Enclosure 1

1. PURPOSE. This Instruction establishes policy, assigns responsibilities, and provides procedures to supplement and/or implement guidance from the Federal Acquisition Regulation (FAR) (Reference (a)) and the Defense Federal Acquisition Regulation Supplement (DFARS) (Reference (b)).
2. APPLICABILITY. This Instruction applies to all NGA civilian employees, military service members, other Government agency personnel assigned to NGA, and contractors, hereinafter referred to as ~~personnel~~ *personnel*. This Instruction applies to all contracts issued under Department of Defense (DoD) authority.
3. POLICY. It is NGA policy to conduct acquisition planning, procurements, contract administration, and contract closeout, complying with the FAR, DFARS, NARI and related NGA policies.
4. RESPONSIBILITIES. See Enclosure 2.
5. EFFECTIVE DATE. This Instruction is effective on the date of signature.

Nicole Pierce
Senior Procurement Executive

Enclosures

1. References
2. Responsibilities
3. Procedures

Glossary

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CHANGE LOG

Change Type*	Change Date	Revised By	Page(s) Affected	Change Description
ADM	08/03/2016	OPR	2, 5, 35, 36, 39, 141	5 updates made.
ADM	09/07/2016	OPR	43, 49, 66, 67, 92, 125, 128, 131	5 updates made.
ADM	10/04/2016	OPR	13, 14, 63, 76, 85, 91, 109, 110	6 updates made.
ADM	11/02/2016	OPR	49, 82, 83, 99, 100, 110, 122, 123, 139, 140	5 updates made.
ADM	12/02/2016	OPR	19, 21, 33, 45, 103, 144	6 updates made.
ADM	01/03/2017	OPR	44, 45, 63, 92	3 updates made.
ADM	02/03/2017	OPR	38, 39, 44, 83, 88, 97, 69 thru 72, 101 thru 104, 109, 110, 123, 124	6 updates made.
ADM	03/03/2017	OPR	13, 14, 66, 90, 91, 144, All	6 updates made.
ADM	04/06/2017	OPR	16 thru 18, 40, 41, 56, 59, 71, 77, 86, 90	7 updates made.
ADM	06/06/2017	OPR	5, 18, 19, 31, 33, 44, 59, 91, 106, 134, 135	6 updates made.
SUB	06/06/2017	OPR	39, 40	1 update made.
ADM	08/04/2017	OPR	18, 19, 29, 38, 39, 51, 52, 87, 95	5 updates made.
SUB	10/05/2017	OPR	1, 5, 12, 15, 16, 34, 35, 42, 48, 64, 71, 89, 104, 140	2 updates made.
ADM	10/05/2017	OPR	41, 79, 80, 106, 119, 120	3 updates made.
SUB	12/05/2017	OPR	28, 43, 69, 94	1 update made.
ADM	12/05/2017	OPR	18 thru 20, 29, 71, 72, 85, 86	5 updates made.
ADM	02/08/2018	OPR	4, 5, 8, 31, 72, 91, 104, 121	8 updates made.
SUB	04/05/2018	OPR	21	1 update made.
ADM	04/05/2018	OPR	5, 11, 21, 38, 61, 62, 69, 70, 83, 103, 115	5 updates made.
ADM	06/06/2018	OPR	4, 14, 15, 21, 22, 28, 30, 64, 69	6 updates made.
ADM	08/08/2018	DXOI	1	1 update made.
SUB	08/24/2018	OPR	17, 18	1 update made.
ADM	08/24/2018	OPR	88, 90	2 updates made.
ADM	11/28/2018	OPR	18, 41, 42	2 updates made.
SUB	11/28/2018	OPR	69, 113, 128, 129	2 updates made.
ADM	02/14/2019	OPR	1, 4, 19, 20, 32	4 updates made.
ADM	03/21/2019	OPR	18 thru 22, 35, 36, 136	3 updates made.
ADM	05/16/2019	OPR	57, 80	2 updates made.
SUB	07/15/2019	OPR	53	1 update made
ADM	07/15/2019	OPR	62	1 update made
SUB	09/06/2019	OPR	5, 13, 20, 21	5 updates made.

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ADM	09/06/2019	OPR	53, 57	2 updates made
ADM	12/18/2019	OPR	3, 31, 61, 76, 102, 115, 116	3 updates made
SUB	12/18/2019	OPR	13, 14, 28, 34	1 update made
ADM	11/09/2021	OPR	14, 20, 32, 37, 38, 41, 42, 44, 51, 53, 63, 120	11 updates made
ADM	03/16/2023	OPR	1, 9 thru 20, 23 thru 26, 28, 31 thru 36, 38, 39, 41, 44, 46, 51, 59, 62, 65, 68, 74, 80 thru 84, 89, 90, 95, 99, 102, 129, 135, 136, Forms 134	43 updates made
CONF	03/16/2023	OPR	33	1 update made
SUB	03/16/2023	OPR	36, 69, 103, 131	5 updates made
ADM	04/28/2023	DXCI	1	Italicized the word "personnel" to match standard format
ADM	04/28/2023	DXCI	1	Added "Glossary" to the Enclosures list
ADM	04/28/2023	DXCI	2	Updated table of contents
ADM	04/28/2023	DXCI	5, 6	Updated references
ADM	04/28/2023	DXCI	7	Updated referencing

Key:

Type of Change*

Abbreviation

Reissuance

REI

Revision (three types)

- Administrative (ADM)
- Conforming
- Substantive

ADM
CONF
SUB
RESC

Rescission

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ENCLOSURE 1

REFERENCES

- a. Federal Acquisition Regulation (48 CFR, Chapter 1)
- b. Defense Federal Acquisition Regulation Supplement (48 CFR, Chapter 2)
- c. DoD 7000.14-R, "Department of Defense Financial Management Regulation," current edition
- d. DoD Directive (DoDD) 4400.01E, "Defense Production Act Programs," 12 October 2001, Certified Current as of 14 September 2007, Incorporating Change 1, 31 August 2018
- e. DoD Instruction (DoDI) 5000.02, "Operation of the Adaptive Acquisition Framework", 23 January 2020, Change 1, 08 June 2022
- f. DoD Manual (DoDM) 4400.1-M, "Department of Defense Priorities and Allocations Manual," 21 February 2002, Incorporating Change 1, 31 August 2018
- g. ~~DoDM 5220.22-M, "National Industrial Security Program Operating Manual," 28 February 2006, Incorporating Change 2, 18 May 2016, NISPOM Rule, 21 December 2020~~
- h. NGA Instruction (NGAI) 5200.4, "Operations Security," 11 August 2016, Administrative Update, 10 February 2020
- i. NGA Directive (NGAD) 3021, "Emergency Management (EM) Program," 17 March 2015, Administrative Update, 28 October 2015
- j. NGAI 5205.6, "Lifecycle Protection of Geospatial Information," 16 October 2018
- k. NGAD 4165, "Installation Management," 13 May 2015, Administrative Update, 05 June 2015
- l. NGAD 5505, "Suspension and Debarment of Contractors," 6 April 2015, Administrative Update, 11 May 2015
- m. NGA Manual (NGAM) 4160.1, "Accountability and Management of Property, Plant, Equipment, and Other Accountable Property," 16 May 2017
- n. NGAM 4160.2, "Acquisition, Management, and Use of Government Motor Vehicles (GMVs)," 12 June 2015, Administrative Update, 23 November 2015
- o. NGAM 4165.5, "Space Management," 13 August 2015, Administrative Update, 23 November 2015
- p. NGAI 5030.1, "Award Fee Evaluation," 08 April 2022
- q. NGAI 5020.1, "Acquisition Career Management," 31 May 2018-3
- r. ~~NGAI 5200.1, "Information Security," 26 October 2020, Administrative Update 1, 19 August 2021~~
- s. NGAI 5205.5 Volume 1, "Sensitive Compartmented Information Security Administration: Information Security and Cybersecurity," 07 November 2018, Administrative Update 1, 30 June 2021
- t. ~~NI 5500.11, "Maintaining the Highest Standards Ethical Conduct Program", 04 October 2008, Administrative Update 2, 9 November 2015~~ NGAI 5500.11, "Standards of Conduct," 25 January 2023
- u. NGAI 5720.1, "Clearance for Public Release," 12 May 2015
- v. NGAI 5750.1, "Freedom of Information Act / Privacy Act Requests / Mandatory Declassification Review Program," 06 July 2018, Administrative Update 1, 02 December 2021
- w. NGAI 7050.5, "Coordination of Remedies for Fraud and Corruption Related to Procurement Activities," 05 August 2015

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- x. NGAI 7210.2, "Administrative Control of Appropriated Funds and Anti-deficiency Act (ADA) Violations," 01 October 2014, Administrative Update, 11 April 2016
- y. NGAI 8410.2, "Software Asset Management," 02 June 2017, Administrative Update 4, 12 July 2019
- z. Reserved
- aa. NGAI 8400.4, "Implementation of Electronic and Information Technology Accessibility/Section 508 Program," 05 July 2017, Administrative Update 1, 24 January 2020
- ab. ~~NGA Memorandum for Record, "Delegation of Authorities," 12 November 2015~~
- ac. Intelligence Community Contracting Guide (ICCG), Version 1.0, 23 June 2017
- ad. NGAI 2060.1, "Export Control Program," ~~1 April 2022~~ 20 April 2016
- ae. NGAI 5115.1, "Accommodation Procurements," 05 July 2016
- af. NGAI 5210.8, "Physical Security Program," 17 October 2019
- ag. NGAI 7410.1, "Inspector General Operations," 23 May 2021

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ENCLOSURE 2

RESPONSIBILITIES

1. Director, NGA (D/NGA). Performs functions under the FAR or DFARS reserved to a DoD Head of Agency or Agency Head, except for such actions that by terms of statute, or any delegation, must be exercised within the Office of the Secretary of Defense in accordance with (IAW) Reference (b).

2. Deputy Director, NGA (DD/NGA).

a. Serves as Head of Agency for Acquisition (HoA) ~~IAW Reference (ab).~~

b. Performs functions as required ~~in paragraph 1 and 5 IAW Reference (ab).~~

3. Director, Office of Contract Services (D/OCS). Serves as the Senior Procurement Executive (SPE) and/or the Head of Contracting Activity (HCA) IAW References (a), (b), ~~and (ab).~~

a. In the absence of the SPE, the Deputy Director, OCS (DD/OCS) is delegated responsibilities to serve as the Acting SPE.

b. The Director, Office of Contract Services (D/OCS) re-delegated HCA responsibilities to the OCS Group Chief, Information Technology and Mission Support (IT & MS) and the OCS Group Chief, Acquisition Management and Corporate Investment for all contract actions arising within their respective Groups. In the absence of both OCS Group Chiefs, the DD/OCS is re-delegated HCA authority for all contract actions.

c. Enters into and administers contracts either directly or through other federal agencies.

4. Component Acquisition Executive (CAE). Responsible for program management matters IAW References (e) ~~and (ab).~~

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ENCLOSURE 3

PROCEDURES

PART 5X01 FEDERAL ACQUISITION REGULATIONS SYSTEM

Subpart 5X01.1 - Purpose, Authority, Issuance

5X201.170 Peer reviews

(b) Component peer reviews. For NGA procedures, see 5X01.601-92 -- Independent Contracting Officer Review (ICOR) Process.

Subpart 5X01.3 - Agency Acquisition Regulations

5X01.301 Policy

The NGA Acquisition Regulation Implementation (NARI) implements and supplements the FAR, DFARS, and other DoD guidance. In addition, the NARI provides references to advisory guidance contained in the Intelligence Community Contracting Guidance (ICCG) (Enclosure 1, reference ac) available on the OCS website under Policy Documents or on the ODNI Acquisition, Technology and Facilities Homepage under Procurement Resources. The ICCG is issued as guidance only and does not take precedence over FAR, DFARS, or NARI policies and procedures.

The NGA Senior Procurement Executive (SPE), provides policies, procedures, and tools to support the contracting processes. The Office of Contract Services, Policy and Acquisition Resources Division (OCSP) is responsible for coordinating and publishing changes to the NARI by issuance of a NARI Change Notice (NCN) or administrative changes summarized in periodic updates to the NARI approved by the NGA Senior Procurement Executive (SPE).

5X01.303 Publication and codification

To the greatest extent possible, all text in the NARI is numbered to implement the FAR or DFARS. The coverage uses the same numbers as the FAR or DFARS counterpart preceded by the prefix "5X." Subsection numbering of -90 or S-90 and greater is reserved for information pertaining to specific NGA guidance.

5X01.304-90 Agency control and compliance procedures

A. NGA personnel must use the NGA automated procurement system, PRISM, to prepare, manage, and administer all pre and post award contract-related documents. All contractual actions, except purchase card transactions below the micro-purchase threshold, must be entered into PRISM.

B. Requisitions routed and approved in GEO-F are considered "signed" and certified and no physical signature is necessary. Requisitions and supporting attachments from GEO-F should be uploaded to PRISM*. Contractual documents that must go to an external party, such as a contractor, require physical signatures. Requesting organizations must submit requisitions or military interdepartmental purchase requests (MIPRs) and associated documents through GEO-F. OCS will accept documents created external to GEO-F only by exception upon approval by the SPE. (*This function will be automated in the near future.)

5X01.304-91 Requesting changes to PRISM templates/clauses and provisions

A. When a Contracting Officer determines the requirement to use certain terminology on a recurring basis, the terminology is sent to Office of Contract Services, Policy and Acquisition Resources Division (OCSP) for review. OCSP coordinates the terminology with the Office of General Counsel (OGC), creates a NARI Change Notice (NCN) to incorporate into or change the NARI, gains approval from the NGA Senior Procurement Executive (SPE), and also incorporates the terminology as a template/clause or provision into PRISM.

B. After approval by the NGA SPE, OCSP approves modifications of PRISM standard language templates on a one-time basis, prior to inclusion in the solicitation or contract document. Language intended for one-time use is identified in the contract file. This provision applies only to PRISM language or templates.

5X201.304 Agency control and compliance procedures.

5X201.304 (4)-90 NGA Plan for Control of Clauses

A. In accordance with DFARS 201.304(4), the NGA Office of Contract Services, Policy and Acquisition Resources Division (NGA/OCSP) maintains an OUSD (A&S) Director of Defense Pricing and Contracting (DPC) approved plan for controlling the use of clauses other than those prescribed by FAR, DFARS, or NARI.

B. Review and Approval of Local Clauses. Clauses developed as a result of negotiations, or which fulfill a specific and unique requirement of the acquisition that do not constitute a deviation from FAR/DFARS/NARI, and do not require approval from DPC, are submitted before incorporation into the contract to NGA/OCSP for review by OGC and recommendation for approval by the NGA Senior Procurement Executive.

C. Proposed new repetitive use or “substantially the same as” local clauses shall be reviewed by NGA/OCSP prior to use. Review will determine essentiality and ensure that the new circumstances for use of the clauses are appropriate. These are clauses which are not deviations and do not require DPC approval. NGA/OCSP will seek advice from OGC for proposed clauses, and approval by the NGA Senior Procurement Executive.

D. Clause Numbering.

(1) All clauses included in agency supplements must adhere to the numbering and identification requirements of FAR Subpart 52.1, as supplemented by DFARS 252.1.

(2) One-time clauses do not have to be numbered, but must be identified in accordance with FAR 52.103 by title, date, and name of the office that developed them.

(3) All clauses included in solicitations, whether included in a supplement or not, must be identified as required by FAR 52.103.

Subpart 5X01.4 - Deviations from the FAR

5X01.403-90 Individual deviations

(1) The NGA SPE is the designated approval authority for individual or class deviations other than those stated in DFARS 201.402(1). All requests for deviations must be submitted in memorandum form for SPE approval.

Requiring organizations prepare and Contracting Officers process requests for individual deviations IAW DFARS 201.402. OGC reviews deviations and accompanying transmittal letters or e-mail submissions prior to submittal to the SPE. For deviations of categories listed in DFARS 201.402(1), prepare a transmittal letter for the signature of the SPE or e-mail the submission to the SPE.

5X01.404-90 Class deviations

Requiring organizations prepare, and Contracting Officers process, requests for class deviations IAW DFARS 201.402(2), including transmittal letters for SPE signature or by e-mailing the submissions to the SPE. OGC reviews deviations and accompanying transmittal letters or e-mail submissions prior to submittal to the SPE.

5X01.404-91 Deviations from the NARI

The requesting organizations prepare requests for individual or class deviations from the NARI. Requests are submitted for Contracting Officer review, if applicable, and SPE review and signature. OGC review is required prior to submittal to SPE.

Subpart 5X01.6 - Career Development, Contracting Authority, and Responsibilities

5X01.601 General

a. As delegated by D/NGA, D/OCS is delegated the authority to act as the Senior Procurement Executive (SPE) and/or Head of the Contracting Activity (HCA) for matters pertaining to contracting under the FAR and DFARS. D/OCS also has full authority to exercise all prescribed responsibilities now or hereafter vested in that office. In the absence of the D/OCS the Deputy Director, OCS (DD/OCS) is delegated responsibilities to serve as the Acting SPE for matters pertaining to acquisition under the FAR and DFARS. The SPE may delegate any delegable authorities to subordinate activities.

b. D/OCS re-delegated HCA responsibilities to the OCS Group Chief, Information Technology and Mission Support (IT & MS) and the OCS Group Chief, Acquisition Management and Corporate Investment for all contract actions arising within their respective Groups

c. The DD/OCS is re-delegated HCA authority in the absence of both OCS Group Chiefs.

5X01.601-90 Legal review

A. Contracting personnel may seek legal advice and assistance during any phase of the acquisition process. OCS reviews should be completed prior to the final legal review. The Individual Contracting Officer Review (ICOR) column on the Contract Checklists must be completed by the contracting officer prior to sending to OGC for final legal review.

B. Contracting personnel shall obtain specific legal review prior to the issuance of:

(1) Debriefs. Prior to any debriefings to offerors following all source selections, consult with OGC to determine review requirements. For any Task Order award over \$25M (or \$10M on any non-DoD Government Wide Acquisition Contract), legal review is required.

(2) All new contract/order actions of \$5M or more (total amount including all options and anticipated orders) and modifications (other than modifications covered in paragraphs 3, 4, or 5 below) to existing contracts of \$5M or more.

(3) For multiple award Indefinite-Delivery contracts established IAW FAR Subpart 16.5, review of the first order, regardless of dollar value, thereafter:

- a) orders of \$10M or more from Civilian Agency Government-Wide Acquisition Contracts (GWACs)
- b) orders of \$10M or more from Federal Supply Schedules (FSS)
- c) orders of \$25M or more from DoD/NGA Indefinite-Delivery contracts established IAW FAR Subpart 16.5

(4) All new contract actions for commercial items (total amount including all options and anticipated orders), and modifications (other than modifications covered in paragraphs 3, 4, or 5 below) to existing contracts issued using FAR Part 12 procedures of \$7M or more, except for:

- a) \$7M or more for commercial contracts using FAR Part 12 procedures in conjunction with FAR Subpart 13.5.
- b) \$10M or more for commercial contracts using FAR Part 12 procedures in conjunction with FAR Part 15.

(5) All contract actions, including modifications to existing contracts of \$2M or more (total amount including all options and anticipated orders) that require a justification & approval (see FAR 6.304 or 13.501), a limited source justification (see FAR 8.405-6), or a justification for exception to fair opportunity (see FAR 16.505). Legal review must be completed prior to approval of these actions by the authority cited at NARI 5X06.304.

(6) All contract actions regardless of dollar value resulting from, or connected with, litigation and final contracting officer decisions, undefinitized contract actions (UCAs), undefinitized change orders (UCOs), equitable adjustments, settlements, novation and change-of-name agreements, intellectual property rights determinations, procurement integrity violations, mistakes in bids or proposals, late bid or proposal determinations, terminations, protests, appeals, and any deviation from acquisition regulations.

(7) Legal review is not required for the following: unilateral contract actions that merely increase the amount of funds obligated on incrementally funded contracts and orders, unilateral option exercises, or in-scope modifications where those modifications fit within the general work descriptions of the PWS/SOO/SOW and do not increase the contract value greater than 25%.

C. IAW NARI 5X04.803(a)(24), the contracting officer must document the file with the results of legal reviews conducted IAW paragraph A or B above, including explanation why a legal review was not accepted. Before a contracting officer may disregard an

opinion rendered by legal counsel that a contract action will not comply with law and/or regulation, the contracting officer must obtain approval from the HCA.

5X01.601-91 Reserved

5X01.601-92 Independent Contracting Officer Review (ICOR) Process

This subpart sets forth the policy and procedures governing the responsibilities and certification requirements for the ICOR process. The ICOR must be performed by a Contracting Officer independent from the cognizant CO for the contract action. The ICOR will normally be performed by the OCS Division Chief or by a Contracting Officer within that same Division where the contract action to be reviewed is within their warrant authority. In the event that the ICOR cannot be performed within the same Division due to workload demands or the non-availability of qualified personnel, the cognizant OCS Division Chief and cognizant Contracting Officer may coordinate with another OCS Division to complete the ICOR.

This process applies to all contract actions executed within OCS.

A. Responsibilities.

1. ICOR reviews are required for:

- (a) Solicitations. All solicitations with a dollar value of \$700,000 or greater.
- (b) Initial contract awards. All contract awards with a dollar value of \$700,000 or greater. If the contract includes options, the dollar value is inclusive of values for the applicable option periods.
- (c) Orders placed against non-DoD contracts. All orders (i.e., GSA Supply Schedules, NASA SEWP, etc.) with a dollar value of \$700,000 or greater.
- (d) Modifications. All modifications that result in a total contract dollar value of \$700,000, or greater, inclusive of values for the applicable option periods. If the modification is being partially funded (i.e., the value of the modification is greater than the amount being obligated), the applicable dollar value is the increased value of the contract and not solely the value of the funding being obligated.
- (e) Undefined contract actions.
- (f) Task or Delivery Orders. All fixed price and cost reimbursement task or delivery orders with a dollar value of \$700,000 or greater.

2. ICOR reviews are not required for:

- (a) Modifications to add incremental funding (i.e., the addition of funds up to the approved contract value) or to de-obligate excess funding.
- (b) Options exercised as provided for in basic contracts.

B. ICOR certification. OCS file documentation checklists have been updated to include an ICOR certification statement for both solicitations and contract awards. The cognizant CO and ICOR shall place a "checkmark" in each review line or mark as "N/A." The cognizant CO and ICOR shall sign the certification statement contained at the end of the contract file index (see 5X04.803-90 Contract file indexes) documenting that the review has been completed. Contract file indexes are found on the NGANet OCS website and shall be retained with the official contract file.

5X01.601-93 Reserved

5X01.601-94 Acquisition management reviews (AMRs)

OCSP will conduct AMRs of NGA contracting activities approximately every two years or at more frequent intervals at SPE request. Reviews of specific processes or procurement actions may take place at any time. OCSP provides results to the SPE as directed.

Subpart 5X201.6 - Career Development, Contracting Authority, and Responsibilities

5X201.602-2 Responsibilities

5X201.602-2-90 Contracting Officer's Representative (COR)

A. Nomination, Training and Appointment. COR nomination, training requirements and appointment procedures are contained on the OCS website page under "Programs." Contracting Officers must appoint individuals performing COR duties. All appointed individuals performing COR duties must be included on the NGA consolidated COR list maintained by OCSP.

B. Termination.

(1) Contracting Officers may terminate an appointment for non-compliance with the requirements for yearly submission of OGE FORM 450, annual ethics training, DAU's Combating Trafficking in Persons training, or the three-year COR training requirement.

(2) The Contracting Officer may unilaterally terminate a COR's appointment for cause under a specific contract at any time. The Contracting Officer coordinates with the COR's organization to resolve issues before unilaterally terminating a COR's appointment. Documentation of rationale and efforts to resolve the situation are filed with the termination.

(3) Program managers or organizational supervisors may request termination of a COR's appointment under a specific contract at any time by submitting the request to the Contracting Officer. The Contracting Officer makes the final decision to terminate the COR. If the Contracting Officer decides to terminate the COR, they shall coordinate with the OCSP COR Program who will annotate the date on the NGA consolidated COR list.

(4) When a COR leaves NGA, the program manager or organizational supervisor provides written notification to the Contracting Officer and the OCSP COR Program who will annotate the date on the NGA consolidated COR list.

(5) Replacement or termination of a COR appointment is accomplished by contract modification. The modification identifies the departing COR and the newly-appointed COR. The Contracting Officer must notify OCSP of COR replacements by providing a copy of the COR appointment letter. If the COR is terminated, a copy of the modification is provided to OCSP. OCSP revises the COR list accordingly.

(6) A COR appointment is terminated automatically for a specific contract upon completion of the contract or contract termination. The Contracting Officer must notify OCSP upon contract completion or termination.

C. Alternate CORs may be assigned for any contract action; however, they must meet all COR requirements.

5X201.602-2-91 COR local clause, appointment memorandum and delegated duties statement.

A. As required by DFARS PGI 201.602-2, a COR is required on all contracts and orders other than those that are firm-fixed price, for service contracts and orders regardless of contract type, and for firm-fixed-price contracts and orders as deemed appropriate by the CO. For all procurements contemplating appointment of a COR, the CO shall include the PRISM template 5X252.201.602-2-91 NGA: Contracting Officer's Representative (COR) (JAN 2004), in all required and appropriate contracts and solicitations.

B. When a COR is appointed, the CO must include a copy of the executed COR appointment memorandum, located on the NGANet OCS website (Tab C), in the Division's Electronic Contract File (ECF) in accordance with NGA Standard Operating Procedure (SOP) for OCS ECF Implementation, dated 23 Apr 2020, which can be found on the OCS Website.

C. A copy of the COR appointment/delegation memorandum must be provided to the OCSP COR/COTR Program Support Office and the contractor IAW DFARS clause 252.201-7000--Contracting Officer's Representative.

5X201.602-2-92 Reserved

5X01.602-3-90 Procedures for ratification of unauthorized commitments

a. The OCS Division Chiefs may ratify actions for unauthorized commitments up to the limit of their warrants.

b. The review process for ratification of an unauthorized commitment is as follows:

1. The individual responsible for the unauthorized commitment prepares a statement of all pertinent facts of the transaction, attaching all relevant documents. The statement indicates if the goods or services have been accepted or explain how the Government derived benefit from the unauthorized commitment.

2. The individual responsible for the unauthorized commitment forwards the statement to their supervisor who adds to the file:

(a) A statement regarding disciplinary action taken or why none was considered necessary.

(b) Action taken to prevent recurrence of the unauthorized action.

(c) A recommendation stating whether the unauthorized action should be ratified (only if goods received or benefit derived).

(d) A properly funded purchase request if ratification is recommended. The funding document must contain a statement that funds were available at the time the unauthorized commitment was made.

3. The supervisor forwards the file for ratification through their supervisory chain to their Directorate Head or Agency Element Lead for approval. This approval authority may not be delegated.

4. The Directorate Head or Agency Element Lead either approves or disapproves the ratification action and returns the package to the supervisor. The supervisor sends the package to the relevant contracting office for assignment to a Contracting Officer.

5. The Contracting Officer:

(a) Reviews and determines the adequacy of all facts, records, and documents furnished.

(b) Prepares a determination using the template on the OCS webpage, stating whether or not the action should be ratified. Particular attention should be placed on whether the action might more appropriately be processed as a constructive change.

(c) Forwards the file, with legal concurrence, to the OCS Division Chief who is the ratifying official.

(d) Submits all information on ratifications in the unauthorized commitment log located on the OCSP page of the OCS Internal website. Contact the OCSP A&G Team email address for further assistance completing the log.

6. The ratifying official either approves the ratification or directs alternative action and returns the file to the contracting office for action.

c. An unauthorized commitment differs from an Antideficiency Act violation. An Antideficiency Act (ADA) violation occurs when appropriated funds are obligated or expended in excess of their availability, authorized in advance of fund availability, or when the purpose of the appropriation is violated. NGA 7210.2 (Enclosure 1, reference x) provides guidance for the processing of potential ADA violations.

Subpart 5X01.603 - Selection, Appointment and Termination of Appointment

5X01.603-90 NGA Contracting Officer Warrant Program

The SPE is the approval authority for appointing, suspending, and terminating warrants. The OCS Standard Operating Procedure (SOP) titled "NGA Contracting Officer Warrant Program" found on the OCS website provides detailed procedures, roles and responsibilities for granting and managing warrants.

5X01.603-1 General

(a) The NGA Contracting Officer (CO) Warrant Program requires contracting personnel to complete mandatory Defense Acquisition Workforce Implementation Act (DAWIA) training and demonstrate overall contracting knowledge and business acumen to qualify for a standard CO warrant (Enclosure 1, reference q).

(b) All Warranted COs will have authority to obligate Non-Appropriated Funds Instrumentalities (NAFI).

(c) All Warranted COs will have authority to obligate funds for Grants and Agreements, including Agreements using Other Transaction Authority (OTA). Individuals signing and/or administering Grants and Agreements (including OTA) are encouraged to complete the GRT 201 Grants and Agreements Management course, and CLC 035, Administration of Other Transactions course.

(d) Contract Specialists may self-nominate for a CO Warrant by preparing the nomination form and submitting to their Office of Contract Services (OCS) Division Chief for endorsement. If the OCS Division Chief endorses the nomination, it will be processed in accordance with the NGA Contracting Officer Warrant Program SOP. The NGA Contracting Officer Warrant Nomination Form is referenced in NARI Part 5X53 - Forms and is located on the OCS website.

5X01.603-2 Reserved

5X01.603-3 Appointment

(a) **Exemption.** The following transactions do not require delegation of a Contracting Officer Certificate of Appointment (SF 1402):

- (1) Purchase Card transactions below the micro-purchase threshold (see NGA Supplement to DoD Government Charge Card Guidebook, located at the OCS Homepage) are authorized via Appointment Memorandums to the Purchase Card Holder and Approving Official.

(b) **Contracting Officer's Authority.**

- (1) Contracting Officers may sign contract awards (including orders issued against indefinite-delivery contracts (FAR 16.5)), which include the total value of the base period plus all option periods, up to the level of their warrant.
- (2) Contracting Officers may sign contract modifications up to the level of their warrant regardless of the total value of the contract. Price adjustment amounts shall consider both increases and decreases such that the value of the modification is calculated by adding together the absolute value of the increases and decreases to both contract value and incremental funding. For additional information, refer to the Contracting Officer's Warrant Desk Guide posted on the OCS website.

(c) **Warrant Dollar Threshold Levels.**

- (1) The Division Chiefs are responsible for determining the dollar thresholds identified on the nomination form.
- (2) The final warrant level will be determined by the Warrant Board.

DD/OCS, Group Chiefs, Division Chiefs, and Branch Chiefs (as needed for mission requirements) are required to obtain an unlimited warrant as a condition of their position. Exceptions are made for positions where the work performed does not require a warrant, such as personnel working in positions that are predominantly procurement analyst functions (i.e., Policy, GPC Program, COR Program, etc). Although not required for these positions, personnel performing in these roles are not prohibited from obtaining a warrant.

- (3)

Warrant Levels
\$0 - \$SAT
\$0 - \$10M
\$0 - \$30M
Unlimited

5X01.603-4-90 Termination or Suspension of Appointments

(a) Appointments shall remain in effect as long as the appointee is assigned to the position stated on their SF 1402 (Certificate of Appointment) and is assigned to a position within OCS that requires CO appointment. Warrants may be terminated or suspended by the SPE at any time for reasons such as, but not limited to, the following:

- (1) Appointee fails to comply with applicable statutes, Executive Orders, OMB Circulars, FAR, DFARS, NARI, and other internal policies;
- (2) Appointee fails to satisfy Continuous Learning Points for DAWIA certification;
- (3) Appointee violates the Code of Ethics;
- (4) A valid organization need for the delegation of authority no longer exists;
- (5) Appointee is reassigned to a new position within NGA where the need for a warrant no longer exists; or
- (6) Appointee transfers to another agency, retires, resigns, or is terminated from Government employment.

(b) OCSP coordinates with the PRISM Team to remove the individual's authorities from the PRISM system.

Subpart 5X01.9-90 - Nonappropriated Funds

Policy and procedures for nonappropriated funds contracts are contained in the OCS SOP and the DoD publications referenced therein.

PART 5X02 DEFINITIONS OF WORDS AND TERMS

Subpart 5X02.1 - Definitions

5X02.101 Definitions

The NGA General Counsel (GC) is the "debarring official" for NGA.

The NGA GC is the "suspending official" for NGA.

"Head of the Agency" (often called "Agency head") within NGA is a function delegated to the DD/NGA for acquisition-related matters under the FAR and DFARS, except for matters that by terms of statute, or any delegation, must be exercised personally by D/NGA.

"Senior Procurement Executive" (SPE) within NGA is the D/OCS, except for such matters that by terms of statute, or any delegation, must be exercised personally by the Director of NGA (D/NGA).

"Head of the Contracting Activity (HCA)" within NGA is the D/OCS, with overall responsibility for managing the NGA contracting activity. D/OCS re-delegated HCA responsibilities to the OCS Group Chief, Information Technology and Mission Support (IT & MS) and the OCS Group Chief, Acquisition Management and Corporate Investment for all contract actions arising within their respective Groups. In addition, the Deputy Director, OCS (DD/OCS) is re-delegated HCA authority in the absence of both OCS Group Chiefs.

PART 5X03 IMPROPER BUSINESS PRACTICES AND PERSONAL CONFLICTS OF INTEREST

Subpart 5X03.1 - Safeguards

5X03.101 Standards of conduct

5X03.101-3 Agency regulations

(a) NI 5500.11 prescribes NGA standards of conduct guidelines.

5X03.103 Independent pricing

5X03.103-2 Evaluating the certification

(b) Rejection of offers suspected of being collusive.

(S-90) Notice that a determination has been made by the Contracting Officer must be included in weekly reports.

(S-91) Coordination with OGC is required.

5X03.104 Procurement integrity

5X03.104-1-90 Definitions

The "Designated Agency Ethics Official" is the NGA General Counsel (GC).

5X03.104-4-90 Disclosure, protection, and marking of proprietary and source selection information

The Contracting Officer must coordinate with OGC any release of contractor bid, proposal information, or source selection information.

5X03.104-5 Disqualification

(b)(S-90) Personnel who must disqualify himself or herself pursuant to FAR 3.104-3(c)(1)(ii) must promptly notify D/OCS of their disqualification from the procurement action. Submit this notice to the Contracting Officer, OGC, SSA (if applicable), and D/OCS.

5X03.104-7 Violations or possible violations

5X03.104-7-90 Processing violations or possible violations

The ethics official is the NGA General Counsel (GC). All potential violations are submitted to OGC for review and opinion.

(a)(1) Contracting Officer notification to the HCA includes the allegations and the potential impact on procurement actions.

(d)(3) The NGA suspension and debarment official is the NGA General Counsel (GC).

Subpart 5X03.2 - Contractor Gratuities to Government Personnel

5X03.203 Reporting suspected violations of the Gratuities clause.

NGA personnel must report suspected violations to the Contracting Officer in the format given in DFARS 209.406-3. The Contracting Officer, in coordination with OGC, reviews the suspected violation and potential impacts on procurement, reviews the Government's findings, and recommends action to the HCA. The HCA provides the contractor suspected of violating the clause an opportunity to review the Government's findings and present additional facts prior to rendering a decision. The Contracting Officer, in coordination with OGC, may choose to amend the recommended action as a result of the contractor's presentation.

5X03.204 Treatment of violations

(c) OGC is designated the official to determine if a violation of the Gratuities clause has occurred. D/OCS reviews all determinations and approves recommended actions related to procurement matters.

Subpart 5X03.3 - Reports of Suspected Antitrust Violations

5X03.301 General

(b) OGC has overall responsibility for coordination of remedies for fraud and corruption related to procurement activities and for contractor debarment and suspension under FAR 9.4. Agency personnel must report all suspected antitrust violations impacting procurement to the SPE.

Subpart 5X03.4 - Contingent Fees

5X03.405 Misrepresentations or violations of the Covenant against Contingent Fees

(a) Government personnel who suspect or have evidence of attempted or actual exercise of improper influence, misrepresentation of a contingent fee arrangement, or other violation of the Covenant against Contingent Fees must report the matter to OGC. A copy of the report is transmitted to the Contracting Officer.

(b) (S-90) The OCS Division Chief reviews all procurement-related remedies recommended by OGC with supporting rationale, in coordination with the SPE determines the appropriate action.

Subpart 5X03.5 - Other Improper Business Practices.

5X03.502 Subcontractor kickbacks

5X03.502-2-90 Reporting of subcontractor kickbacks

Agency personnel who suspect violations of the Anti-Kickback Act must report to OGC and the Office of the Inspector General (OIG) IAW DFARS 209.406-3. Agency procedures concerning the Anti-Kickback Act are contained in NGAI 7050.5 (Enclosure 1, reference w). Contracting Officers annotate suspected violations in the weekly activity report.

5X203.570 Prohibitions on persons convicted of fraud or other defense contract-related felonies

5X203.570-2 Prohibition period

(a) (S-90) The SPE has the authority to grant a waiver in the interest of national security. OCS personnel must coordinate all waiver requests with OGC.

Subpart 5X03.6 - Contracts with Government Employees or Organizations Owned or Controlled by Them

5X03.602-90 Exceptions

OGC reviews all requests for exceptions to the policy in FAR Subpart 3.601. The SPE is the approval authority.

Subpart 5X03.7 - Voiding and Rescinding Contracts

5X03.705 Procedures

(c) Decision-making process. Agency procedures governing the voiding and rescinding decision-making process are contained in NGAI 7050.5 (Enclosure 1, reference w).

Subpart 5X03.8 - Limitation on the Payment of Funds to Influence Federal Transactions

5X03.804 Policy

(b) The Contracting Officer must forward a copy of all contractor disclosures to Office of Corporate Relations (OCR), Congressional Affairs Division (OCRC), for submission to Congress.

5X03.806 Processing suspected violations

Personnel refer suspected violations of 31 U.S.C. 1352, "Limitation on use of appropriated funds to influence certain Federal contracting and financial transactions" to OGC. The HCA receives notification from OGC.

PART 5X04 ADMINISTRATIVE MATTERS

Subpart 5X04.2 - Contract Distribution

5X04.202 Agency distribution requirements

5X04.202-90 Distribution list

All contract files must contain a distribution list that indicates the name and address of all entities sent copies of the contract and number of copies sent to each. Each addressee on the list is promptly sent a copy of each modification and order issued.

5X04.203 Taxpayer identification information

(b) If a contractual document is created using PRISM the taxpayer identification number appears as printed by the software.

Subpart 5X04.4 - Safeguarding Classified Information within Industry

5X04.402 General

5X04.402-90 Information and information systems security and technology control.

NGA contractors must comply with NGAI 5200.1.

5X04.402-91 – Critical Program Information Protection

A. Critical Program Information (CPI) is defined by DoDI 5200.39 as “Elements or components of a research, development, and acquisition (RDA) program that, if compromised, could cause significant degradation in mission effectiveness; shorten the expected combat-effective life of the system; reduce technological advantage; significantly alter program direction; or enable an adversary to defeat, counter, copy, or reverse engineer the technology or capability. Includes information about applications, capabilities, processes, and end-items. Includes elements or components critical to a military system or network mission effectiveness. Includes technology that would reduce the US technological advantage if it came under foreign control.”

Also, CPI may include:

- (1) Classified military information that is considered a national security asset;
- (2) Controlled Unclassified Information (CUI) determined by designated officials to be exempt from public disclosure and to which access or distribution limitations have been applied in accordance with national laws and regulations; and
- (3) Based on Program Manager’s determination, a commercial-off-the-shelf (COTS) technology can be designated CPI if the COTS elements is determined to fulfill a critical function within the system and the risk of manipulation need mitigation.

B. For the procurement of requirements that contain mission-critical functions and components, Program Managers (PMs), requirements personnel, Contracting Officer’s Representatives (CORs), and Contracting Officers (COs) shall ensure that periodic criticality analyses are performed. Also, PMs, requirements personnel, and CORs should conduct cost-benefit analysis for each acquisition and utilize the results to tailor the OUSD’s (A&S) suggested language for incorporation in Statements of Work and Sections L and M of solicitations requiring System Security Engineering for Trusted Systems and Networks. The suggested language can be found at the following website: <http://www.acq.osd.mil/se/docs/SSE-Language-for-TSN-in-DoD-RFPs.pdf>.

C. All NGA components must comply with National Geospatial-Intelligence Agency Instruction (NGAI) 5205.6, Lifecycle Protection of Geospatial Information (Enclosure 1, reference j).

D. For specific protections on unclassified controlled technical information on unclassified information systems, use DFARS clause 252.204-7012, Safeguarding of

Unclassified Controlled Technical Information, in all solicitations and contracts, including solicitations and contracts using FAR Part 12 procedures for the acquisition of commercial items.

5X04.402-92 Responsibilities of contracting officer's representatives

A. The Contracting Officer's Representative (COR) is responsible for the submission of contractor personnel security clearance (PCL) requests to the NGA Industrial Security office.

(1) Contractor PCL requests shall be limited to the minimal number of employees necessary for operational efficiency, consistent with contractual obligations. Requests for PCLs shall not be made to establish "pools" of cleared employees.

(2) Criteria to justify contractor PCL requests that exceed the total number of contractor personnel prescribed by the contract are as follows:

- (a) Anticipated contractor personnel attrition;
- (b) Individuals performing contractor corporate functions who spend a significant amount of time on NGA support;
- (c) Anticipated surge requirements; or
- (d) Ensuring continued access to unique and/or critical positions.

B. The COR shall utilize form 5X53.04.402-92 Contractor Personnel Security Clearance Decision Analysis to document the analysis and decision process. Form 5X53.04.402-92 must be coordinated with the contracting officer prior to submission of contractor PCL requests to NGA Industrial Security.

C. The number of contractor PCL requests submitted shall not exceed one hundred ten percent (110%) of the total number of contractor personnel required to satisfy contract requirements.

(1) This percentage is inclusive of both initial and cross-over PCL requests.

D. Prime contractors are responsible for managing the PCL needs for their contracts. Prime contractors shall modify staffing reports to include data supporting the continuing need for the level of PCL requests submitted.

5X04.403 Responsibilities of contracting officers

(a) Contracting Officers must request a DD Form 254, Contract Security Classification Specification, be submitted with the procurement package by the requiring activity when access to classified information is required by offerors or by a contractor during contract performance. The DD 254 must be coordinated with SI security prior to procurement package submittal.

(b)(1) Contracting Officers ensure, prior to release of the solicitation, that the contract file contains verification from the security office that each offeror to be provided classified information is cleared IAW DoD 5220.22-M (Enclosure 1, reference g) and NGA 5200.4 (Enclosure 1, reference h).

(b)(2)(ii) Offerors must be advised of security requirements in the solicitation. The DD Form 254 is a requirements document and must be attached to the solicitation in PRISM.

(c) (S-90) Contract files for an acquisition that requires contractor generation of or access to classified material must contain:

(i) Copies of all revisions of the DD Form 254.

(ii) Verification from the security office that the contractor has been cleared IAW DoD 5220.22-M (Enclosure 1, reference g).

(iii) Results of biennial DD Form 254 reviews.

(iv) Copies of letters to the contractor transmitting the results of the biennial reviews.

5X204.404-90 Additional contract clauses

A. The Contracting Officer must include DFARS clause 252.204-7000, "Disclosure of Information," in full text in all NGA solicitations and awards. When a contractor requests to release information IAW 252.204-7000, the Contracting Officer coordinates the request with the NGA Office of Corporate Communications (OCC), Public Release Team.

B. The Contracting Officer must include the Agency PRISM template 5X252.204-7000-90, "Public Release of Information", in all NGA solicitations, contracts, and agreements. Contractor requests to release information must be submitted to the Contracting Officer using the NGA Form 5230-1, National Geospatial-Intelligence Agency Request for Clearance for Public Release. Upon receipt of the request to release information, the Contracting Officer must follow the guidance in NGA 5720.1 (Enclosure 1, reference u).

Subpart 5X04.6 - Contract Reporting

(DoD Class Deviation 2019-E0001 – Reporting Unclassified Contract Actions for the Intelligence Community, dated 18 March 2019. NGA is exempt from reporting contract actions to the Federal Procurement Data System (FPDS); contract action data is collected through PRISM in accordance with 5X04.601-90.

5X04.601-90 Record Requirements

For accurate contract reporting, it is critical that PRISM accurately reflects OCS's procurement workload. In order to achieve this, all contractual actions, except purchase card transactions below the micro-purchase threshold, must be entered into PRISM. All other purchase card transactions, including those processed by OCS's check holders or pursuant to the Training Act or under Special Emergency Procurement Authority, are entered in the purchase card automated system.

Subpart 5X04.8 - Government Contract Files

5X04.802 Contract files

5X04.802-90 Contract files

OCS has established an ECF systems for storage and retrieval of contract files. Contracting personnel must follow the procedures identified in the OCS ECF Implementation SOP found in the OCS Library.

a. Active contracts must be filed in the relevant OCS contracting division's ECF.

b. Physically completed and inactive contracts ready for closeout. One week after all actions are completed, the contract must be placed in the physically completed and inactive file in a designated location in the relevant electronic filing system.

5X04.803 Contents of contract files

(a)(24) Legal reviews conducted IAW 5X01.601-90 shall be documented in the contract file along with the adjudication of comments. Email correspondence is acceptable.

(S-90)(a)(26)

(iv) Contract Modification Log. Contracting Officers must maintain a chronological list of contract modifications. The Contract Modification Log Template is located on the OCS webpage.

(S-90) (a)(41) Contracting Officer Log and Contract Admin Turnover Checklist. Contracting Officers must maintain a chronological list of the awarding and successor Contracting Officers with inclusive dates of responsibility for each contract. The names of assigned contract specialists may also be included on the list. At the time of a CO transition, a Contract Admin Turnover Checklist shall be completed between the outgoing and incoming CO/CS for inclusion in the contract file. The Contracting Officer Log and Contract Admin Turnover Checklist are located on the OCS webpage.

5X04.803-90 Contract file indexes

Procurement files in excess of \$10,000 shall contain a contract file index and all documentation must be filed accordingly. Contract file indexes for specific procurement actions are located on the NGANet OCS internal website. Also see 5X01.601-92 for use of contract file indexes to complete Independent Contracting Officer Reviews.

5X04.803-91 Conformed contracts

Contract files, excluding Simplified Acquisition Procedures, may contain a conformed contract for day-to-day contract administration purposes. A conformed contract is a single document, otherwise known as a working copy, incorporating all changes (original contract and any modifications) to reflect the current agreement of the parties. PRISM is capable of displaying a conformed contract.

5X04.803-92 Organization and marking of file folders

Each file folder within the ECF (inclusive of the Working Contract File (WCF)) shall be prominently marked and labeled in accordance with the SOP for OCS' ECF implementation.

5X04.804-5 Procedures for closing out contract files

(a) (S-90) The COR certifies satisfactory completion of work and receipt and acceptance of all goods and services. The COR consults with Security and Installations Directorate (SI), Installations Operations Office (SIO), Plans and Program Division (SIOP) regarding disposition of any contract accountable property. The Contracting Officer verifies and concurs with the COR certification and the property disposition recommendation.

5X04.804-90 Closeout of contract files

The Office of Contract Services Contract Closeout SOP is located on the NGANet OCS website. To be eligible for closeout, a contract must have an unliquidated obligation value of zero and all Government Furnished Property must have been returned to the Government. All contracts must be closed out in ECF with documentation filed in Folder D20.

5X204.804-90 Closeout documentation

The DD Form 1594, Contract Completion Statement and the DD Form 1597, Contract Closeout Check List are the designated primary forms used to document contract closeout. These forms shall be completed by the contract specialist or Contracting Officer and signed by the Contracting Officer. Additional forms may be required; consult the OCS Contract Closeout SOP for additional guidance.

5X04.805 Storage, Handling, and Disposal of Contract Files

The storage, handling, and disposal of contract files must be consistent with FAR 4.805.

5X04.805-90 Disposition of Solicitations

Cancelled solicitations, including those subject to a protest prior to cancellation, with all supporting documentation (i.e., acquisition plan, DD2579, etc.), and protest documentation must be retained in accordance with FAR 4.805.

5X204.805-91 Disposition of contract files

Once the contract is closed, the file must be maintained in the relevant OCS contracting office for 12 months. After the 12-month holding period, contract files ready for disposition must be sent to the local Agency records holding area at NCE until they are eligible for destruction.

Subpart 5X204.16 Uniform Procurement Instrument Identifiers

5X204.1601 Policy.

(S-90) The policies and procedures prescribed in DFARS 204.16 are mandatory for all NGA procurement actions except as noted at 5X253.204-70-90, Special coding instructions for purchase card transactions report on Form DD 350, Individual Contract Action Report.

5X204.1603 Procedures.

(b) Elements of a supplementary PIID.

(S-90) All modifications to contracts and agreements issued by NGA shall use a six-position alpha-numeric beginning with the letter P.

Subpart 5X204.70 – Reserved

Subpart 5X204.71 - Uniform Contract Line Item Numbering System

5X204.7102 Policy

(b) (S-90) The numbering procedures in DFARS 204.71 are mandatory for all NGA procurement actions as limited by any PRISM restrictions.

5X204.7107 Contract accounting classification reference number (ACRN) and agency accounting identifier (AAI).

(S-90) NGA utilizes all available two-letter combinations AA through ZZ.

(S-91) If the final two-letter combination ACRN (ZZ) is exhausted, the use of a two-position alpha-numeric ACRN will be used in sequence beginning with A1, A2 through A9; B1, B2, through B9; and so on to Z1, Z2, through Z9.

(S-92) If the final alpha-numeric ACRN (Z9) is exhausted, the use of a two-position numeric-alpha ACRN will be used in sequence beginning with 1A, 2A through 9A; 1B, 2B, through 9B; and so on to 1Z, 2Z through 9Z.

Subpart 5X204.73 SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING

5X204.7301-90 NGA Authority to Approve Exports of Defense Articles, Defense Services and Technical Data.

A. NGA may authorize agency personnel, and U.S. contractors acting on its behalf, to conduct exports of classified and unclassified Defense Articles, Defense Services and Technical Data to its foreign government partners within NGA's statutory authorities. (Reference NGA Instruction 2060.1, Export Control Program, Draft Ver 3, dated 3/1/22. The Department of State (DoS) Form DS-2032 should be filed in ECF Folder C10, Miscellaneous.)

B. NGA provides export authorizations to its contractors in two ways:

(1) When NGA directs a contractor to conduct exports to foreign persons representing its foreign government partners, pursuant to its statutory authorities and bilateral arrangements with those foreign governments, NGA may, through the Office of General Counsel, provide an Export Authorization Letter to the contractor on a case-by-case basis (Enclosure 1, reference ad).

(2) When contracting on behalf of foreign countries for imagery intelligence and geospatial information support pursuant to its Accommodation Procurement authority at 10 U.S.C. § 443 (b) and (c), NGA may incorporate a broad export authorization clause (NARI clause 5X252.204-9000) in contracts awarded to prime contractors (Enclosure 1, reference ae).

C. NARI clause 5X252.204-9000 – EXPORT AUTHORIZATION APPROVAL FOR CERTAIN ACCOMMODATION PROCUREMENT CONTRACT ACTIVITIES is authorized for incorporation into Accommodation Procurement contracts, at the discretion of the Contracting Officer, and only after legal review by the NGA Office of General Counsel-Mission and International Law Division, review by the NGA Office of International Affairs (OIA), and coordination with the NGA CAE.

D. Use the NARI clause 5X252.204-9000 – EXPORT AUTHORIZATION APPROVAL FOR CERTAIN ACCOMMODATION PROCUREMENT CONTRACT ACTIVITIES, into any NGA Accommodation Procurement where NGA may authorize agency personnel, and U.S. contractors acting on its behalf, to conduct exports of classified and unclassified Defense Articles, Defense Services and Technical Data to its foreign government partners.

PART 5X05 PUBLICIZING CONTRACT ACTIONS

5X05.002-90 Policy

Release of acquisition information must comply with NGAI 5720.1 (Enclosure 1, reference u) and the terms and conditions of the contract.

Subpart 5X05.1 - Dissemination of Information

5X05.101 Methods of disseminating information

5X05.101 (a) (2) (S-90) - Posting Contract Actions Greater Than \$15K but Less Than \$25K

Follow the procedures at FAR 5.101(a)(2)(ii) and 5X05.201 for posting to the GPE.

Subpart 5X05.2 - Synopses of Proposed Contract Actions

5X05.201 General

a. (S-90) OCS personnel must use the Government-wide Point of Entry (GPE) that is SAM found at <https://sam.gov> to synopsize proposed contract actions and post the solicitation and related documents in accordance with FAR part 5 up to Unclassified for Official Use Only (FOUO). In the event that SAM cannot be used because the synopsis cannot be worded to preclude disclosure of the agency's needs and such disclosure would compromise the national security, the contract file must include a written determination explaining why the national security exception under FAR 5.202(a)(1)) is applicable. When the national security exception is invoked, the Unclassified or Classified Intelligence Community - Acquisition Research Center (IC-ARC) website must be used to synopsize the proposed contract action and post related documents. Requests to the IC-ARC for document posting on the IC-ARC website must be coordinated with the OCS Policy and Acquisition Resources Division (OCS-P) representative at the National Reconnaissance Office (NRO) Acquisition Center of Excellence (ACE).

b. (S-91) The following information must accompany a synopses of proposed contract actions using the (GPE) and referencing the IC-ARC in the GPE posting when necessary:

"In order to view this effort you must have a TS/SCI clearance as this effort is being posted on the classified ARC website.

Access to this effort will require a classified ARC account. To create a classified ARC account, you must first create an unclassified ARC account by visiting <https://acq.westfields.net> and clicking on the "Register" link at the top right of the page. Be sure to include your classified email address as you will not be able to access you classified account without it. Once you have finished the registration process on the unclassified system and validated your account by clicking the link you were sent via email, you will need to wait 2 business days for your classified ARC account to be automatically created.

Once you have waited 2 business days, you will be able to log into your classified account using the same email and password you used on the unclassified system. This will bring you to a page where you can click a button to send yourself a verification email to the classified email account you listed when creating your unclassified account. To log into the classified ARC, visit <https://acq.nro.ic.gov/> from a TS network such as NMIS, NSAnet, CWE, AWAN, CWAN, JWICS, etc. If you do not have access to a TS

network but possess a TS/SCI clearance, you can arrange a visit to our reading room by calling 703-230-6100.”

Subpart 5X05.3 - Synopses of Contract Awards

5X05.303 Announcement of contract awards

(a) (i) Public announcement and congressional notification of contract awards are prepared and forwarded to both the NGA Office of Corporate Communications (OCC) Public Affairs Office (PAO) and the Congressional Affairs Office in accordance with DFARS 205.303 and NARI 5X205.303.

(a) (ii) Contracting Officers shall use the Public Announcement and Congressional Notification form (DD-LA-(AR) 1279) located on the NGANet OCS website.

Subpart 5X205.3 - Synopses of Contract Awards

5X205.303 Announcement of contract awards

(a) S-90 Public Announcement and Congressional Notification.

1. Contractual actions identified in accordance with DFARS 205.303, including modifications, having an amount, excluding unexercised options, greater than \$7.5 million require both public announcement and congressional notification. Contracting Officers must prepare and forward a copy of the “Public Announcement and Congressional Notification, DD-LA-(AR) 1279,” through their Division Chief or designee to OCC Public Affairs (OCCN) and OCC Congressional Affairs (OCCL) for review at least four (4) working days prior to the anticipated contract award date.

2. In the event Contracting Officers need to update/change the previously submitted notification information, Contracting Officers must provide a final updated notification form through their Division Chief or designee to OCC no later than 5 p.m. Eastern Standard Time (EST), two working days before award. OCC Public Affairs releases the award information the day of award.

3. Within 24 hours after contract award, the Contracting Officer completes a final “OCC News Release” and “OCC Courtesy Congressional Notice,” located on OCS’s internal website on the NGANet, and sends through their Division Chief or designee to OCC. OCC informs members of Congress in the state or district the contractor is located and the work is to be performed.

(b) S-91 Reporting significant contract actions to D/OCS.

1. The Contracting Officer must report to the D/OCS and Chief, OCSP, all significant contract actions prior to execution. “Significant contract actions” for the purpose of the NARI section includes contracts, modifications, undefinitized contract actions (UCA), undefinitized change orders (UCO), or business agreements, with anticipated amounts of \$7.5M or more. Reporting is required for competitive and sole source actions. D/OCS forwards the actions to the Component Acquisition Executive (CAE) and, when appropriate, to D/NGA.

2. Significant contract actions involving Indian tribes or the Alaska Native Corporation are reported regardless of amount.

3. Contracting Officers utilize the worksheet located on the NGANet OCS internal website entitled, "Report on Awards of \$7.5M or more for D/OCS." Contracting Officers must forward the completed worksheet to D/OCS and Chief, OCSP via email no later than four business days before the anticipated action. Within 24 hours after award, the Contracting Officer must provide the D/OCS and Chief, OCSP a follow-up email to confirm the anticipated action made.

PART 5X06 COMPETITION REQUIREMENTS

Subpart 5X06.3 - Other than Full and Open Competition

5X06.302 Circumstances permitting other than full and open competition

5X06.302-2 Unusual and compelling urgency

(c) (S-90) Limitations. When FAR 6.302-2 is applicable, obtain verbal approval prior to contract award, and submit the written justification to the approving authority no later than 14 calendar days after award. Justification and approval (J&A) templates for citing unusual and compelling urgency are found on the NGANet OCS website.

5X06.303 Justifications

5X06.303-1-90 Requirements

(a) The Contracting Officer must amend the justification and obtain the required approvals when any of the following occur prior to contract award:

- (1) An increase in the dollar amount of the prospective contract beyond the authority of the previous approving official.
- (2) A change in the competitive strategy that reduces competition.
- (3) A change in requirements that affects the basis for the justification.

5X06.303-2-90 Content

There is no required format for a J&A; however, it must cover all the items identified at FAR 6.303-2. Templates are available on the NGANet OCS website to serve as general guides for completing J&A documents under limited circumstances. The templates are intended for guidance only and in no way obviate the stated requirements.

5X06.304 Approval of Justification

(a)(S-90) The requiring activity is responsible for providing the written justification for other than full and open competition requirements. A formal justification IAW FAR 6.304, DFARS 206.304, and DFARS PGI 206.304 is required for procurements greater than or equal to the Simplified Acquisition Threshold (SAT) with appropriate official's approvals (table below).

APPROVAL OF JUSTIFICATIONS OTHER THAN FULL & OPEN COMPETITION REVIEW/APPROVAL THRESHOLDS UNDER FAR PART 6 & 13 LIMITED SOURCE JUSTIFICATION REVIEW/APPROVAL THRESHOLDS UNDER FAR PART 8 EXCEPTIONS TO FAIR OPPORTUNITY FAR PART 16.505				
Threshold	Programmatic Certification of Facts (Activity Representative)	Review/ Concurrence	Certification	Approval
\$750K	PM/COR			Contracting Officer (CO)
>\$750K - \$15M	PM/COR and First- line Supervisor	OGC (optional if <\$2M, see NARI 5X01.601-90 (B)(4))	CO	Procuring Activity Competition Advocate (OCS Division Chiefs)
>\$15M - \$100M	PM/COR and First- line Supervisor, Final Programmatic Certification: Deputy Directorate Head or Agency Element Deputy	OGC, Procuring Activity Competition Advocate (OCS Division Chiefs)	CO	Agency Competition Advocates (Primary: OCS Chief, IT and Mission Support; Alternate: OCS Chief, Acquisition Management and Corporate Investment)

> \$100M	PM/COR and First-line Supervisor Final Programmatic Certification: Directorate Head or Agency Element Lead	OGC, Procuring Activity Competition Advocate (OCS Division Chiefs), Agency Competition Advocate	CO	Senior Procurement Executive (SPE)
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5X06.305 Availability of the Justification

(f) (S-90) The Contracting Officer shall document the contract file with a Memorandum for Record citing the rationale for not posting the justification when it would disclose the agency's needs and disclosure of such needs would compromise national security or create other security risks. A Memorandum for Record template is available on the NGANet OCS website.

Subpart 5X06.5 - Competition Advocates

5X06.5-90 Definition

"Procuring activity" means a division within OCS which has the authority to manage contracting functions associated with its mission.

5X06.501 Requirement

(a) (S-90) The DD/NGA has designated the Chief, Information and Technology and Mission Support, OCS, as the Agency competition advocate (primary) and the Chief, Acquisition Management and Corporate Investment, OCS, as the alternate Agency competition advocate. The DD/NGA has designated the OCS division chiefs as the Procuring activity competition advocates for all contract actions under their cognizance.

5X06.502 Duties and responsibilities

(a) (S-90) Both Agency and Procuring activity competition advocates must comply with duties and responsibilities stated in FAR 6.502(a). Procuring activity competition advocates must review and approve J&As complying with the thresholds at NARI 5X06.304, Approval of Justification. If the Procuring activity competition advocate is also the person who will execute the anticipated contract document greater than \$750,000 but not exceeding \$15M, then approval of the Agency competition advocate is required on that J&A.

(b) (2) (S-91) The Agency competition advocate must comply with the duties and responsibilities outlined in FAR 6.502, including submission of the annual report to the SPE. The annual report submission procedures are the following:

(1) No later than 15 October of each year, the Procuring activity competition advocates must submit to the Agency competition advocate a report on competition achieved during the previous fiscal year and competition goals for the current fiscal year. The reports should follow FAR 6.502(b)(2) in as much detail as possible.

A sample form (Procuring Competition Advocate Reporting) to aid in collecting and compiling the required reporting information has been developed; the annual

competition reporting from Procuring activity competition advocates may be submitted in any format.

(2) OCSF compiles the information from the Procuring activity competition advocates into the appropriate format for submission to the Agency competition advocate. OCSF also obtains and reports the fiscal year competition statistics from PRISM, the Agency's contract writing system.

(3) The Agency competition advocate must submit reports to the SPE no later than 15 November of each year.

PART 5X07 ACQUISITION PLANNING

Subpart 5X07.1 - Acquisition Plans

5X07.103 Agency-head responsibilities.

The NGA Competition Advocate ensures compliance with the requirements of FAR 7.103(a), (b), and (c).

5X207.103 Agency-head responsibilities

(d)(i) (S-90) Prepare written Acquisition Plans for—

(C) (1) All actions \$30M or more.

(2) CO may request a written acquisition plan for actions from the SAT to less than \$30M.

(e) Prepare a Streamlined Acquisition Plan (AP) (Summary Sheet and Checklist) for actions from the SAT to <\$30M. See Streamlined Acquisition Plan Template on the OCS Website, Acquisition Tools, Templates.

5X07.104 General procedures.

Program Managers/requiring activities are responsible for ensuring that written acquisition plans are coordinated with the OCS Contracting Officer and support acquisition strategies approved by the CAE. In developing an acquisition plan, PMs and COs are required to take into account the requirement for scheduling and conducting all levels of NGA acquisition governance reviews through coordination with the CAE Acquisition Secretariat at: "[NSG Acquisition Governance@coe.ic.gov](mailto:NSGAcquisitionGovernance@coe.ic.gov)". The Acquisition Secretariat will assign a representative to assist in providing acquisition guidance, scheduling governance board activities, and establishing a secure shared folder for source selection sensitive information.

5X07.104-90 Acquisition Plan (AP) Approval Authority.

Written Acquisition Plan Approval Authority		
Thresholds	OCS Approval Authority	Program Office/Requiring Activity Office Approval Authority
SAT - <\$10M	Approved: CO	Approved: Program Manager or Deputy Program Manager

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\$10M - <\$30M	Concurrence: CO Approved: OCS Division Chief	Concurrence: Program Manager Approved: Division Chief or equivalent (one level above Program Manager)
\$30M - <\$100M	Concurrence: CO, OCS Division Chief Approved: CRB Chair (OCS Group Chief or designee)	Concurrence: Program Manager, Division Chief Approved: Group Director or appropriate designee (two levels above Program Manager)
\$100M or greater	Concurrence: CO, OCS Division Chief, OCS Group Chief Approved: CRB Chair (SPE or designee)	Concurrence: Program Manager, Division Chief or Group Director Approved: Directorate Head or Agency Element Lead (or designee)

Streamlined Acquisition Plan Approval Authority		
Thresholds	Approval Authority	Program Office/Requiring Activity Office Authority
SAT - <\$10M	Approved: CO	Approved: Program Manager or Deputy Program Manager
\$10M - <\$30M	Concurrence: CO Approved: OCS Division Chief	Concurrence: Program Manager or Deputy Program Manager Approved: Division Chief (or equivalent)

5X07.104 (d) (S-90). Pursuant to FAR 7.104(d), the following procedures shall be used for coordinating acquisition strategies with the small business specialist and Office of Small Business Programs (OSBP):

(1) For acquisitions awarded under DoD authority, acquisition plans must be coordinated with the small business specialist and/or OSBP if the contract or order amount is estimated at or above \$8 million, unless the contract or order is entirely reserved or set-aside for small business pursuant to FAR Part 19.

(2) For DoD acquisitions estimated at or above \$8 million, the Contracting Officer must obtain a recommendation of the Director, Office of Small Business Programs, stating whether the acquisition should be awarded under FAR Subparts 19.5, 19.8, 19.13, 19.14, or 19.15. The Contracting Officer must consider the OSBP recommendation and document the contract file when the recommendation is not accepted. This requirement also applies to multiple award contracts or orders if the

cumulative maximum potential amount, including options, of the contracts and orders is estimated at or above \$8 million.

5X07.105 Contents of written acquisition plans.

All supporting documents shall be included with the written acquisition plan package and/or referenced within the plan. See Acquisition Plan Template on the OCS Website, Acquisition Tools, Templates.

PM/Requiring Activity Supporting Documents to Acquisition Plan (If Applicable) (Additional Documents may be required)	
• AF Form 9 (Funding document) • Security Checklist • DD Form 254, Contract Security Classification Specification • Independent Government (Cost) Estimate (IGCE) • Market Research Document, PWS/SOW/SOO • Inherently Governmental Determination • Non-Personal Services Certification • Quality Assurance Surveillance Plan • Interagency Business Decision • Government Furnished Property (GFP) listing • Authority to Acquire Government Owned or Leased Motor Vehicle IAW NGAM 4160.2 • Approval for NGA Real Property and Space Management IAW NGA 4165.5	• Justification and Approval (J&A) for other than full and open competition • Source Selection Evaluation Plan/Source Selection Strategy • Determination and Findings (D&F) • DD Form 2579 (Small Business Coordination Record) • Section 508 compliance coordination/review • Clinger-Cohen Act coordination/review • Personally Identifiable Information (PII) coordination/review • Contracting Officer's Representative (COR) Nomination Letter • COR Delegation (Certification or Date of Certification)

5X07.192 Authority to acquire Government owned or leased Motor Vehicle (GMV)

Ensure the acquisition of any GMV by NGA, or acquired on behalf of NGA, is pre-coordinated with the NGA Fleet Manager (SIOE), and that a full evaluation and analysis of the lifecycle costs be considered when choosing the method of acquisition (purchase or lease) and use of GSA Motor Vehicle fleet services. NGA procedures concerning acquisition of GMVs are located in NGAM 4160.2 (Enclosure 1, reference n).

5X07.193 Approval for NGA Real Property and Space Management

All contracting actions that involve NGA Real Property, whether leasing, building, modifying, or occupying, require the prior written approval of the NISB. The SIOI SharePoint site and the NISB Charter may be referenced for specifics on the process.

Contracting Officers must not accept or approve a purchase request package, without the express written consent of SI.

Subpart 5X07.5 Inherently Governmental Functions

5X207.503 Policy

(1) (S-90) This policy applies to all contract requirements greater than the micro-purchase threshold that will result in services provided by contractor personnel. The NGA Human Development Strategic Workforce Planning Division (HDSP) is required to assess Inherently Governmental, Closely Associated to Inherently Governmental and Critical functions, certifying the contract will comply with OFPP Policy Letter 11-01 and DoD Instruction 1100.22 - Guidance for Determining Workforce Mix. For new requirements, PMs/requiring activities or their representative complete their portion of a Workforce Mix Worksheet found on the OCS website under COR Programs. For requirements that result in the award of an Indefinite Delivery Indefinite Quantity (IDIQ) contract, this review and certification will normally be accomplished at the base contract level to cover all resulting task orders. However, when a task order to be issued under an IDIQ contract will provide services not previously considered in the original certification, a new Workforce Mix Worksheet must be completed by the PM/COR for review and certification by HDSP.

(2) (S-91) NGA PMs/requiring activities or their representative shall complete and submit their Workforce Mix Worksheet along with supporting documents (i.e. statement of work/performance work statement) to the NGA Human Development Strategic Workforce Planning Division at ContractorWorkforcePlanning@coe.ic.gov. When developing their requirement, PMs/requiring activities shall use DoD Instruction 1100.22 - Guidance for Determining Workforce Mix and OFPP Policy Letter 11-01 for further guidance and reference to help determine that the services to be procured do not include work that must be reserved for performance by Federal employees and that the agency will be able to manage the contractor consistent with its responsibility to perform all inherently governmental functions and maintain control of its mission. HDSP will review the requirement and provide a completed Workforce Mix Worksheet within 10 working days that is used to identify activities that are Inherently Governmental, Closely Associated to Inherently Governmental and Critical functions, and also make a recommendation/determination on whether the new/existing functions should be performed by government, military, contractor or a combination thereof to meet mission requirements.

(3) (S-92) The Office of Contract Services (OCS) will not take action on a contract requirement for contractor services without the completed/signed HDSP Workforce Mix Worksheet certification. Therefore, NGA PMs/requiring activities/CORs shall submit the completed/signed HDSP Workforce Mix Worksheet certification along with their statement of work/performance work statement (or any modification thereof) to their supporting OCS Contracting Officer.

(4) (S-93) Based on the HDSP Workforce Mix Worksheet certification provided to OCS, the Contracting Officer shall prepare a written determination for the contracting file that the services to be procured do not include work that must be reserved for performance by Federal employees and that the agency will be able to manage the contractor consistent with its responsibility to perform all inherently governmental functions and

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maintain control of its mission IAW DFARS 207.503(e) and OFPP Policy Letter 11-01; or, when contracting for acquisition functions IAW DFARS 207.503(S-70)(1).

PART 5X08 REQUIRED SOURCES OF SUPPLIES AND SERVICES

5X8.001 - General

Subpart 5X08.4 - Federal Supply Schedules (FSS)

5X08.405-6 Limited Sources

(d) Justification approvals.

See NARI section 5X06.304 - Approval of Justification, for the approving official required at FAR 8.405-6(d).

5X08.406 Ordering activity responsibilities

5X08.406-1-90 Order placement

While complying with the order placement requirements at FAR 8.406.1, the purchase card should be used, to the maximum extent practicable, as a payment vehicle for acquiring goods and services from FSS. The OCS purchase cardholder is limited by his or her authority as a contracting officer or by the maximum order threshold of the schedule, whichever is less.

Subpart 5X08.8 - Acquisition of Printing and Related Supplies

5X08.802 Policy

(a)(4) NGA is authorized to obtain printing from sources other than the Government Printing Office (GPO).

(b) The central printing authority designated for NGA is the Director of Analysis or his or her designee.

PART 5X09 CONTRACTOR QUALIFICATIONS

Subpart 5X09.1 - Responsible Prospective Contractors

5X209.104. Standards

5X209.104-1 General standards

5X209.1-90 Foreign ownership, control, or influence (FOCI) procedures

The contracting officer will coordinate with the NGA SI Industrial Security Office in accordance with NI 5220.1 (enclosure 1, reference s) to provide Defense Security Services a list of all proposals received for a FOCI review five days after receipt of the proposal.

5X209.105-2-70 Inclusion of determination of contractor fault in Federal Awardee Performance and Integrity Information System (FAPIS).

(DoD Class Deviation 20179-E0001 – Reporting Unclassified Contract Actions for the Intelligence Community, dated 18 March 2019. NGA is exempt from the requirements to input information in the Federal Awardee Performance and Integrity Information System (FAPIS)).

Subpart 5X09.4 - Debarment, Suspension, and Ineligibility

5X09.404 System for Award Management Exclusions

(c) (7) OGC is responsible for the requirements outlined in this paragraph. Refer to NGAD 5505, Suspension and Debarment of Contractors (Enclosure 1, reference I) for additional information.

(i) Prior to issuance of solicitations and award of contracts, the contracting officer is responsible for reviewing the Excluded Parties List System to ensure no business is conducted with parties on the listing.

(ii) The OCS division chief ensures that additions to the list are reviewed against open contracts. If NGA has contracts with contractors or their affiliates identified on the list, the contracting officer, in coordination with OGC, must determine appropriate action and prepare a report for approval of the Agency head with the recommended action.

5X209.405 Effect of Listing

(b) (ii) (A) The SPE grants exceptions identified in this subpart.

(b) (ii) (B) The SPE coordinates the written notice to the Environmental Protection Agency with OGC.

Subpart 5X09.5 - Organizational and Consultant Conflicts of Interest

5X09.501 Definition

Organizational conflicts of interest are instances where the ability to render objective decisions may be affected by the services provided by, shared management or financial resources, or other situations created by a parent company or other related entities.

5X09.503 Waiver.

(S-90) Requests must include sufficient information to justify the waiver and a certification by the requiring activity that the waiver is necessary. Waiver requests are submitted to the contracting officer who coordinates with OGC prior to submission to the reviewing division chief, through the OCS Group Chief, for final approval by D/OCS.

5X09.505 General rules

5X09.505-4 Obtaining access to proprietary information

(b) (S-90) Contracting officers must include the non-disclosure agreement (NDA) PRISM template, 5X52.209-9003 - Protection of information and nondisclosure agreements, in Section H (Special Contract Requirements) of all new solicitations and contracts under which the contractor's employees may be given access to Protected Information and Computer Software by (a) NGA, (b) other government agencies, (c) foreign governments or (d) other contractors while directly supporting NGA. Contracting officers must also modify existing contracts for inclusion of this clause and obtain replacement NDAs for all contractor employees. Any modification to the NDA to fit specific circumstances associated with individual contract actions must be submitted for OGC approval prior to use and implementation. The contracting officer maintains a copy of all NDAs in the contract file.

(S-91) Contracting officers must ensure an NDA is completed for each person (including contractor personnel) requiring access to sensitive material in order to:

- (1) Protect privacy act materials or sensitive (but unclassified) materials.

- (2) Protect proprietary data/trade secrets obtained from third parties.
- (3) Overcome and avoid organizational conflicts of interests.
- (4) Protect source selection sensitive information.
- (5) Protect classified material.

(S-92) Access to contractor data (service contracts). Contractor personnel must not divulge any other contractor's confidential/proprietary or Government source selection sensitive information to any individual or entity without the written consent of the contracting officer or his/her designated representative.

5X09.505-4-90 Release of proprietary information outside the U.S. Government

Proprietary information must not be released outside the U.S. Government without express or implied consent of the owner of the proprietary data.

5X09.505-4-91 Use of Contractor Support

Contracting officers shall include a provision substantially the same as 5X52.209.9004 - Use of Contractor Support in all solicitations (including commercial solicitations) when contractor support is used during source selections. Prior to including this provision in the solicitation, the contracting officer shall ensure PRISM template 5X52.209-9003 - Protection of Information and Nondisclosure Agreements is in the support contractor's contract(s). If the clause is not in the contract, the contracting officer shall modify the contract and take appropriate action to ensure that protected information and computer software is protected from unauthorized disclosure.

The contracting officer shall request and receive copies of all signed nondisclosure agreements for the support contractor personnel to be used during the source selection prior to releasing protected information or computer software to the support contractor personnel.

5X09.506 Procedures

5X09.506-90 NGA organizational conflict of interest handling procedures

A. The contracting officer must issue the written analysis required at FAR 9.506(b)(1) in the form of a D&F. The contracting officer shall use the Mitigation Plan Review Checklist (Appendix 7 of the Organization Conflict of Interest Guide located on the OCS NGANet website) when preparing the D&F. The D&F describes the conflict circumstances, including, but not limited to, a recommended course of action for avoiding, neutralizing, or mitigating the conflict. The D&F must be reviewed by the division chief and the Office of General Counsel before approval/signature by the cognizant OCS Group Chief. A copy of the approved D&F is included in the official contract file.

B. Coordination and submission of OCI actions to the OCS Group Chief.

(1) Any correspondence referencing a known or potential OCI issue shall be provided immediately and simultaneously to the responsible OCS Division Chief with courtesy copies provided to D/OCS, DD/OCS and OCS Group Chiefs; ensuring that "OCI" is shown prominently in the title of the email.

(2) In addition to the D&F, Division Chiefs are also responsible for developing a recommended response and obtaining OGC review and concurrence as soon as possible based on circumstances, but no later than 5 days after initial receipt.

(3) Division Chiefs shall provide relevant findings and/or draft letter response in an OF41 staff package with the following information: copy of the original OCI letter; copy of the D&F, copy of the OGC concurrence with the proposed response; copy of the response for SPE signature. The staff package will be submitted to OCSP for tracking purposes; OCS Front Office (OCSBX) for coordination; and OCS Group Chief for signature.

C. Contracting officers must resolve the conflict with the contractor prior to any contract award, consistent with the approved D&F.

D. Any contractor appeals of approved D&F's will be reviewed by the SPE, who will have final appeal decision authority.

5X09.506-91 IC ITE Organizational Conflict of Interest handling procedures

For Intelligence Community Information Technology Enterprise (IC ITE) contracts, contracting officers must refer to additional OCI considerations contained in the IC Contracting Guide (enclosure 1, reference ac).

5X09.507 Solicitation provisions and contract clause

A. Contracting officers incorporate the organization conflict of interest provision/clause PRISM template, 5X52.09-507-9000, Organizational Conflict of Interest into all solicitations and contracts where a potential conflict of interest exists, or may exist, in the execution of a contract, based on the general rules outlined at FAR Part 9.505 and examples at FAR Part 9.508. The wording may be modified upon contract award to better fully describe the actual or potential conflict, actions taken to avoid, mitigate or neutralize the conflict, and results of any negotiations with the contractor.

B. Contracting officers incorporate the organization conflict of interest provision/clause 5X52.209-9000, NGA OCI Provision for Known Non-Developmental work, into all solicitations and contracts for non-developmental work, where a potential conflict of interest exists, or may exist, in the execution of a contract, based on the general rules outlined at FAR Part 9.505 and examples at FAR Part 9.508. The wording may be modified upon contract award to better fully describe the actual or potential conflict, actions taken to avoid, mitigate or neutralize the conflict, and results of any negotiations with the contractor.

C. Contracting officers incorporate the organization conflict of interest provision/clause 5X52.209-9001, NGA OCI Provision for Known Developmental work, into all solicitations and contracts for known developmental work, where a potential conflict of interest exists, or may exist, in the execution of a contract, based on the general rules outlined at FAR Part 9.505 and examples at FAR Part 9.508. The wording may be modified upon contract award to better fully describe the actual or potential conflict, actions taken to avoid, mitigate or neutralize the conflict, and results of any negotiations with the contractor.

PART 5X11 DESCRIBING AGENCY NEEDS

Subpart 5X11.2 Using and Maintaining Requirements Documents

5X211.274 Item Identification and Valuation Requirements

5X211.274-6-90 Contract Clauses

Use the clause at 5X252.211-7003, Item Unique Identification and Valuation, in all solicitations and contracts that require item identification or valuation, or both, in accordance with DFARS 211.274-2 and 211.274-3 and contain DFARS clause 252.211-7003.

Subpart 5X11.5 - Liquidated Damages

5X11.502-90 Procedures

The requiring activity determines the liquidated damages rate and provides supporting rationale to the contracting officer. The contracting officer ensures resulting potential damages are not unreasonable. A liquidated damages worksheet is on the NGANet OCS website.

Subpart 5X11.6 - Priorities and Allocations

5X11.603 Procedures

(c)(3) Warranted contracting officers are authorized to sign rated orders.

5X211.602-90 Procedures

A. Issuance of rated orders must comply with DoDD 4400.1E (Enclosure 1, reference d).

B. NGA, as a delegate Agency, is authorized by the Department of Commerce, based upon DoD designation, to include priority ratings on contracts and orders placed with U.S. contractors and suppliers in support of approved national defense or energy programs. NGA has authority to rate any contracts and orders based on tactical and operational requirements as DO-C9 (miscellaneous DoD) and DO-A7 (electronics and communications). Contracting officers are authorized wide discretion in utilizing these rates, on a case-by-case basis, under the current U.S. defense posture.

C. DX rated orders are not authorized under Defense Priorities and Allocations Rating Systems and must be coordinated with OSD for approval. OCSP is contacted and a procurement analyst is assigned to work DX rating issues with NRO and Office of the Secretary of Defense (OSD).

D. In coordination with the requiring activity, contracting officers must review the procurement and determine if a priority rating is warranted. If the dollar amount of the order is for less than one-half of the FAR simplified acquisition threshold, use of a priority rating is optional, provided that delivery of the needed items can be obtained in a timely fashion without the use of a priority rating. Each approved rated order must include the following:

(1) The appropriate priority rating (DO-C9 or DO-A7).

(2) A required delivery date or dates. Purchase or delivery orders must specify a required delivery date or dates and considered to be rated as of the date of their receipt by the supplier and not as of the date of the original procurement document.

(3) The written signature on a manually placed order, or the digital signature or name on an electronically placed order, of an individual authorized to sign rated orders for the person placing the order.

(4) A statement in each contract or order that reads "this is a rated order certified for national defense use, and you must comply with DoDM 4400.1-M" (Enclosure 1, reference f).

PART 5X12 ACQUISITIONS OF COMMERCIAL ITEMS

Subpart 5X12.1 - Acquisitions of Commercial Items - General

5X12.101 Policy

(a) For all acquisitions that exceed the Simplified Acquisition Threshold and use FAR Part 12 procedures, contracting officers must:

(i) Document in writing that the commercial product/service definition at FAR Subpart 2.101 has been satisfied.

(ii) Obtain approval at one level above the contracting officer when a commercial product/service determination relies on subsections (1)(ii), (3), (4), or (1)(2) of the commercial definitions at FAR 2.101.

Subpart 5X12.2 - Special Requirements for the Acquisition of Commercial Items

5X212.207 Contract type

(b)(iii) The DD/NGA re-delegated authority to the NGA Senior Procurement Executive (SPE) to approve the written determination of the contracting officer for use of time-and-materials and/or labor-hour contracts for the acquisition of commercial services as required at DFARS 212.207(b)(iii).

5X12.209 Determination of price reasonableness

5X12.209-90 Documenting price reasonableness

The contracting officer must review, approve, sign, and date price reasonableness determinations prior to award.

Subpart 5X12.3 - Solicitations Provisions and Contract Clauses for the Acquisition of Commercial Items

5X12.301-90 Waiver for the Use of Non-Standard Commercial Clauses

(a) Non-standard clauses or instructions incorporated into solicitations and contracts for commercial items in addition to those prescribed in FAR Subpart 12.3 and DFARS Subpart 212.3 and approved NGA local clauses and instructions shall not be used, unless the contracting officer can demonstrate that inclusion of such instruction or clause is deemed essential.

(b) Contracting Officers must request a waiver prior to including clauses in contracts for commercial items that are in addition to the required FAR and DFARS clauses and the approved NGA local clauses and instructions. Requests must include sufficient information to justify the waiver and must be certified by the OCS Division Chief prior to submission to the HCA for approval.

5X12.302 Tailoring of provisions and clauses for the acquisition of commercial items

(c) Tailoring inconsistent with customary commercial practice. Waivers must be requested, IAW DFARS 212.302(c), for tailoring of clauses inconsistent with customary commercial practices for the item being procured.

PART 5X13 SIMPLIFIED ACQUISITION PROCEDURES

Subpart 5X13.001 - Definitions.

“Component Program Manager” (CPM) for the NGA government purchase card program is the individual designated by the HCA who is responsible for daily purchase card operations. The CPM manages and ensures the integrity of the Agency card program.

“Agency/Organization Program Coordinators” (A/OPCs) are the individuals who manage and ensure the integrity of the card program for the installation (NGA East or West and remotely located accounts). A/OPCs prepare program reports, ensure the proper oversight and management controls are in place and working, ensure card holders and the approving official have current, written appointments. A/OPCs perform account maintenance, track the training (including refresher training) and ensure that the required training has been completed before issuing cards. A/OPCs provide business advice to cardholders and charge card officials. A/OPCs serve as the issuing bank’s point of contact, conduct compliance reviews, assist in dispute resolution, process card applications, maintain the required span of control, close accounts, ensure financial controls are established in account profiles, monitor and facilitate resolution of installation delinquency problems. Upon recommendation by the CPM and approval by the HCA, A/OPCs may also be granted procurement authority for cardholder and approving official appointments.

The HCA has delegated the Agency/Organization Program Coordinators (A/OPCs) with the authority to grant cardholders procurement authority for:

- (1) The acquisition of supplies and services not to exceed the micro-purchase threshold, as defined in the FAR.
- (2) The purchase of training and GSA Global Supply Stock Items not to exceed \$25K (FAR exempt).
- (3) Non-appropriated fund procurements, not to exceed \$5,000 (FAR exempt).

"Approving official" is an individual, appointed by the Agency, who reviews cardholders' activity, including the review of data in the purchase card automated system, and verifies that all transactions were for necessary Government purchases and IAW applicable procurement regulations.

"Cardholder" is an individual appointed by the A/OPC to process purchase card transactions.

Subpart 5X13.1 - Procedures

5X13.106 Soliciting competition, evaluation of quotations or offers, award, and documentation

5X13.106-3 Award and documentation

(b)(S-90) Determinations of price reasonableness must be reviewed, approved, signed, and dated by the contracting officer prior to award.

Subpart 5X13.2 - Actions at or Below the Micro-Purchase Threshold

5X13.201 General

(g) (S-90) The Special Emergency Procurement Authority (SEPA) authorizes certain purchase cardholders to have their micro-purchase purchase limit raised to \$20,000 per transaction for requirements that support contingency and humanitarian aid operations or to facilitate the defense against or recovery from nuclear, biological, chemical or radiological attack in the case of any contract to be awarded and performed, or purchase to be made, inside the United States.

(S-91) The HCA is the approval level for SEPA to individual cardholders. The following information must be provided by the cardholder's supervisor to be forwarded to the cognizant Agency Program Coordinator (APC) for initial review. The APC forwards the request to the Purchase Card Component Program Manager (CPM) who also performs a review, prior to submission to the HCA for approval:

(1) Cardholder name and office symbol.

(2) Cardholder supervisor's name and title.

(3) A statement that the request is for purchases having a clear and direct relationship supporting a contingency and humanitarian aid operation or to facilitate the defense against or recovery from nuclear, biological, chemical or radiological attack.

(4) A statement by the supervisor documenting discussion with the cardholder that the higher single transaction limit of \$20,000 only applies to purchases having a clear and direct relationship for the support of a contingency and humanitarian aid operation or the defense against or recovery from nuclear, biological, chemical or radiological attack and other transactions are subject to the regular single purchase limit of \$5,000.

(5) A certificate documenting the cardholder's successful completion of the Defense Acquisition University on-line course, CLC011, Contracting for the Rest of Us.

(S-92) The cardholder must notify their cognizant APC within 30 days following any transaction processed under SEPA. The APC will conduct an on-line review of the transaction in the automated purchase card system, within 60 days from the date of the transaction. Additionally, every six months, a physical review of all SEPA purchase card files must be reviewed by the cognizant APC for program compliance and to confirm with the cardholder that a valid need still exists for this authority.

Subpart 5X13.3 - Simplified Acquisition Methods

5X13.301 Government-wide commercial purchase card

(S-90) All NGA purchase card transactions must follow DoD guidance at DFARS 213.301.

(S-91) OCS divisions use the purchase cards to the greatest extent practicable for payment on an existing government contract, not as a purchase vehicle. The purchase card may be used as a payment vehicle in the following instances:

(a) Exceeding the micro-purchase level if an existing contract vehicle is already in place and the contract authorizes the purchase card for payment (also see the NGA SOP titled "Appointing NGA Ordering Officers" for further information on appointing Ordering Officers), or

(b) To place a task or delivery order if authorized in the basic contract, BOA, or BPA. GSA schedule orders may be placed orally if the conditions at DFARS PGI 208.406-1(2) are met.

(S-92) The NGA-approved purchase card automated system is used for recording, tracking, and reconciling of micro purchase card buys, ordering officer transactions (also see the NGA SOP titled "Appointing NGA Ordering Officers" for further information), and for training up to \$25,000 per transaction.

(S-93) The purchase card is tax-exempt and has three (3) dollar limitations.

(1) Single purchase limit. The delegation of authority for each cardholder sets the individual limit for any single purchase. A single purchase may include multiple items or services, provided the total does not exceed the single purchase limit.

(2) Thirty-day purchase limit. A 30-day purchase limit is established for each cardholder. This represents the limit on the total dollar amount of all single purchases during a 30-day period.

(3) Thirty-day office or division limit. A 30-day office limit is established on the total expenditures that may be made by all cardholders assigned to any one approving official (AO). The 30-day office limit is the aggregate of the purchasing authority of all cardholders assigned to that approving official.

(S-94) The dollar limitations may be changed temporarily or permanently. The single purchase limit is governed by the FAR. AOs must request changes to the dollar limitations. Limits should be based on projected office requirements and budgetary constraints. Written justification for the change is submitted to A/OPC. A purchase is rejected if any cardholder's authorized purchase limits are exceeded.

(S-95) Training requirements. Initial DoD online Government Purchase Card (GPC) and NGA training is required for all cardholders and approving officials. Online DoD GPC refresher training is required every two years for all cardholders and approving officials. In addition to the DoD Online GPC training, approving officials must complete DoD Certifying Officer Legislation Training for Purchase Card Payments (within two weeks of appointment; before certification) and every year thereafter. Additional information concerning the training is located in the NGA supplement to the DoD Charge Card Guidebook for Establishing and Managing Purchase, Travel and Fuel Card Programs, located on the OCS purchase card website. The CPM, in conjunction with the A/OPCs (NGA East and NGA West locations) develops and maintains NGA purchase card training materials, conducts training classes, and maintains the training records.

(S-96) Commercial purchase cards issuance. Upon successful completion of training, purchase cardholders must not make purchase card awards until the following are received:

(1) Cardholder appointment letter, executed by the A/OPC or the cognizant APC. If the cardholder is assigned to OCS, a contracting officer's warrant, signed by the SPE.

(2) Funding (an AF 4009 signed by a Financial Management Directorate (FM) certifying official).

(3) A purchase card issued in the cardholder's name.

(S-97) Individuals involved with the NGA commercial purchase card program must protect their purchase cards.

(S-98) Purchase cards are issued to individuals representing specific organizations. The cognizant APC is notified immediately by the AO of a transfer or reassignment of the AO function or if one of their cardholders is transferred or reassigned. Also, the AO must notify both the A/OPC and their APC if an unauthorized transaction occurred. The APC suspends or cancels the account depending upon the circumstances. If the account is suspended for fraud, the APC, in coordination with the A/OPC and HCA, provides written notification to the AO, purchase cardholder, and the office chief concerning the revocation of the cardholder's delegation of procurement authority. A copy of the notification is provided to OIG.

(S-99) Micro-purchase program management.

(1) The APC must maintain a listing of all cardholders, their associated AO, purchase card limitations, account information, and any other relevant data.

(2) The APC, SI, and FM conduct periodic reviews of the purchase card program. APCs review the accounts of non-OCS cardholders and AOs and conduct a review of each AO at least every 12 months to include a statistically random sampling of transactions processed by the cardholders assigned to the AO. Significant findings may warrant more frequent reviews. Unannounced checks and spot checks may be conducted at any time. Significant findings could result in mandatory training or subject an account to suspension or cancellation. OCS oversees the A/OPC review function and also conducts the review of cardholders and AOs within OCS.

(3) An AO should have a reasonable span of control over cardholders (no more than five to seven cardholders; the average number of transactions approved by an AO within DoD is ~16 per month) so that they can completely review the monthly billing statements and purchase documentation within five days after receipt of the billing statement. It is preferred, whenever possible, that the AO be the cardholder's direct supervisor. At a minimum, the AO must be an individual who is a higher pay band than the cardholder. AOs must perform surveillance reviews of 100% of their cardholder accounts at least every 12 months. Convenience check accounts must be reviewed by the AO quarterly. Surveillance review results, including corrective or disciplinary actions taken must be documented and retained on file. AOs must provide an annual self-certification of these reviews to the APC.

Subpart 5X13.5 – Simplified Procedures for Certain Commercial Items

5X13.501 Special documentation requirements

(a)(S-90) The approving officials for J&As under this subpart are the same as those identified in 5X06.304.

PART 5X14 SEALED BIDDING

Subpart 5X14.4 - Opening of Bids and Award of Contract

5X14.401 Receipt and safeguarding of bids

(S-90) The contracting officer or designee serves as the bid-opening officer, the person responsible for securing bids, and person responsible for the security of the bid box for assigned procurements.

5X14.407 Mistakes in bids

5X14.407-3 Other mistakes disclosed before award

(e) Authority to make the determinations under FAR 14.407-3(c) is delegated, without power of re-delegation, to one level above the contracting officer. OGC reviews the determination prior to submission for approval.

(S-90) Forward requests for determinations under FAR 14.407-3(a)(b) and (d), with recommendation by the OCS division chief, together with the documentation outlined in FAR 14.407-3(g), to OGC.

5X14.408 Award

5X14.408-2 Responsible bidder - reasonableness of price

(a) (S-90) The contracting officer must review, approve, sign and date determinations of price reasonableness prior to award.

PART 5X15 CONTRACTING BY NEGOTIATION

Subpart 5X15.3 - Source Selection

5X15.303 Responsibilities

(a) (S-90) The contracting officer is the SSA for NGA procurements with an estimated total amount of less than \$5M. The SSA for procurements with an estimated total amount of equal to or greater than \$5M is the program manager or other individual determined by the program manager's management. When the SSA is other than the contracting officer, the source selection decision is made in consultation with the contracting officer and OGC.

(S-91) The DoD Source Selection Procedures, located on the NGANet OCS website, provides a source selection framework for competitive acquisitions that exceed \$10M in value, including a roadmap through the source selection process from receipt of a proposal through contract award.

5X15.305-90 Proposal evaluation

(b) (S-90) When all proposals in response to a solicitation are to be rejected, OGC must review the contracting officer's determination prior to execution, and the OCS division chief is notified.

5X15.307 Reserved

5X215.371-5 Waiver

(b) The NGA Head of Contracting Activity (HCA) has delegated the waiver authority at DFARS 215.371-5(b) to the OCS Division Chief level. OCS Division Chiefs may not further delegate this authority.

(c) (S-90) OCS Division Chiefs are required to provide a copy of all waivers approved in accordance with DFARS 215.371-5(b) to OCSP at OCSPA>eam@nga.mil.

Subpart 5X15.4 - Contract Pricing

5X15.403 Obtaining certified cost or pricing data

5X15.403-3 Requiring data other than certified cost or pricing data

(a) (4) (S-90) The contracting officer prepares a memorandum for the file addressing the information in paragraphs FAR 15.403-3(a)(4)(i)-(iii) for HCA approval. The contracting office division or deputy division chief reviews the memorandum before submission to the HCA.

5X15.406 Documentation

5X15.406-1 Pre-negotiation Objectives

5X15.406-1 (a) (90) NGA Procedures for Resolving DCAA Contract Audit Recommendations

A. The following procedures shall be followed to resolve disagreements where the cognizant NGA contracting officer (CO) does not include significant audit report recommendations (excluding unsupported costs) from the Defense Contract Audit Agency (DCAA) in establishing CO pre-negotiation objectives.

B. For the purposes of this policy, disagreements exist where the CO, in the pre-negotiation objective plans to sustain less than 75% of the total recommended questioned costs in a DCAA audit report on a contractor proposal valued at \$10 million or greater. No disagreement exists under this policy where the CO sustains 75% or more of the questioned/supported costs in the pre-negotiation objective.

C. When disagreements occur, the CO shall discuss the basis of the disagreement with the Supervisory Auditor prior to negotiations. The CO shall document that discussion and the basis for disagreement in the pre-negotiation objective and in a written or electronic mail communication to the auditor prior to commencing negotiations. The approval of the pre-negotiation objective serves as confirmation of the discussion with DCAA and the basis for disagreement is documented and supported. The CO may proceed with negotiations upon approval of the pre-negotiation objective at a level above the CO.

D. In the case where the auditor does not agree with the CO, DCAA management may request a higher-level NGA management review of the COs decision to the Office of the NGA Senior Procurement Executive (SPE) at OCSFrontOffice@nga.mil. DCAA's request must be made within three (3) business days of receiving the cognizant COs written/electronic communication.

E. The cognizant NGA CO will document the disposition of the NGA SPE review in a memorandum for the contract file.

5X15.406-3 Documenting the negotiation

(a) (11) (S-90) The price negotiation memorandum must include documentation of price reasonableness and the principal elements of the negotiation stated in FAR 15.406-3.

The contracting officer must review, approve, sign, and date price negotiation memorandum prior to award of the contract instrument.

5X15.407-3 Forward pricing rate agreements

(S-90) Reopener Clause Downward Clause Adjustment ONLY. Contracting Officers (COs) may insert clause, 5X52.215-9000, Reopener Clause – Downward Adjustment ONLY, in negotiated cost-reimbursement solicitations and contracts when the CO anticipates extensive fluctuations in contractor rates as provided in their cost rate proposal. This clause may apply to contracts in which the contractor utilizes unapproved rates as part of their proposal and/or invoice submissions in parallel with submitting those rates to the Defense Contract Audit Agency (DCAA) for approval. The lag time to gain approval from DCAA could have significant impacts to the contract cost ceiling and reasonableness of fee. The reopener clause enables the CO to reopen discussions with the contractor regarding final NTE costs and associated fee. In addition, this clause allows the CO to negotiate and settle numerous open contract actions while protecting the Government's right to validate the final rates and make adjustments accordingly. Use of the clause requires deliberate care and should only be used in extraordinary circumstances involving high dollar value procurements. The rationale for the use of the clause must be fully set forth in the Price Negotiation Memorandum and approved at one level above the CO.

Subpart 5X15.6 - Unsolicited Proposals

5X15.604 Agency Points of Contact

(a) The Office of Contract Services, Policy and Acquisition Resources Division (OCSP) is the Agency point of contact to coordinate the receipt and handling of unsolicited proposals.

(b) OCSP may also receive unsolicited proposals from NGA's Capabilities, Component Acquisition Executive Office at IndustryEngagement@nga.mil and/or directly from OCSPA>eam@nga.mil.

5X15.606 Agency procedures

(a) Agency personnel must forward all unsolicited proposals to OCSP upon receipt. OCSP will track receipt, assign, and provide timely disposition of each proposal.

(b) The assigned CO shall perform the initial proposal review IAW FAR 15.606-1. If the proposal meets the requirements provided at FAR 15.606-1, the CO shall acknowledge receipt of the proposal to the offeror and process the proposal for evaluation. If the proposal is rejected, the CO shall inform the offeror of the reason for rejection. Copies of the acknowledgment or rejection shall be provided to OCSP.

5X15.606-2 Evaluation

(S-90) The CO assigned to process an unsolicited proposal IAW 5X15.606(a) will coordinate with the relevant technical organization for their evaluation of each unsolicited proposal IAW FAR 15.606-2. The technical organization submits the evaluation findings to the CO. The evaluation must contain a definitive statement, including any supporting documentation, regarding the recommended disposition of the action. The CO shall inform the offeror of the final disposition of their unsolicited

proposal. The CO must also provide the status of activities and copies of all correspondence to OCSP.

PART 5X16 TYPES OF CONTRACTS

Subpart 5X16.1 – Selecting Contract Types

5X16.102 Policies

(e) (S-90) For all contracts in excess of \$500,000, except for fixed-price contracts without cost incentives or any fixed-price contract for the purchase of commercial items, the costs of contractor and subcontractor employee compensation shall not exceed the cap on compensation prescribed by the Administrator of the Office of Federal Procurement Policy at <https://www.whitehouse.gov/omb/management/office-federal-procurement-policy/> unless an exception has been granted in accordance with FAR 31.205-6(p)(4)(iii).

Subpart 5X16.2 - Fixed-Price Contracts

5X16.203 Fixed-price contracts with economic price adjustment

5X16.203-4 Contract clauses

(a) When the contracting officer chooses to use a clause other than FAR 52.216-2, 52.216-3, 52.216-4, or any clause under FAR Subpart 16.203-4(d)(2), the replacement clause must be reviewed by OGC prior to insertion in the solicitation or contract.

5X16.207 Firm-fixed-price, level-of effort term contracts

5X16.207-3 Limitations

(e) Chief of the contracting office is the division chief or deputy.

Subpart 5X16.4 - Incentive Contracts

5X216.401 General

(1) Award-fee plans required in FAR 16.401(e) shall be incorporated into all award-fee type contracts. Follow the procedures at DFARS PGI 216.401(e) and in OCS/NGA Instruction 5030.1 when planning to award an award-fee contract.

5X216.401-71 Objective criteria

(1) Contracting officers shall use objective criteria to the maximum extent possible to measure contract performance. Objective criteria are associated with cost-plus-incentive-fee and fixed-price-incentive contracts.

(2) When objective criteria exist but the contracting officer determines that it is in the best interest of the Government also to incentivize subjective elements of performance, the most appropriate contract type is a multiple-incentive contract containing both objective incentives and subjective award-fee criteria (i.e., cost-plus-incentive-fee/award-fee or fixed-price-incentive/award-fee).

(3) See PGI 216.401(e) and NGA Instruction 5030.1 for guidance on the use of award-fee contracts.

5X16.405 Cost-reimbursement incentive contracts

5X216.405-2 Cost-plus award fee (CPAF) contracts

(S-90) ~~OCS~~/NGA Instruction 5030.1 provides a standard process for award fee evaluations, including uniform grading scales to ensure fair and consistent assessments of award fee contracts as well as adequate documentation of all award fee determinations.

5X216.406 Reserved

Subpart 5X16.5 - Indefinite-Delivery Contracts

5X216.504 Indefinite-quantity contracts.

5X216.504(c)(1)(ii)(D) Limitation on single award contracts

(i) (S-90) Reserved

(ii) (S-90) Reserved

(S-91) Optional References/Documentation: A determination template to award a single source indefinite-quantity contract with an amount estimated to exceed \$100M (including options) can be found on the OCS website library.

(S-92) Reserved

(S-93) The acquisition strategy team review is documented in the contracting officer's determination. The determination must address the factors of previously earned cost plus award fees, cash flow, government-contractor relationship, incentive considerations, and any negotiated consideration. The determination is not based solely on any one factor.

5X16.505 Ordering

5X16.505 (b)(8) Task-order and delivery-order ombudsman

The Agency Task and Delivery Order Ombudsman is designated by the NGA Deputy Director who is the delegated Head of the Agency for acquisition-related matters under the FAR and DFARS.

5X16.506 Solicitation provisions and contract clauses

5X16.506-90 Responsibility of Contracting Officer and Task/Delivery Order Ombudsman

A. Contracting Officer shall:

(1) Incorporate NARI clause 5X52.216-9001, Selection Factors for Award of Task/Delivery Orders in all solicitations and contracts when multiple awards are expected from a single solicitation.

(2) To the maximum extent possible review and respond to all questions regarding award of a task/delivery order.

(3) Forward to the Task/Delivery Order Ombudsman all concerns/complaints by a contractor contending fair consideration was not given for the award of a task/delivery order.

(4) Return protests not meeting FAR 16.505(a)(10) to the protestor along with a letter stating why the protest is not authorized. A copy of the letter shall be placed in the official contract file folder. Advise Task and Delivery Order Ombudsman that a complaint may be issued.

B. The NGA Task and Delivery Order (T&DO) Ombudsman shall review:

(1) Contractor complaints to ensure contractors are afforded a fair opportunity to be considered for award of task/delivery orders, consistent with the procedures identified in the contract.

(2) Concerns from any contractor to ensure contractors are afforded an opportunity to have their complaints heard and addressed appropriately.

(3) When the T&DO Ombudsman is contacted by a contractor with a complaint, the ombudsman, at minimum, shall take the following actions:

- a. Notify the SPE, the relevant Division Chief/Contracting Officer, and OSCP of the complaint.
- b. Investigate and interview the grieving contractor, the Contracting Officer, and relevant Agency personnel as appropriate, to determine the facts of the complaint.
- c. Ensure the awarding Contracting Office Division adhered to the federal regulation and agency policies for processing task/delivery orders.
- d. Issue a determination on the complaint validity to the contractor. Guidance and review from OGC, and SPE is obtained prior to issuing a determination.
- e. Include in the determination directions to the SPE to correct the inequity of the instant order and ensure equitable selection in future orders, if the complaint is determined to be valid.
- f. Maintain a log to track individual cases from receipt to disposition. Names are not recorded in the log if the interested parties require anonymity.

C. The ombudsman may request an AMR of orders, process, or the contracting office through the SPE if warranted.

Subpart 5X16.6 - Time and Materials, Labor Hour, and Letter Contracts

5X216.601 Time and Materials Contracts

5X216.601(d) Limitations

(i)(A) Approval of determination and findings for time-and-materials or labor-hour contracts.

(1) Base period plus any option periods is three years or less.

(i) The approval authority in NGA for the determination and findings required at DFARS 216.601(d)(i)(A)(1)(i) is the OCS Division Chief responsible for the contract action. This authority may not be delegated.

(2) Base period plus any option periods exceeds three years.

(i) The approval authority in NGA for non-commercial determination and findings required at DFARS 216.601(d)(i)(A)(2)(i) is the Head of the Contracting Activity. This authority may not be delegated.

5X16.602 Labor-Hour Contracts

The same applications and limitations that apply to Time-and-Materials contracts apply to Labor Hour contracts, including D&F requirements.

PART 5X17 SPECIAL CONTRACTING METHODS

Subpart 5X17.2 - Options

5X17.204 Contracts

(e)(S-90) The contracting officer must submit a written justification to the HCA to obtain approval to exceed the five-year limitation for service and supply contracts whether through the use of options or by extension of the contract term using other authorities (for example, FAR Part 6). Written justifications that exceed a 10-year limitation shall be sent to the head of the agency for approval. The contracting officer coordinates the justification with OGC to ensure no other statutes preclude a proposed extension. See DFARS 217.204(e)(i) for authority to establish an IDIQ with an ordering period for task orders or delivery orders (including for Information Technology) up to 5 years, with option periods provided in the contract up to 10 years.

5X17.206 Evaluation.

(a)

(1) All potential options (FAR 17.2) must be evaluated at the time of initial contract award. If not evaluated, the options cannot be exercised, including FAR 52.217-8, Option to Extend Services, without an approved Justification and Approval (J&A) for the use of Other than Full and Open competition in accordance with FAR Part 6.

(i) For evaluation purposes, the total contract value and period of performance shall consist of the base period plus any option periods, including FAR 52.217-8. (Note: The possible "up to 6-month extension" is not included in the contract period of performance and the pricing for the extension is not included in the awarded total contract value.)

(ii) The cost/price for all option periods will be delineated in Section B as a CLIN(s) except for FAR 52.217-8.

(2) The evaluation of any options, including FAR 52.217-8, will be documented in all acquisition documents (e.g., J&A, synopsis, solicitation evaluation language, proposal evaluation report, and price negotiation memorandum (PNM), etc.). The PNM/proposal evaluation documentation shall explain and confirm the base period plus option periods were evaluated and determined fair and reasonable at time of award. Additionally, the PNM/proposal evaluation documentation will address the evaluation of cost/price associated with the potential exercise of option period pursuant to FAR 52.217-8.

(3) By evaluating the option period contemplated under FAR 52.217-8, as well as the proposed pricing for all option periods and having found them to be fair and reasonable, the Government may unilaterally extend the contract up to 6-months, in any increment, before all option periods have been exercised or at the end of contract performance, with the following stipulations:

- (i) Cost/Price currently in effect in the contract at time of exercising FAR 52.217-8 will be utilized as they were determined fair and reasonable during initial evaluation of contract.
- (ii) The extension under the clause will utilize the active CLIN in effect at time of exercise of option.

(4) For solicitations and contracts containing FAR 52.217-8, the contracting officer shall insert language in Section H to address the utilization of FAR 52.217-8. The language should be substantially the same as the following:

Option to Extend Services. *The proposed cost/price for the base period and each subsequent option period, including FAR 52.217-8, was evaluated and deemed to be fair and reasonable during the evaluation of the initial contract. The evaluation considered the possibility that the option under FAR 52.217-8 could be exercised before all option periods have been exercised or at the end of contract performance for no more than a total of six months at the rates in effect at the time the option is exercised.*

(5) For solicitations and contracts containing FAR 52.217-8, the contracting officer shall include language in Section M of the solicitation to discuss how the six-month extension under FAR 52.217-8 will be evaluated.

Subpart 5X17.5 - Interagency Acquisitions under the Economy Act

5X17.502 Procedures

5X17.502-90 Funding documents and DD Form 448 MIPRs

Generally, MIPRs generated in PRISM are used to place an order pursuant to the Economy Act. Civilian Agencies may use or require a funding document other than the DD Form 448. The requesting office program manager for the Economy Act order prepares Economy Act procurement packages IAW information provided in the FAR, DFARS, FM MIPR Deskguide located on the FM NGANet website, and this instruction.

5X17.502-2 The Economy Act

(c) Requirements for determinations and findings.

(S-90) (1) The requiring activity prepares a D&F addressing the requirements at FAR 17.502-2. The requiring activity includes with the D&F any required supporting documents. Documents include, but are not limited to, a SOW, independent cost estimate documentation, or urgency of need justification. A template D&F for Acquisitions under the Economy Act is located on the NGANet OCS website.

(S-90) (2) Authority to approve an Economy Act D&F is:

(S-90) (i) The contracting officer where the servicing Agency is required to comply with the FAR in its contracting operations.

(S-90) (ii) The SPE if the proposed servicing Agency is not required to comply with the FAR in its contracting operations. The contracting officer must review the D&F prior to submission to the SPE.

5X17.502-2-90 Intelligence Community Interagency Acquisitions

Contracting officers must refer to the Intelligence Community Contracting Guide (ICCG) for IC-wide interagency acquisitions (Enclosure 1, reference ac).

5X17.505-90 Payment

When assessing the cost of obtaining supplies or services through an interagency agreement, NGA must consider any administrative fees charged by the servicing Agency as part of the total cost of the order and must document the decision to continue with the proposed acquisition in the supporting business case. The administrative cost of providing the supplies or services by traditional NGA contracting procedures are compared to the total cost through a servicing Agency in order to determine price reasonableness.

5X17.590 Transmission of requests for acquisition under the Economy Act

A. After preparation of the procurement package and execution of the Economy Act D&F, the program manager forwards a copy of the documentation to the contracting officer for approval. When approved, the approved D&F and the procurement package is forwarded to FM. FM certifies the commitment of funds.

B. Upon funds certification, the program manager forwards the MIPR, the original D&F, and the procurement package to the servicing Agency. The program manager retains a copy of all forwarded documents.

5X17.591 Receipt of Economy Act procurement requests

A. Program managers inform organizations wishing to send funding authority to NGA to:

Address the MIPR to the Financial Management Directorate, Financial Execution Division (FME), ATTN: Reimbursable Team, Mail Stop N71-FME, 7500 Geoint Drive, Springfield, VA 22150. (2) Include the name and telephone number of the NGA program manager on the face of the request.

B. As soon as possible, but not later than 30 days after receipt of an Economy Act procurement request, FM will ensure formal acceptance or rejection of the MIPR or other funding document. Acceptance of an Economy Act request takes place only after coordinating with the NGA program manager and contracting officer.

(1) Upon receipt of the funding document, FM personnel fax or hand-carry the MIPR and MIPR acceptance form or other funding document and acceptance to the program manager identified on the MIPR.

(2) If the funding document is to be accepted, the program manager, or designee, signs the acceptance, identifies the name of the contracting officer or contract number, attaches the requesting Agency's contract requirements (the SOW) if that information is

not included with the document, and faxes or hand-carries the acceptance to FME. If the funding document is to be rejected, the program manager must notify FME.

(3) FME personnel obtain concurrence (initials) from the contracting officer certifying the contracting officer's ability to award the contract action within the proper time frame and the contracting officer's agreement with the document acceptance.

(4) FME personnel send the original document acceptance to the originating Agency, and provide the original funding document and a copy of the acceptance to OCS.

C. When the contract action is executed, a copy is provided to FME personnel, who distribute copies to the originating Agency and the program manager.

D. MIPRs that are to be accepted on a reimbursable basis require funding reimbursable authority. Program managers contact FM for assistance prior to making agreements with other Agencies that require NGA to accept MIPRs on a reimbursable basis.

Subpart 5X17.7 – Interagency Acquisitions: Acquisitions by Nondefense Agencies on Behalf of the Department of Defense

5X17.703 Policy

(e) Waiver. The Director, Contract Policy, in the Office of the Director, Defense Pricing and Contracting re-delegated the authority to approve the written determination required at FAR 17.703(e) to the NGA Senior Procurement Executive. See DPC memorandum dated 17 June 2019, Subject: Re-delegation of Authority Under Section 801 of the National Defense Authorization Act for FY 2008 entitled, "Internal Controls for Procurements on Behalf of the DoD by Certain Non-Defense Agencies."

SUBPART 5X217.7-- INTERAGENCY ACQUISITIONS: ACQUISITIONS BY NONDEFENSE AGENCIES ON BEHALF OF THE DEPARTMENT OF DEFENSE

5X217.770 Procedures

For orders of supplies and/or services against non-DoD contracts (including GSA FSS orders, GWACs, etc.) and for each call or order issued against a BPA issued against a GSA FSS, the contract file must reflect the contracting officer's written determination, with support from the program manager, requiring activity, and FM. The determination must include the fact that the order is in the best interest of NGA. The contracting officer should consider such factors such as small business opportunities. In addition, the determination must reflect the contracting officer's consideration of the factors listing at DFARS 217.770(a) through (d).

Subpart 5X217.74 - Unfinalized Contract Actions (UCAs)

A. The following procedures are required when processing a UCA as defined by DFARS 217.7401. Procedures for processing change orders are located at 5X43.2. UCAs may be letter contracts, orders, or contract modifications for work outside the scope of the contract. Additional coverage specific to letter contracts is located at FAR 16.603 and DFARS 216.603. This subpart does not apply to change orders and changes under the changes clause, as they are not unfinalized contract actions IAW DFARS 217.7401(a)(3).

B. UCAs are undesirable contracting vehicles that present enormous cost and performance risk to the government and exist for use only to satisfy emergent, urgent, and unusual operational requirements. Accordingly, DoD agencies are required to report UCAs and Unpriced Change Orders (UCOs) of \$5M or more semi-annually to OUSD (A&S).

5X217.7403-90 Definitions

Out-of-scope change - an increase or decrease in the scope of work of a contract that is considered outside the scope of the contract on which a contract is based, *and which requires a change in the contract cost or price.

*Note: Scope changes that result in changes to contract price or cost may still be within the general scope of the contract and executed unilaterally as change orders. (See procedures at 5X43.2)

Undefinitized contract action - a contract action for which the contract terms, specifications, or price are not agreed upon before performance is begun under the action.

Letter contract - a preliminary written contractual instrument that authorizes the contractor to begin immediately manufacturing supplies or performing services. A letter contract may be used when: (1) The Government's interests demand that the contractor be given a binding commitment so that work can start immediately; and (2) Negotiating a definitive contract is not possible in sufficient time to meet the requirement (See guidance at FAR 16.603)

5X217.7403-90 Policy

(a) Undefinitized contract actions may be issued only on an exception basis (i.e., unusual, emergent and compelling operational urgency), and program offices must ensure that NGA liabilities and commitments are minimized. When the use of an undefinitized contract action is required, the work authorized by the action shall be limited to the minimum amount of severable effort required to satisfy urgent program requirements unless the HCA approves in writing that including non-urgent requirements is consistent with good business practices and in the best interest of the United States IAW DFARS 217.7404-1(b).

(b) The contract file for each UCA shall be documented with an HCA-approved Determination to Issue Undefinitized Contract Action and all supporting documentation to justify issuance and include a Government estimate to support the action. The Program Manager or requiring activity shall provide the substance of the justification.

(c) Contracting officers shall take appropriate steps to ensure that UCAs:

- (1) Are in compliance with the Competition in Contracting Act (CICA);
- (2) Avoid the use of bundling;
- (3) Are not within the scope of an existing contract (otherwise would use a Change Order); and
- (4) Are only used when a UCA is the only appropriate vehicle to satisfy *unusual, emergent, critical, operational requirements*.

5X217.7403-91 Procedures

In order to execute a UCA, personnel within the Program and Contracting Offices are required to complete the following as specified:

A. Program Office.

The Program Manager or COR for the requirement shall provide the Contracting Officer with a Purchase Request (PR) package including:

(1) A copy of a certified funding document (see Enclosure 3 of NGAM 7210.2 for funding rules) (enclosure 1, reference x).

(2) Prepare a Determination for Approval to Issue an Undefined Contract Action for approval by the HCA regardless of dollar value.

(3) Copies of internal NGA board approvals as applicable – For example, the NGA Configuration Control Board (NCCB).

(4) A copy of a detailed Statement of Work delineating the program requirement, quantities, item description and delivery schedule in sufficient detail to support a request for a proposal from the contractor.

(5) A proposed definitization schedule for the UCA.

(6) If required IAW FAR 6.302, include the required substance for a Justification & Approval (J&A) for Other Than Full & Open Competition.

B. Contracting Office.

The Contracting Officer shall:

(1) Provide required Determinations & Findings and Justifications & Approvals IAW applicable FAR/DFARS/NARI sections and attach to the Determination to Issue UCA as supporting documentation prior to HCA approval required at DFARS 217.7404-1.

(2) Unless precluded by the urgency of the requirement, request a proposal from the contractor adequate to support negotiation of a definitized contract within a 180-day schedule*. In the event initial 180-day schedule will be exceeded, the Contracting Officer shall request an extension in coordination with the Program Manager, for approval by the HCA. The request shall be submitted by no later than 30 days prior to the original definitization completion date. The request shall include a justification for the extension, a revised definitization schedule, and a statement concerning the impact to the mission if the request is not approved. The approved request for extension and supporting documentation shall be contained in the contract file.

*Note: 180 days is the maximum length of time allowed to definitize. Contracting officers are encouraged to minimize the time between UCA execution and definitization in order to reduce contract cost and minimize risk to the government.

(3) Establish a Not-To-Exceed (NTE) ceiling price for the UCA that is sufficient to cover final definitized price for the action. The Contracting Officer shall ensure that funding obligations not exceed the threshold delineated in DFARS 217.7404. In the event the estimated ceiling price reflected in the request to issue a UCA is significantly understated, the Program Office shall prepare and provide the Contracting Officer with

an amended Request that will be approved by the HCA. The amendment must provide the rationale for exceeding the ceiling price and be approved prior to final definitization of the UCA. The amended request shall also be part of the contract file.

(4) In the instance that a negotiation impasse for definitization of the action is reached and other efforts have been exhausted, the Contracting Officer shall request approval from the HCA to make a unilateral determination concerning a reasonable profit or fee IAW DFARS 217.7404(b) and 252.217-7027. The request and approval shall be contained in the contract file.

(5) Upon completion of negotiations, prepare a bilateral modification to definitize the UCA.

C. Undefinitized Contract Action Tracking -- The OCS Policy Analysis & Guidance group (OCSP A&G) will assign a unique tracking number for ALL undefinitized contract actions. The Undefinitized Contract Action/Unpriced Change Order (UCA/UCO) Log maintained in OCSP A&G shall be used to track all progress. The contracting officer is responsible for keeping their information in the UCA/UCO Log current by transmitting updates and other relevant information to the OCSP A&G group as it occurs. The OCSP A&G group is responsible for maintaining the log and ensuring this log contains current information regarding definitization schedules and other required information, as provided by the contracting officer. The status of all open undefinitized contract actions will be presented to OCS leadership as part of regular OCS metrics reporting.

Subpart 5X217.78 - Reserved.

PART 5X19 SMALL BUSINESS PROGRAMS

Subpart 5X19.2 - Policies

5X19.201 General policy

(d) (8) The Director, Office of Small Business Programs (D/OSBP) appoints the division Small Business Program Specialists for the NGA contracting offices. The division Small Business Program Specialists report directly to the Office of Small Business Programs (OSBP) for these duties. The SBP Specialists' supervisor obtains input from the OSBP on the specialist's performance.

(10) Contracting officers must complete a DD Form 2579, Small Business Coordination Record, for all contract actions over \$10,000 which are not total small business set-asides; contract actions greater than the SAT including small business set-asides; or orders placed against a GSA Schedule, utilizing the dollar levels mentioned. The DD Form 2579 must include a source list, market research and other pertinent documents as applicable, such as the Justification & Approval (J&A). The source list indicates the status of each source, such as a large, small, or small disadvantaged business, a Section 8(a) contractor, or an educational institution, small women-owned, HUBZone, or military service-disabled veteran business, and whether the source is the original manufacturer or reseller. Submit the DD Form 2579 package to the OSBP to the attention of SmallBusiness2@nga.mil for review prior to issuance of the solicitation or contract modification. The OSBP will review and respond no later than five working days after receipt of the package. If the OSBP recommendations are not accepted, the Contracting Officer shall document the contract file as required in FAR 19.202.

(S-90) In cases where acquisitions of supplies or services are used to facilitate defense recovery from terrorism or nuclear, biological, chemical, or radiological attack, the threshold is \$15,000.

5X19.202 Specific policies

5X19.202-1 Encouraging Small Business Participation In Acquisitions

(e) (1) (iii) The contracting officer must provide information relative to the justification of bundling required by FAR 7.107, including substantial bundling, to the OSBP prior to releasing the notification to the SBA procurement center representative.

5X19.202-90 Agency Policy

(a) The Office of Small Business Programs (OSBP) is responsible for the management and oversight of the small business procurement process across NGA to include support to the various acquisition boards. The Director, Office of Small Business Programs (OSBP) reviews and makes recommendations on acquisitions with a total value at or above \$8 million.

(b) See NARI 5X07.1—Acquisition Planning for additional information on contents and approval of written acquisition plans, including dollar thresholds for coordinating the acquisition strategy/plan with the OSBP.

Subpart 5X19.7 - The Small Business Subcontracting Program

NGA uses the Intelligence Community Electronic Subcontracting Reporting System (IC eSRS), a web-based system that allows the Contracting Office, OSBP, and other authorized users to review and track contractor approved subcontracting goals and dollars negotiated under a contract. It also allows the Contracting Officer (CO) and the OSBP insight into any goals not being met and recovery actions for meeting them. The [CO](#) must require prime contractors and their subcontractors to report subcontracting plans to IC eSRS; NGA requires the SF 294, Subcontracting Report for Individual Contracts, be submitted electronically to the CO IAW FAR Clause 52.219-9 Alternate III, Small Business Subcontracting Plan. COs are required to upload the report to the contract file in ECF. The initial report should be filed in ECF Folder B12 and quarterly reports should be filed in ECF Folder D6. (Reference The Office of Small Business Programs and Office of Contract Services IC eSRS Reporting SOP, dated 28 February 2022)

5X19.705-4-90 Reviewing the subcontracting plan

A. If a subcontracting plan is required to be submitted as part of the proposal, the Contracting Officer shall complete and attach the NGA Small Business Subcontracting Plan Review Checklist, located on the OCS Webpage, upon receipt of the proposal and prior to submission to the OSBP.

B. The OSBP will review the subcontracting plan and provide the Contracting Officer with written advisory comments on a Subcontracting Plan Review document no later than five working days after receipt of the plan. In addition, the Contracting Officer should review the contractor's past performance with respect to meeting subcontracting goals. If the OSBP finds the subcontracting plan to be deficient, the Contracting Officer should discuss the advisory comments with the primary contractor. The primary

contractor should revise and resubmit the subcontracting plan. Upon receipt of the revised plan, the Contracting Officer will attach an OSBP Subcontracting Plan Checklist to the plan, indicating the plan has been revised, and submit to the OSBP for review. The Contracting Officer will make the final determination regarding the acceptability of the subcontracting plan. The Contracting Officer shall provide a final version of the subcontracting plan to the OSBP.

5X19.708-91 Contract Clause (Small Business Goals)

(a) Insert clause 5X52.219-9002, Small Business Goal, in all NGA solicitations and contracts, under DoD authority containing FAR Clause 52.219-9, Small Business Subcontracting Plan, that offer subcontracting possibilities, are expected to exceed \$750,000, and are required to include FAR clause 52.219-8, Utilization of Small Business Concerns.

(b) NGA large business contractors shall report subcontracting achievements monthly for assessment during the Program Management Review (PMR) process as required IAW FAR Clause 52.219-9, Para(d)(10)(ii). The PMR leadership expects to review subcontracting achievements in order to monitor compliance with the negotiated subcontracting plan. The PowerPoint template entitled, "Program Small Business Performance," is provided as NARI Form 5X53.219 and shall be included in contracts for reporting purposes.

(c) Subcontracting goals shall be reviewed and coordinated with the Small Business Program Office prior to issuance of solicitation and execution of the contract.

(d) If a contract is awarded with Small Business goals that are less than the goals assigned by the Department of Defense (<https://www.acq.osd.mil/osbp/gov/sbProgramGoals.shtml>), the Contracting Officer shall provide rationale/justification for the non-compliance.

PART 5X22 APPLICATION OF LABOR LAWS TO GOVERNMENT ACQUISITIONS

Subpart 5X22.1 - Basic Labor Policies

5X22.101 Labor relations

5X22.101-1-90 General

Contracting officers must coordinate all actions involving contract labor issues with the labor advisor.

5X22.103 Overtime

5X22.103-4 Approvals

(a) The individual at a level above the contracting officer is the designated official for approving overtime premium pay at Government expense. All approvals must be written and documented in the contract file.

Subpart 5X22.4 - Labor Standards for Contracts Involving Construction

5X22.406 Administration and enforcement

5X22.406-8 Investigations

(a) Before initiating an investigation, the contracting officer must promptly notify the labor advisor and OGC. A plan of action is developed jointly by the contracting officer, the labor advisor, and OGC IAW DFARS 222.406-8. The investigator's report, prepared IAW DFARS 222.406-8(a)(iii), is submitted to the contracting officer for review and development of the contracting officer's report.

(d) Contracting officer's report. The contracting officer's report must be reviewed by OGC, then forwarded through the NGA labor advisor to the SPE.

Subpart 5X22.8 - Equal Employment Opportunity

5X22.805 Procedures

(a) (2) (S-90) A list of regional offices nationwide is available at https://ofccp.dol-esa.gov/preaward/pa_reg.html.

(a) (4) (S-91) The contracting officer must check the Office of Federal Contract Compliance Programs (OFCCP) National Pre-award registry at https://ofccp.dol-esa.gov/preaward/pa_reg.html#search. This must be completed at least 30 calendar days prior to awarding any contract and subcontracts with amounts of \$10M or more.

Subpart 5X22.10 - Service Contract Act of 1965, as Amended

5X22.1001-90 Definitions

The Chief of OCSP, or designee, acts as the Agency Labor Advisor.

Subpart 5X22.15 - Prohibition of Acquisition of Products Produced by Forced or Indentured Child Labor

5X22.1503 Procedures for acquiring end products on the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor

(e) The contracting officer must refer any suspicion of use of forced or indentured child labor to OGC and notify the SPE, labor advisor, and OIG at the same time.

Subpart 5X22.20 – Reserved

PART 5X24 PROTECTION OF PRIVACY AND FREEDOM OF INFORMATION

Subpart 5X24.2 - Freedom of Information Act

5X24.203-90 NGA procedures

Pursuant to the Freedom of Information Act (FOIA), Government Agencies must respond to a FOIA request within 20 working days of receipt of a written request. Requests are referred to OGC in compliance with NI 5750.2R7 (Enclosure 1, reference v).

PART 5X25 FOREIGN ACQUISITIONS

Subpart 5X225.74 - Deleted

PART 5X26 OTHER SOCIOECONOMIC PROGRAMS

Subpart 5X26.1 - Indian Incentive Programs

5X26.103 Procedures

(f) The contracting officer must prepare a request for funding for signature by the SPE. The Small Business Program Office reviews the request prior to submission to the SPE.

PART 5X27 PATENTS, DATA AND COPYRIGHTS

Subpart 5X27.2 - Patents and Copyrights

5X27.203 Security requirements for patent applications containing classified subject matter

5X27.203-6 Clause for Government waiver of indemnity

The SPE is authorized to exempt U.S. patents from the patent indemnity clause. The request for approval is prepared jointly by the COR and the contracting officer with concurrence from OGC. The request must explain why an exemption to the patent indemnity clause is in the Government's best interest. The request is forwarded through the OCS division chief to the SPE for approval.

5X27.204 Patented technology under trade agreements

5X27.204-1 Use of patented technology under the North American Free Trade Agreement

(b) OGC has cognizance of patent matters.

Subpart 5X27.3 - Patent Rights under Government Contracts

5X27.304 Procedures

5X27.304-1 General

5X27.304-1-90 Processing appeals of exceptions and greater rights determinations

The contracting activity must refer any appeal of an exception or of a greater rights determination to OGC. A copy of the appeal is also sent to the SPE. OGC processes the claim, conducts fact-finding, and prepares a final determination for SPE approval.

5X27.305 Administration of patent rights clauses

5X27.305-3-90 Follow-up by Government

(S-90) (b) Contracting Officers must forward all interim and final invention reports and notification of all subcontracts for experimental, developmental, or research work to OGC. The contract file must contain a copy of all reports.

Subpart 5X227.70 - Infringement Claims, Licenses, and Assignments

5X227.7006 Investigation and administrative disposition of claims

(a) (S-90) NGA personnel must refer to OGC any direct or indirect charge or threat of patent, trademark, or copyright infringement received by any contracting activity. The contracting officer sends a copy of all claims to the SPE. OGC must process the claim and prepare a final determination for SPE approval.

Subpart 5X227.71 - Rights in Technical Data

5X.227.7102-90 Commercial items, components, or processes

Requirements for delivering technical data related to standard commercial items, components, or processes should be kept to the absolute minimum consistent with the purpose for which the items are being procured. Normally for commercial items, a vendor's manual for installation, operations, or maintenance and repair or form, fit, and function data are adequate.

5X227.7102-3 Contract clause

5X227.7102-3-90 Access to contractor data

A. All solicitations and contracts that require Government contractors to access a third party's data or software for the performance of a Government contract must include the language contained in the NGA PRISM template 5X52.209-9003 - Protection of information and nondisclosure agreements.

B. All solicitations and contracts that require Government contractors to access a third party's data or software for the performance of a Government contract must include DFARS clause 252.227-7025.

5X227.7103 Non-commercial items or processes

5X227.7103-5-90 Government rights

The contracting officer must consult with OGC prior to executing any license agreement, standard or negotiated.

Subpart 5X227.72 - Rights in Computer Software and Computer Software Documentation

5X227.7203 Noncommercial computer software and noncommercial computer software documentation

5X227.7203-5 Government rights

The contracting officer must consult with OGC prior to executing any license agreement, standard or negotiated.

Subpart 5X27.90 - Unauthorized Use of NGA Name, Seal, and Initials

5X27.9000 Unauthorized use of NGA name, seal, and initials

A. 10 U.S.C. Section 425 restricts the use of the NGA name, seal, and initials, and provides remedies for unauthorized use by contractors. NGA procurement personnel must be aware of these restrictions.

B. The NGA PRISM template at 5X52.227-9000, Unauthorized Use of NGA Name, Seal, and Initials, implements the provisions of 10 U.S.C. Section 425 and must be included in full text in all solicitations, contracts, orders against non-NGA contracts, and agreements funded over the simplified acquisition threshold.

5X227.9001 Activities that affect U.S. persons

Contracting officers must incorporate the language contained in NGA PRISM template (5X52.227-9001) "Activities that Affect U.S. Persons" into solicitations and contracts for goods and services to be procured from academic institutions and contracts with commercial concerns excluding routine approved activities such as rentals and

maintenance, unless a written determination is obtained from D/NGA that sponsorship must be concealed.

PART 5X28- Bonds and Insurance

Subpart 5X28.3 - Insurance

5X28.301-90 Insurance PRISM Template

Contract specialists and contracting officers must use PRISM Template 5X52.228-9000, "NGA: Insurance," with FAR clause 52.228-5, "Insurance – Work on a Government Installation." The contractor shall acquire and maintain during the entire performance period of this contract, insurance of at least the following kinds and minimum amounts as set forth in the clause.

PART 5X31 CONTRACT COST PRINCIPLES AND PROCEDURES

Subpart 31.2 Contracts with Commercial Organizations

5X31.205 Selected Costs

5X31.205-6 Reserved

PART 5X32 CONTRACT FINANCING

Subpart 5X32.0 - Scope of Part

5X32.006 Reduction or suspension of contract payments upon finding of fraud

5X32.006-1 General

(c) The NGA SPE is delegated all "Agency head" responsibilities delineated in FAR 32.006.

5X32.006-2 Definition

The NGA remedy coordination official is NGA's General Counsel.

5X32.006-3 Responsibilities

(a) When there is substantial evidence the contractor's request for advance, partial, or progress payments is or appears fraudulent, the contracting officer must immediately notify the SPE, OIG, and OGC.

5X232.006-5 Reporting

OGC must prepare and submit the annual report required by DFARS 232.006-5. OGC coordinates the report with the SPE.

Subpart 5X32.2 - Commercial Item Purchase Financing

5X32.202 General

5X32.202-1 Policy

(d) Unusual contract financing provisions are coordinated with the payment office, the Defense Contract Management Agency (DCMA) Administrative Contracting Officer (ACO) if DCMA will be administering the contract, and OGC prior to submission to the HCA for approval.

5X32.205 Procedures for offeror-proposed commercial contract financing

(a) The evaluation of contractor-proposed financing terms and determination of which offer is in the Government's best interest must be conducted in coordination with the DCMA ACO or Defense Contract Audit Agency auditor if available.

Subpart 5X32.4 - Advance Payments for Non-Commercial Items

5X32.402 General

(e)(1) Prior to providing advance payments, the contracting officer must obtain approval from the SPE.

5X32.409 Contracting officer action

5X32.409-1 Recommendation for approval

The contracting officer must prepare the information at FAR 32.409-1 and coordinate the request through the division chief, OGC, and FM before submission to D/OCS for approval.

5X32.409.2 Recommendation for disapproval

The contracting officer must prepare the information at FAR 32.409-2 and submit to the division chief for review and concurrence or non-concurrence.

Subpart 5X32.5 - Progress Payments Based on Costs

5X232.590 Progress payment distribution

A. Contracting officers who administer progress payments must provide progress payment distribution instructions in Section G of the contract to the contract paying office for fixed-price contracts other than firm fixed price funded with multiple appropriations awarded after 31 August 1998.

B. Distribution instructions must include sufficient information to enable the paying office to distribute progress payments from each appropriation funding the contract in proportions that reasonably reflect the work performance on the contract.

C. A single appropriation may be included in more than one line of accounting data and thus be identified by more than one accounting classification reference number (ACRN). When providing distribution instructions to the paying office, the contracting officer must further distribute payment amounts by ACRN. ACRN-level distribution is ordinarily on a pro-rata basis, unless the contracting officer determines that another basis is appropriate. Distribution instructions for research and development contracts will assume that contractor work is performed using the earliest fiscal year funding first unless there is information available to the contrary.

D. Contracting officers must ensure that billing by contractors is by ACRN.

E. Contracting officers must coordinate with the FM DoD Federal Payment Center (FPC) or DCMA and the FM Defense Finance and Account Service liaison team to determine the best instructions for progress payment distribution.

Subpart 5X232.6 - Contract Debts

5X232.670 Transfer of responsibility for debt collection

Contracting officers must coordinate with FMF regarding debt collection for overpayments or erroneous payments made to a contractor. Contractor payments for overpayments must be submitted to FMF, mail stop J-8, 3838 Vogel Road, Arnold, MO 63010. Repayments must indicate the contract number and the line items related to the repayment. A cash collection voucher, DD Form 1131, must be prepared to document the repayment. The original is submitted to FMF and a copy must be filed in the contract file.

5X232.671 Bankruptcy reporting

Contracting officers must coordinate with OGC on the receipt of any claims in bankruptcy, insolvency, or in proceedings for reorganization or arrangement.

Subpart 5X32.7 - Contract Funding

5X32.702-90 Policy

In addition to appropriate provisions and clauses, contracts that are awarded subject to availability of funds (SAF) must include the letters "SAF" directly after the accounting and appropriation data or substitute "SAF" for the data.

5X32.703 Contract funding requirements

5X32.703-90 National Security Agency (NSA) fund cite

All contracts and orders issued with the NSA fund cite (including those that are partially funded by the NSA fund cite) must list NSA as the paying station. All modifications utilizing the NSA fund cite must list the same paying station designated on the basic contract/order. The NSA paying station is S18119.

5X32.703-91 De-commitment of funding documents

For procurement actions regarding either funding de-commitment or cancellation, contracting officers are required to first coordinate the action with the requiring activity. Upon guidance from the requiring activity, the contracting officer must use the Award Notification and De-commitment of Funds Form, located on OCS's Homepage on both the NGANet and SBU. In the event that no contract award is processed and the procurement is cancelled, the de-commit balance on the form must equal the total of the funding documents. The form must be signed by the contracting officer, prior to submission to FME.

5X32.703-92 Adjustments to cancelled DoD appropriations

A. Contracting officers must ensure that all modifications that include adjustments to cancelled appropriations accounts are consistent with policy and procedures in DoD 7000.14-R, Volume 3, Chapter 10 (Enclosure 1, reference c).

B. All modifications that include adjustments to closed appropriations accounts must be supported with contract file documentation sufficient to establish the adjustments are legal, proper, and received supervisory review. The modifications must also have written approval by the FM account manager.

Subpart 5X32.9 - Prompt Payment

5X32.905(b)(S-90) Content of invoices

Local clause 5X52.232-9001 is incorporated into NGA contracts in accordance with NGA Global Contract Modification A_COVID-19_1 dated 4/28/2020. This clause is applicable to CPFF/LOE, CPAF/LOE, T&M, LH, and FFP/LOE contracts performed in a Government-approved facility. The Government will not reimburse contractors for non-labor related charges under the CARES Act or for leave paid for employees that were not in a ready state. All non-labor costs, and all costs associated with other contract types or situations, may be addressed through the applicable Request for Equitable Adjustment procedures.

5X32.905(e)(S-90) Payment Documentation and Process

A. Except for Foreign Military Sales (FMS) acquisitions, all National Geospatial-Intelligence Agency (NGA) contracts are required to be paid through the Federal Payment Center (FPC) that utilizes the GEO-F financial system. The local clause 5X52.232-9000, Submission of Invoice- Federal Payment Center (FPC), shall be incorporated in all solicitations and contracts issued on or after 1 October 2012 when the payment office is the FPC.

B. If the payment responsibility is delegated to the Defense Finance and Accounting Services (DFAS) for a reason other than acquiring FMS, the Contracting Officer shall prepare a Determination and Findings (D&F) that provides rationale/justification for the decision. The D&F is to be staffed for concurrence by the OCS Division Chief and approval by the OCS Group Chief. Use local clause (ALTERNATE I) 5X52.232-9000, Submission of Invoice DFAS, in lieu of 5X52.232-9000, Submission of Invoice Federal Payment Center (FPC), when DFAS is the payment office.

C. When issuing Cost Reimbursement, Time and Materials, or Labor Hour contracts; or a contract containing a contract line item(s) (CLIN(s)) that is cost reimbursement, time and materials, or labor hours, Contracting Officers must add local clause 5X252-242-9000, Approving Payments (Cost Reimbursement, Time and Materials, and Labor Hour), as prescribed at 5X242.803 (b) (S-90).

PART 5X33 PROTESTS, DISPUTES, AND APPEALS

Subpart 5X33.1 - Protests

5X33.102 General

5X33.102-90 Agency point of contact

OGC is the designated NGA point of contact with OSD, a court of competent jurisdiction, and the Comptroller General concerning protests against a solicitation for offers for a proposed contract, a proposed award, or the award of such a contract.

5X33.102-91 Agency Coordination

Upon receipt of a protest (Agency, GAO, U.S. Court of Federal Claims, or SBA), the Contracting Officer shall immediately provide a copy of the official protest document to the OGC (include the attachments), HCA and OCSP.

The copy of the protest document and the following information is to be provided to OCSP via email to [OCSP A&G Team Protest@nga.mil](mailto:OCSP_A&G_Team_Protest@nga.mil).

A. Protest Venue (Agency, GAO, U.S. Court of Federal Claims (COFC), or SBA)

- B. Program/Title of Acquisition
- C. Directorate or Agency Element/Customer
- D. Contracting Officer/Contract Specialist
- E. OGC POC
- F. Solicitation No., Contract No., and Delivery Order No. (if applicable)
- G. RFP Issue Date/Award Date
- H. Estimated Value/Contract Value (including applicable options)
- I. Awardee
- J. Protestor
- K. Basis of Protest
- L. Date of Stay or state rationale why stay not implemented
- M. Date Protest Filed
- N. Date HCA approved release of data or date HCA approved release of Agency Protest decision
- O. Date Documentation sent to protest venue, or date decision is sent to Protesting Contractor for Agency-level protest
- P. Date Contracting Officer/Division Chief determined protest file folder compliant
- Q. Estimated or Actual Date of Final Decision
- R. Final Decision
- S. Comments

The Contracting Officer is responsible for providing updated information regarding open protest actions as the status of the above information changes to OCSP via email to OCSP_A&G_Team_Protest@nga.mil.

OCSP shall track protest by calendar year and provide a tracking number (2 digit Calendar Year – A, G, C, or S- XXX; A=Agency; G=GAO; C=COFC; S=SBA). This tracking number is to be utilized for each protest filed (initial and supplements). The tracking number will be noted on all documents (routing sheet, letter, memorandums, etc.) associated to the respective protest. Each protest, regardless of type, will be logged and tracked from receipt through final decision.

On a monthly basis, the Division Chiefs with ongoing protests shall ensure the OCS Protest database contains the most current and accurate status throughout the protest process. Also, the Division Chiefs shall ensure protest file folders and documents are complete and compliant with federal and agency regulations.

On a calendar year basis, OCSP will review protest procedures to identify improvements to the procurement-protest process, identify and correct problems in the process leading to protests, and ensure compliance with applicable procurement-protest policy and regulations. Also, OCSP will collect data from the Divisions to support a report on protest activity that will be prepared and provided to the Senior Procurement Executive (SPE) forty-five days after calendar year end.

5X33.103 Protests to the Agency

(a) (S-90) Reference. Once the grounds of the protest are ascertained, those grounds must be thoroughly considered to evaluate the merit. If the protest is found to have merit, a determination as to what corrective action is appropriate is made. The

contracting officer prepares a statement of facts. An NGA position is developed by the contracting officer, in coordination with OGC, within 20 working days of receipt of the protest. The HCA must approve the protest decision, prior to the signature and issuance by the contracting officer. The contracting officer provides a copy of the final decision to OGC.

(b) The contracting officer shall establish a protest file to maintain all protest documentation. The list of documents, not all inclusive, that should be included in protest file is as follows:

- Official protest document with supporting documentation;
- Statement of Facts;
- OGC comments;
- Record of each reviewer's written comments, with associated review dates;
- Written approval from HCA to release decision; and
- Memorandum for Record) MFR) with supporting documentation. The MFR shall discuss the basis of the protest, the actions taken to research the allegation, corrective actions taken, if any, and the basis/detailed rationale for the final decision of reconsideration or denial.

(c) Reserved

(d) In accordance with FAR 33.103 (d)(4), interested parties may request an independent review of their protest at a level above the Contracting Officer. The OCS Chief responsible for the division managing the protested procurement shall assign the independent reviewer. The person selected as the independent reviewer shall (a) be an organizational level above the Contracting Officer but need not be in the Contracting Officer's supervisory chain, and (b) when practicable, should not have had previous personal involvement with the procurement. Solicitations must indicate that this independent review is available as an alternative to consideration by the Contracting Officer of a protest.

(S-91) If it is determined to deny the protest, forward the decision letter, prepared for the signature of the contracting officer, and complete protest file through OGC to the HCA for review and written approval. The letter shall clearly state the reasons for denial. The HCA must approve the protest decision prior to signature by the contracting officer.

(S-92) D/OCS must approve the determination required by FAR 33.103(f) to award before the decision on the Agency's protest has been issued. The contracting officer prepares the determination and forwards through OGC to D/OCS.

(S-93) In accordance with FAR 33.103(g), the Agency shall make their best effort to resolve agency protests within 35 days after the protest is filed. The contracting Officer provides a copy of the final decision to the OGC.

(S-94) In accordance with FAR 16.505(a)(10), an Agency protest under Subpart 33.1 is not authorized in connection with the issuance or proposed issuance of an order under a task order or delivery order contract, except for a protest on the grounds that the order increases the scope, period, or maximum value of the contract.

(S-95) Complaints regarding the award of a task or delivery order shall be submitted to the Task and Delivery Order Ombudsman. See NARI 5X16.506-90, Responsibility.

5X33.104 Protests to GAO

(a)(3) (S-90) Upon notice a protest has been filed with the Government Accountability Office (GAO), the contracting officer must prepare a report IAW FAR 33.104(a)(3). The report must include an OGC legal opinion addressing, at a minimum, the legal sufficiency of the contracting officer's findings, actions, and recommendations. Within 21 workdays of telephonic notice of a protest to GAO or within 14 days if the express option is requested, forward the report to the HCA for concurrence. Within the prescribed timeframe for submission of the Agency response to GAO, OCS makes sufficient copies of the report and submits one copy to:

- (i) GAO (original)
- (ii) Protester
- (iii) HCA
- (iv) OGC
- (v) Official Protest file is labeled as such and filed with the official contract file folders.

(b) (1) The contracting officer prepares the written findings in coordination with OGC prior to forwarding to the HCA for approval.

(c) 2) The contracting officer prepares the written findings in coordination with OGC prior to forwarding it to the HCA for approval.

(g) When the HCA determines the Agency will not comply with GAO's recommendations, OGC prepares and submits the report to the Comptroller General.

Subpart 5X33.2 - Disputes and Appeals

5X33.204 Policy

The contracting officer must consult with OGC and FM upon receipt of any claim or dispute. The contracting officer must obtain a legal review prior to issuing a settlement or final decision.

5X33.209 Suspected fraudulent claims

The contracting officer must immediately report suspected fraudulent claims to OIG and OGC.

5X33.290 Reporting of claims and disputes

Contracting officers will report to the SPE (OCS_Seniors&CoS@nga.mil), OGC (OGCP@nga.mil), and FM (FMECLAIMS@nga.mil) all claims and disputes exceeding \$5,000 within 15 calendar days of receipt. The contracting officer must include the following information in the weekly activity report.

- A. Contract number
- B. Contractor name

- C. Type of contract and dollar amount
- D. Issues in dispute
- E. Amount of claim
- F. Anticipated disposition
- G. Any suspected false claims or fraud
- H. Milestones for resolution

PART 5X34 MAJOR SYSTEM ACQUISITIONS

Subpart 5X34.2 - Earned Value Management System

5X234.201-90 Policy

Earned Value Management (EVM) is required as set forth in DFARS 234.201(1) Program Managers shall use the Performance Assessments and Root Cause Analysis (PARCA) EVM Applicability Decision Matrix to help determine when the Earned Value Management System (EVMS) applies to their requirement. The Decision Matrix is available on the CAE NGANet website at <https://www.intranet.nga.ic.gov/org/d/dd/SitePages/CAEHome.aspx> under the “Plan Product” step of the IT Acquisition Guide.

PART 5X35 RESEARCH AND DEVELOPMENT CONTRACTING

Subpart 5X35.003 - Policy

5X35.003-90 Other transactions

A. NGA has authority to award other transactions (OTs) for prototype projects consistent with the delegation provided in the Office of the Under Secretary of Defense for Acquisition and Sustainment (OUSD A&S) memorandum, Subject: Delegation of Other Transactions Agreement for Prototype Projects Authority to the Defense Intelligence Enterprise, dated 12 December 2016. Other transactions (OTs) are not required to comply with the FAR, its supplements, or laws that are limited in applicability to procurement contracts.

B. For solicitation, evaluation, award, and administration of OT authority (OTA) for prototype projects, contracting personnel must use DoD's Other Transactions (OT) Guide for Prototype Projects dated November 2018.

5X235.91 Required audit clause in OTs for prototype solicitations and agreements

A. All agreement officers must include the PRISM template, 5X52.235-9001, Comptroller General Access to Records, in solicitations and agreements awarded under the authority of 10 U.S.C. Section 2371 and for which total Government payments exceed \$5M. This template provides access by the Comptroller General to pertinent contract awards.

B. The requirement for this clause may be waived by HCA if it is determined it would not be in the public interest to apply the requirement to the agreement. If the requirement is waived, a notification must be transmitted to the Committees on Armed Services of the Senate and House of Representatives, the Comptroller General, and the

Undersecretary of Defense Acquisition Technology and Logistics, Director, Defense Procurement and Acquisition Policy prior to execution of the agreement.

C. The agreement officer must notify HCA of any situations in which:

- (1) Companies refuse to enter into agreements as a result of the clause inclusion.
- (2) Clause inclusion restricts NGA's access to companies that typically do not do business with DoD.

PART 5X36 CONSTRUCTION AND ARCHITECT-ENGINEER CONTRACTS

Subpart 5X36.2 - Special Aspects of Contracting for Construction

5X36.201 Evaluation of contractor performance

(b) Reviewing official is the Chief of SIO.

5X236.201 Evaluation of contractor performance

(a) (2) (S-90) The COR must act as the evaluating official in completing the DD Form 2626, Performance Evaluation (Construction). The COR must seek input from the relevant contracting officer when completing the DD Form 2626.

(c) (S-91) Copies of fully completed performance reports will be distributed by the COR as follows:

- (1) Original to the contract file
- (2) One copy to the US Army Engineer District Portland, Oregon, IAW DFARS 236.201(c)

5X36.206 Liquidated damages

See Subpart 5X11.5 Liquidated Damages.

Subpart 5X36.6 - Architect-Engineer Services

5X36.602 Selection of firms for architect-engineer contracts

5X36.602-1 Selection criteria

(b) The designated official for approval of design competition is the Chief of SIO and may be re-delegated.

(S-90) The requiring activity will prepare evaluation criteria for each requirement and forward to the applicable contracting office for incorporation into the synopsis.

5X36.602-2 Evaluation boards

(a) The evaluation board is co-chaired by the:

- (1) Chief of SIO and may be re-delegated
 - (2) Cognizant contracting officer
- (b) Pre-selection boards may be used to identify to the selection board the qualified firms that have a reasonable chance of being considered as most highly qualified by the selection board.

5X36.602-4 Selection authority

(a) The designated selection authority for any contracting action in SI is D/SIO or designee.

5X36.602-5 Short selection process for contracts not to exceed the simplified acquisition threshold

(b) The evaluation board must use the procedures in FAR 36.602-5(b) for the selection of architect-engineer contractors to perform work under contracts not expected to exceed the simplified acquisition threshold. Under this procedure, the designations of the chairperson of the evaluation board and the selection authority are the same as those identified in 5X36.602-2 and 5X36.602-4, respectively.

5X36.603 Collecting data on and appraising firms' qualifications

(S-90) SIO and the cognizant contracting officer are responsible for the collection, classification, and maintenance of data relative to the qualifications of architect-engineer firms.

5X236.604 Performance evaluation

(a) (5) The Chief of SIO and/or cognizant COR acts as the evaluating official in completing a Performance Assessment Report (PAR) within PRISM for each Architect-Engineer contract exceeding \$35,000.

(b) A copy of the fully completed PAR is provided to SIO for the consolidated file of architect-engineer evaluations.

5X36.606 Negotiations

(S-90) Documentation of price reasonableness must be reviewed, approved, signed, and dated by the contracting officer.

PART 5X37 SERVICE CONTRACTING

Subpart 5X37.1 - Service Contracts General

5X37.103 Contracting Officer Responsibility

(a)(1) For all service contracts the CO must have the program manager or other official responsible for the requirement complete and sign the "Certificate of Nonpersonal Services" along with filling out its worksheet (see the OCS website for template). The CO shall determine whether the proposed services are personal or nonpersonal by using the definitions in FAR 2.101 and 37.101, and the guidelines in 37.104. The CO will either concur or non-concur and sign the "Certificate of Nonpersonal Services" under the PM's signature. In doubtful cases, CO may obtain the review of legal counsel. The completed certification including its worksheet shall be included in the contract file. No further documentation is required if the CO determines the services are nonpersonal.

The CO and PM need to remain aware of the descriptive elements at FAR 37.104(d) to ensure that a service contract does not inadvertently become administered as a personal-service contract.

5X237.104 Personal services contracts

(b) (i) The determination and finding to acquire personal service contracts for expert and consultant services must be approved prior to solicitation. Approval level thresholds are the same as those for acquisition planning in Part 5X07.1. Legal review is required.

5X37.114 Special Acquisition Requirements

5X37.114-90 Contractor Identification

A. The following information and guidance is provided to ensure contractors are properly identified as contractor personnel to NGA and other parties, to avoid creating an impression the contractors are Government officials or are performing pursuant to a personal services contract.

B. In order to adhere to contractor identification standards during the performance of a contract with NGA, use NARI clause 5X52.237-9001 – CONTRACTOR IDENTIFICATION in all solicitations, existing contracts, and new contracts that result in contractor personnel providing services to the Government in the performance of the contract.

5X237.170 Approval of contracts and task orders for services

5X237.170-2 Approval requirements

(a) Approval levels for DoD acquisitions, contracts, or task orders that are not performance based are:

(1) At or less than \$100M: approved by the cognizant OCS division chief.

(2) More than \$100M: approved by the SPE.

(S-90) Approvals must be documented to the contract file using a Determination.

(S-91) Reserved.

(S-92) NGA organizations contracting with individuals to conduct speeches, lectures, and presentations in amounts greater than \$2,000 must obtain written approval from the Office of the NGA Executive Secretariat (ONE). Organizations remain responsible for ensuring each payment is commensurate with the speaker's expertise and consistent with federal regulations.

(b) Approval levels for acquisition of services through any contract or task order other than DoD are:

(1) At or less than \$30M: approved by the cognizant OCS division chief.

(2) Exceeding \$30M: approved by the SPE.

(3) Approvals are documented on a Determination.

(S-93) Reserved

(S-94) See NARI 5X31 for guidance on the contractor employee compensation cap, the exceptions to the cap on allowable contractor compensation, and identify the process and approval authority for exception(s).

Subpart 5X37.2 – Advisory and Assistance Services

5X37.204 Guidelines for Determining Availability of Personnel

The Head of the Agency has delegated responsibility to DD/OCS for determining the use of advisory and assistance services for evaluations or analyses of proposals.

The Contracting Officer shall ensure the DD/OCS signs determination authorizing the utilization of advisory and assistance services is attained prior to the release of the RFP.

Subpart 5X37.5 - Management Oversight of Service Contracts

5X37.503 Agency-head responsibilities

The SPE is designated management oversight of service contracts.

5X37.504-90 Contracting officials' responsibilities

To implement the requirements of NGAD 3021 (Enclosure 1, reference i), contracting officers must include the PRISM template 5X52.37-9000 "Contractor Employee Data for Access to NGA Facilities or Sensitive Systems" in all solicitations and contracts when contractor employee will have access to NGA facilities or access to classified systems such as NGANet.

PART 5X39 ACQUISITION OF INFORMATION TECHNOLOGY

Subpart 5X39.1 - General

5X39.101 Policy

Contracting officers must refer to the Intelligence Community Contracting Guide (ICCG) for additional information on IC software licensing agreement terms and conditions (Enclosure 1, reference ac).

5X39.101-90 Approval of IT purchases

A. General. All IT hardware and software acquisition must be approved prior to OCS processing the purchase request. Approvals must comply with NGAI 8410.2 and NGAI 8400.4 (Enclosure 1, references y, aa).

B. Hardware. All IT hardware purchases must be initiated and approved through the ITEMS Change Request (CRQ) process in Remedy prior to initiating a purchase request to OCS. Each organizational IT purchase representative must provide OCS a quarterly/annual fund citation authorization for purchase of NGA standard IT hardware. Non-standard hardware must be coordinated with OCIO before a purchase request is submitted to OCS.

C. Software. All software purchases must be coordinated with TCS and the Software Asset Management (SAM) office prior to initiating a purchase request to OCS (Enclosure 1, reference y).

D. RESERVED

E. Hardware, software, and maintenance purchases coordinated and approved through the NCCB are not required to be approved through OCIO/TCS/SAM offices because this review is accomplished using the NCCB procedures.

F. Direct evidence of the authorization for purchase from the responsible OCIO office must accompany a purchase request, NGA on-line IT ordering system demand, or MIPR.

5X39.101-91 Geospatial Intelligence (GEOINT) Standards and Profile Implementation/Compliance

A. This subpart applies to all National System for Geospatial Intelligence (NSG) contracts delivering specific GEOINT capabilities throughout the system development life-cycle to ensure compliance for GEOINT architecture and standards with the functional management guidance directed in National System for Geospatial Intelligence Directive (NSGD) dated 6 May 2011. NGA's National Center for GEOINT Standards (NCGIS) is responsible for advising NSG acquisition program offices throughout the system development life-cycle in selecting GEOINT architecture and standards, applying those architecture and standards for acquisition, and completing appropriate conformance validations. Adherence to these requirements by program managers and developers ensures delivery of interoperable solutions across the NSG and fulfills compliance requirements.

B. This subpart also applies to any NGA designated legacy/existing program that is undergoing significant upgrades, where the government incorporates the specific standards requirements in the next option year of any current contract.

C. Government program managers and contracting officers are encouraged to include incentives for complying with GEOINT standardization in new and existing contract award/incentive plans.

D. Use the NARI clause 5X52.239-9001 - GEOINT Standards and Profile Implementation/Compliance, in all solicitations and contracts that require Government contractors to deliver designated GEOINT capabilities as identified by NGA.

5X39.101-92 Contingency Planning for Information Systems and Support

(a) Definitions. See clause 5X52.239-9002, Contingency Planning Requirements for Technology Resources, Appendix A.

(b) Policy. NGA information systems developers/providers are responsible for:

1. Developing, exercising, and implementing a "ready to execute" information system contingency plan that complies with applicable Federal, IC, DoD, and NGA policy;

2. Ensuring that NGA information systems [hardware, software (applications), and data], as well as those of its contractors/sub-contractors, provide a level of resilience commensurate with the risk and magnitude of harm that could result from the loss, misuse, disclosure, or modification of the information contained in those systems;

3. Enabling the rapid, orderly, and effective recovery, resumption, and restoration of NGA's IT following a natural or man-made disruption;

4. Ensuring each system's level of resilience protects the integrity, confidentiality, and availability of the information system as categorized per Federal Information Processing Standards (FIPS) 199 "Standards for Security Categorization of Federal Information and Information Systems;" and

5. Ensuring compliance with the applicable requirements of the standards, directives, instructions, etc. listed at clause 5X52.239-9002, Contingency Planning Requirements for Technology Resources, Appendix B.

(c) Applicability. The Contracting Officer/Contracting Specialist (CO/CS), COR, PM and the requiring activity are responsible for ensuring that information technology acquisitions and operations and sustainment (O&S) contracts contain the proper policy and clauses ensure NGA compliance with Federal Information Security Management Act (FISMA) continuity of operations plans for information systems and FISMA-related FAR requirements. CORs and PMs are responsible for the development of FISMA continuity of operations plans for information systems and FISMA-related FAR requirements once contracts are in place to ensure execution of NGA's mission essential function (MEF). The NGA Mission Assurance Division is responsible for monitoring and reporting on compliance with FISMA continuity of operations plans for information systems and FISMA-related FAR requirements once contracts are in place.

(d) Solicitation and Contract Clause. The CO/CS shall insert, where applicable, the clause at 5X52.239-9002, Contingency Planning Requirements for Technology Resources and Appendices in solicitations and contracts that support, or are integral to, NGA's Infrastructure Service Provider (ISP)/Application Service Provider (ASP) construct and/or involve contractor development or O&S for NGA information systems.

Subpart 5X39.2 - Electronic and Information Technology

5X39.201 Scope of subpart

5X39.201-90 Section 508 compliance

A. All electronic and IT (EIT) developed, maintained, procured, or used after 21 June 2001 must fully comply with 508 of the Rehabilitation Act to ensure the EIT is accessible to people with disabilities. Agency guidance is in NGA 8400.4 (Enclosure 1, reference aa).

B. Requiring activities must perform market research to ensure Section 508 compliance of all EIT. Market research must accompany purchase request pages.

C. Contracting Officers must ensure EIT solicitations and contracts contain applicable accessibility requirements for individuals with disabilities IAW FAR 39.2 unless an exception applies IAW FAR 39.204.

D. The CIO forwards all requests and approvals for exception to Section 508 compliance to the contracting officer. The contract file must include all documentation regarding Section 508 compliance and waivers. No solicitation, task or delivery order, purchase order, or purchase card order is executed without receiving approval documentation.

5X39.203 Applicability

(b) (1) Section 508 FAR exception determinations must be written by the requiring activity and submitted to the contracting officer for file documentation.

(b) (3) Task or delivery orders require compliance unless an exception exists and is documented by the program office or requiring activity.

(c) (2) The requiring activity provides the contracting officer a written non-availability determination for commercial items that do not meet EIT requirements. The determination must include a description of the market research performed and indicates which standards cannot be met.

Subpart 5X239.70 - Exchange or Sale of Information Technology

Subpart 5X239.71 - Security and Privacy for Computer Systems

Subpart 5X239.73 - Requirements for Information Relating to Supply Chain Risk

Contracting officers must refer to the Intelligence Community Contracting Guide (ICCG) for additional information on IC enhanced procurement authority when procuring IT products for national security systems (Enclosure 1, reference ac).

PART 5X42 CONTRACT ADMINISTRATION AND AUDIT SERVICES

Subpart 5X42.2 - Contract Administration Services

5X42.202 Assignment of contract administration

(d) The OCS division chief must approve a contracting officer's decision to rescind a contract or function previously assigned for contract administration.

Section 5X42.202-90 Assignment of property administration

The Security and Installation Operations Directorate, Installation Operations Office, Policy and Programs Division (SIOP) shall perform the property administration functions described in FAR 42.302(a)(27) on all contracts where Government property is provided or acquired.

Subpart 5X42.5 - Post-award Orientation

5X42.503 Post-award conferences

5X42.503-1 Post-award conference arrangements

(b) When contract administration is retained by NGA, the contracting officer must arrange a conference.

5X42.503-2 Post-award conference procedure

The contracting officer, or contract specialist if so delegated, is the chairperson for conferences conducted by NGA. Prior to conducting a post-award conference, the chairperson meets with all appropriate Government representatives to plan and discuss the conference agenda.

5X42.503-3-90 Post-award conference report for construction

For construction contracts, the chairperson uses the Post-Award Conference Worksheet located on the NGANet OCS website to document the conference.

Subpart 5X42.7 - Indirect Cost Rates

5X42.708 Quick closeout procedure

5X42.708-90 Quick closeout procedure

Guidance for quick closeout procedures is located in the closeout manual on the NGANet OCS website.

Subpart 5X242.8 - Disallowance of Costs

5X242.803 (b) (S-90) Disallowing costs after incurrence

Contracting Officers must insert the PRISM Template, 5X252-242-9000, Approving Payments (Cost Reimbursement, Time and Materials, and Labor Hour) when issuing Cost Reimbursement, Time and Material, and Labor Hour Contracts. (see DoD Class Deviation 2020-00011 for additional information)

Subpart 5X42.9 - Bankruptcy

5X42.902 Procedures

(a) (1) The contracting officer must notify OGC and FMO immediately upon receipt of notification of a bankruptcy action.

Subpart 5X42.13 - Suspension of Work, Stop-Work Orders, and Government Delay of Work

5X42.1301- General

5X42.1301-90 - Observance of Legal Holidays, Delayed Arrival or Early Release of Federal Employees.

A. In order to provide information regarding contractor compensation during observed Federal holidays, delayed arrival or early release of Federal employees, Contracting Officers must incorporate local clause 5X52.242-9001 in all contracts to identify the Federal holidays observed by NGA and describe situations for delayed arrival of, or early release of Federal Employees.

B. This clause is to be incorporated into all contracts that have or may have work performed on NGA premises. For contracts with work performed off-site from NGA premises, this clause is applicable to that portion of the work that is performed on NGA premises. Any work not performed on NGA premises is not governed by this clause, and is subject to any other contract terms and conditions.

C. Contractor personnel are not prohibited from performing work on a holiday, weekend or when Federal employees are authorized a delayed arrival or released early, unless the labor category is not authorized to work as negotiated in the contract. NGA local clause 5X52.242-9001 contains a "fill in the blank" list to be negotiated by the Contracting Officer (CO) and Contractor that identifies the labor categories under the contract that are not authorized to perform work on a holiday. Labor categories included on this list are also expected to complete their workday as scheduled when NGA government employees are authorized early release prior to a holiday (e.g. two-hour early release) or other such benefit that applies to NGA government employees only.

D. Contractor employees that work on a holiday, weekend or when Federal employees are authorized a delayed arrival or released early are not entitled to any form of holiday, premium or differential compensation, unless otherwise explicitly authorized by another clause in the Contract.

5X42.1301-91 - Government Shutdown, Furlough of government personnel and Closure of NGA Facilities

A. Contracting Officers must incorporate the local clause 5X52.242-9002 in all contracts to address Government Shutdown, Furlough of government personnel and Closure of NGA Facilities.

B. This clause is to be incorporated into all contracts that have or may have work performed on NGA premises. For contracts with work performed off-site from NGA premises, this clause is applicable to that portion of the work that is performed on NGA premises. Any work not performed on NGA premises is not governed by this clause, and is subject to any other contract terms and conditions.

C. When contractor support services are not required or provided due to closure of an NGA facility as described in this clause, the contractor shall be compensated as follows:

1) For fixed price contracts, under normal circumstances the contractor will be compensated IAW the terms and conditions of the contract. However, in those situations where the contractor may be required to provide services for portions of days, an appropriate settlement for the additional charges incurred by the contractor may be negotiated by the Contracting Officer.

2) For cost-reimbursement, time-and-materials and labor-hour type contracts (with Cost & Pricing Data requirements); under normal circumstances the contractor will be compensated IAW the terms and conditions of the contract. If it is determined that additional costs are recoverable under their contract, the contractor may be compensated for costs resulting from the unplanned closure of NGA facilities, provided these costs are consistent with the contractor's established corporate policy and charged IAW its disclosure statement.

Subpart 5X42.15 - Contractor Performance Information

5X42.1502-90 Policy

(Waiver for the Use of Federal Acquisition Regulation and Defense Federal Acquisition Regulation Supplement Required Systems and Applications, dated 2 November 2018. NGA is exempt from the requirements to complete contractor performance information in the Contractor Performance Assessment Reporting System (CPARS) and Federal Awardee Performance and Integrity Information System (FAPIIS). NGA will submit past performance assessment reports in accordance with agency procedures in 5X42.1503-90.)

5X42.1503-90 Procedures

(a) Contracting Officers and CORs must formally document contractor past performance and prepare a performance assessment report (PAR) within the PRISM Vendor Past Performance (VPP) module for contracts of all types with a period of performance, including options, exceeding one year. When the contract period of performance is 12 months or less, a single final PAR must be prepared. When the period of performance exceeds 12 months, annual assessment reports shall be completed at the end of the initial 12-month performance period and annually thereafter, until contract completion. A final PAR must be prepared upon contract completion and is limited to the period of contractor performance occurring after the preceding PAR. All PARs must be completed and closed in the PRISM VPP module within 120 calendar days after the end of the performance period being rated. The information in a closed PAR is considered final and releasable for use, including in source selection.

(b) The contracting officer provides an electronic copy of the completed PAR to the contractor with a due date (maximum 14 calendar days) to concur, submit comments, rebutting statements, or additional information. The contractor must be notified that

failure to respond within the designated timeframe constitutes agreement with the assessment. Evidence of date of receipt by the contractor is required.

(c) If the contractor concurs, does not comment, or does not take exception to the PAR ratings, the CO will close the PAR in the PRISM VPP after the due date established for the contractor response and provide a copy of the final evaluation to the contractor. In cases where the contractor concurs, or does not otherwise dispute the PAR ratings, the CO serves as the approval authority.

(d) If the contractor responds with comments, rebuttal statements, or additional information, the CO forwards the PAR to the COR. In the event the CO and COR agree to change a PAR rating based on the contractor response, the PAR will be adjusted accordingly in the PRISM VPP with the CO serving as the approval authority for the change. The CO will document the rationale for the PAR rating change, close the PAR in the PRISM VPP and provide the final evaluation to the contractor.

(e) If the contractor responds with comments, rebuttal statements, or additional information, the CO forwards the PAR to the COR. In the event the CO and COR do not agree to change any PAR ratings based on the contractor response, the COR must provide a substantiated rebuttal statement including the rationale disputing the contractor's recommended rating to the CO. The head of the applicable Office or Directorate must approve the response and include the rationale for their final decision. In these instances, the final determination on PAR ratings and rationale is approved at one level above the CO. Upon approval, the CO will close the PAR in the PRISM VPP and provide the final evaluation to the contractor. PARs are not complete until formally closed within the PRISM VPP. Originals of all documentation are maintained in the contract file and are uploaded in the PRISM VPP.

(f) Additional guidance is contained in the NGA Guide to Collection and Use of Past Performance Information located on the OCS website.

Subpart 5X42.70 - Contractor Travel

(S-90) Contractor or subcontractor employees traveling outside the continental United States (OCONUS) on official NGA business must comply with NGA travel policies. Contracting officers must include the PRISM template 5X52.242-9000, OCONUS Travel for Contractor Employees on NGA Business, in all solicitation and contracts that may require contractors to travel OCONUS.

PART 5X43 CONTRACT MODIFICATIONS

Subpart 5X43.1 – General

5X43.101 Definitions

"Effective date" block 3 of the SF 30, Amendment of Solicitation/Modification of Contract). For items described in FAR 43.101 the "effective date" must reflect the actual situation. It must not be earlier than the date of the contracting officer's signature in block 16C, unless the contracting officer documents in the contract file the reason for the early effective date. Block 3 of the SF30 may read "SEE BLOCK 16C."

Subpart 5X43.2 - Change Orders

A. The following procedures are required when processing a Change Order IAW FAR 43.2.

5X43.201-90 Definitions

A. Change Order – a unilateral or bilateral modification to an existing contract to change a specific element of the contract that is within the general boundaries of the scope of work for the original contract.

Examples of in-scope changes may include: 1) Time or place of delivery or performance; 2) Method of shipment or packing; and 3) Drawings, designs, or requirements specifications. Such changes may or may not involve changes to the contract price or other consideration.

B. Request for Equitable Adjustment (REA) – written request from a contractor for an adjustment to contract price, cost, or other consideration for its performance of a change in the Government's requirement.

5X43.201-91 Policy

A. Contract Change - The Contracting Officer (CO) may incorporate contract changes that are within the general scope of the contract. The change may be incorporated into the contract as a unilateral modification when there is a contract clause that permits such an action (ex: Changes Clause). In the event that the applicable clause does not allow unilateral incorporation, then the change shall be incorporated via bilateral modification.

B. Definitized Change Order (Bilateral) -- Under certain circumstances, the Government may issue a bilateral modification to the contract to incorporate a change order. Bilateral change orders are warranted in cases where it is anticipated that there will be a cost, schedule, or performance impact, and the Government and Contractor are able to negotiate impacts associated with performance of the change in advance of award of a modification or supplemental agreement.

The program management office (PMO) shall provide the CO with a Purchase Request (PR) package delineating the change order requirements. The PR package shall include all applicable documents to support the requirement (SOW, certified funding document, IGCE, NGA board approvals, etc.).

The contracting officer shall solicit a proposal from the contractor, evaluate the proposal and negotiate a fair and reasonable equitable adjustment with the contractor. The definitized change order shall be incorporated into the contract through a supplemental agreement. The contracting officer shall also ensure that the Contractor's Statement of Release is included in the supplemental agreement in accordance with FAR 43.204(c)(2).

C. Unpriced Change Order – Unpriced change orders occur when it is necessary for the Contracting Officer to direct the contractor to begin performance prior to agreeing to cost, schedule and performance adjustments. Unpriced change orders shall be incorporated through a bilateral modification unless otherwise authorized by a clause that permits a unilateral action.

The program management office (PMO) shall provide the CO with a Purchase Request (PR) package delineating the change order requirements. The PR package shall include all applicable documents to support the requirement (SOW, certified funding [or evidence of funding], IGCE, Rough Order of Magnitude (ROM), etc.). The PMO shall also prepare a Determination to Issue an Unpriced Change Order (Enclosure 2). For purposes of expediency, the submission of the contractor's ROM in-lieu of an IGCE is acceptable provided that a completed and signed IGCE is provided prior to definitization of the change order.

The Contracting Officer shall staff the Determination to Issue an Unpriced Change Order form through the OCS Division to the appropriate approval authority for action. All Unpriced Change Orders executed in an amount less than \$5M shall be approved by the cognizant OCS Division Chief. All Unpriced Change Orders executed in an amount greater than \$5M shall be approved by the HCA.

Any increases to the Limitation of Liability that raise the total value of the UCO request to greater than \$5M require an amendment to the original UCO request and shall be approved by the HCA. Amendments to the original UCO request are required when the definitization of the effort will not be accomplished within the mandated 180-day schedule and/or when the Limitation of Liability will exceed 75% of the estimated ceiling amount.

If the HCA approved the original UCO request with Limitation of Liability up to 50%, then HCA approval is not required a second time if the CO increases the Limitation of Liability up to 75% with a qualifying proposal in accordance with DFARS 243.204-70-4--Limitations on obligations.

Once the Determination to Issue an Unpriced Change Order is approved, and certified funding is available, the Contracting Officer shall issue an unpriced change order modification.

At a minimum, the unpriced change order modification shall include the following information:

- (1) description of the change;
- (2) an anticipated schedule for completion of the changed work;
- (3) a proposed definitization schedule (RFP date, proposal due date, anticipated definitization date);
- (4) limitation of funding obligations; and
- (5) a statement of the amount that the definitized change order will not exceed [the not to exceed price of the change order].

The not-to-exceed price shall limit the Government's liability for the unpriced change order and should be sufficient to cover the definitized equitable adjustment. The Contracting Officer shall make maximum effort to negotiate an agreement with the contractor concerning a Request for Equitable Adjustment (REA) within 180 calendar

days or before completion of 50% of the work under the change order is completed, whichever is first.

The Contracting Officer shall ensure that the contractor understands the limitations of the Government's liability in terms of funding and NTE definitized price.

(a) The contractor cannot incur costs or cost liabilities that exceed the funding for the unpriced change order.

(b) By signing a bilateral agreement, the contractor agrees that the definitized price will not be an amount greater than the stated NTE price ceiling. In the event that the scope of the work changes prior to definitization, the contracting officer shall adjust the NTE ceiling price accordingly through a modification to the contract. In the event that the contractor proposes a price which exceeds the agreed upon NTE, the contractor shall justify the increase in price. If the Government determines the increase in price above the NTE is justifiable, the Government may consider providing an additional fee against the cost in excess of the agreed upon NTE.

(c) If the NTE price is based on a portion of the work and not the entire change order amount, the contractor cannot begin performance of the work not covered by the NTE prior to definitization of the change order. If the contractor must proceed with the additional work prior to definitization, then the Contracting Officer must issue a separate modification and adjust the NTE ceiling.

(d) The contractor is not guaranteed settlement at the NTE price.

(e) If the ceiling price is reached before work under the change order is definitized, then the contractor must stop work concerning the order or absorb costs incurred beyond the ceiling.

If it appears that there will be a work stoppage, then the Contracting Officer must act to definitize the change order or adjust the NTE ceiling. If it is not possible to settle the modification bilaterally then the Contracting Officer shall issue the definitization modification unilaterally.

The now definitized change order shall be incorporated into the contract through a supplemental agreement. The contracting officer shall also ensure that the Contractor's Statement of Release is included in the supplemental agreement in accordance with FAR 43.204(c)(2).

D. Unpriced Change Order Tracking -- The OCS Policy Analysis & Guidance group (OCSP A&G) will assign a unique tracking number for ALL unpriced change orders. The Unpriced Change Order (UCA/UCO) Log maintained in OCSP A&G shall be used to track all progress. The contracting officer is responsible for keeping their information in the UCA/UCO Log current by transmitting updates and other relevant information to the OCSP A&G group as it occurs. The OCSP A&G group is responsible for maintaining the log and ensuring this log contains current information regarding definitization schedules and other required information, as provided by the contracting officer. The status of all open unpriced change orders will be presented to OCS leadership as part of regular OCS metrics reporting.

E. Definitization modification numbering in PRISM.

(1) Definitization modifications will follow the 6-position numbering scheme set forth in DFARS 204.1603(b)(2)(ii)(1)(iv) by using the letter "Z" in the second position (e.g. PZ0001). Use of a two-character modification number with the "Z" in the first position is no longer authorized.

PART 5X45 GOVERNMENT PROPERTY

Subpart 5X45.1 – General

5X45.101 Definitions

(S-90) GOVERNMENT FURNISHED PROPERTY (GFP) is property to which the Government has title, is in the possession of a contractor for use in contract performance, and is managed in the NGA Accountable Property System of Record (APSR).

(S-91) NGA APSR is the enterprise system for property accountability, stewardship, and financial reporting. This system contains the official records that form the basis for accountability, audit, and fiduciary reporting of accountable property and functions as a sub-ledger to the NGA accounting system for financial reporting purposes.

(S-92) LIMITED DISTRIBUTION (LIMDIS) materials mean any unclassified GEOINT distributed by or created by NGA as well as materials derived from NGA information and data marked or labeled as "LIMITED DISTRIBUTION" or "LIMDIS."

5X45.102 Policy

5X45.102-90 Providing Property to Contractors

When providing GFP to contractors, contracting officers shall document the contract file with the elements of FAR 45.102(b) and ensure inclusion of FAR 52.245-1.

5X45.102-91 Changes to Government Property on a Contract

A. A written contract modification is required to increase or decrease Government-Furnished Property (GFP) on a contract. Increases or decreases to GFP are not authorized by letter or email.

- (1) Bilateral agreements are the preferred methods of changes to GFP on contract. Equitable adjustments and impacts to other aspects of the contract such as schedule, cost, risk, or competitive advantage must be considered when changes to GFP are negotiated.
- (2) Distribution of the basic contract and modifications to the Security and Installation Operations Directorate, Installation Operations Office, Policy and Programs Division (SIOP) is mandatory. The SIOP address is NGA/SIOP, Mail Stop N82-SIOP, 7500 GEOINT Drive, Springfield, VA 22150.

B. GFP is managed by the contractor in the NGA APSR. Any additions, changes, or disposals of GFP shall be conducted in accordance with NGA Manual (NGAM) 4160.1 (Enclosure 1, reference m).

5X45.105 Contractors' Property Management System Compliance

(e) When the contract administration functions are retained at NGA and Government property is provided under the contract, the contract file must contain a copy of the property administrator's determination of the adequacy or acceptability of the contractor's property control system. The contract file must contain documentation of any inadequacy or unacceptability of the contractor's property control system and efforts taken to correct deficiencies.

5X45.105-90 Records of Government Property

A. OCS shall provide to SIOP a copy of each contract that involves the purchase of Government property or the transfer of NGA property to contractors as GFP or PIPC. OCS shall provide to SIOP a monthly summary of all contracts designated in the PRISM system as containing GFP.

B. Purchase card program. During purchase card training, the instructor provides the rules associated with accountable property purchases. The purchase card automated system contains report capability for monitoring the purchase of accountable property. The purchase card approving officials must review cardholders' records to ensure compliance with Government accountable purchase procedures.

5X45.107 Contract Clauses

5X45.107-90 Reserved

5X45.107-91 Accountable GFP PRISM Template

Contracting officers shall insert PRISM Template 5X52.45.102-9000, "Management of NGA Government Property" in all solicitations and contracts where NGA provides Government property to a contractor and/or a contractor acquires property to which the Government holds title.

5X45.107-92 Government-Furnished LIMDIS Materials

Contracting officers must insert PRISM Template 04-14, 5X52.45.592-9000, "NGA: Government-Furnished LIMITED DISTRIBUTION Materials" in all contracts where LIMDIS material is being provided to a contractor in performance of a contract.

PART 5X46 QUALITY ASSURANCE

Subpart 5X46.1 - General

5X46.105 Responsibilities

A. The contractor is responsible for carrying out its obligations under the contract by ensuring that its personnel, to include subcontractors, comply with all applicable NGA and U.S. Government installation regulations, directives, instructions, rules, policies and procedures.

B. CORs are responsible for providing copies of documents outlined in 5X46.105 A as requested by the contractor, and monitoring contractor compliance as outlined in 5X46.105 A. CORs will notify the contractor to take corrective action(s) as needed, unless it results in contract price/cost changes. In such cases, the COR will notify the Contracting Officer prior to making/implementing the corrective action(s). CORs will report to the contracting officer any failure of contractor personnel to comply with all

applicable NGA and U.S. Government installation regulations, directives, instructions, rules, policies and procedures.

C. Contracting Officers use NARI clause 5X52.246-9000 -- Contractor Compliance with all applicable National Geospatial-Intelligence Agency (NGA) and U.S. Government installation regulations, directives, instructions, rules, policies and procedures; in all solicitations, existing contracts, and new contracts that require Government contractor personnel to have access to, or work on, NGA facilities.

Subpart 5X46.7 - Warranties

5X246.702 General

(c) Contracting officers must require contractors to propose all warranty costs, except for those listed in DFARS 246.704, Authority for use of warranties. Contractors are to separately identify actual warranty costs in cost reporting.

PART 5X49 TERMINATION OF CONTRACTS

Subpart 5X49.1 - General Principles

5X49.1-90 Review of termination actions.

A. OCS Division Chiefs are required to serve as the cognizant contracting officer for all contract terminations and termination settlements. As such, they are responsible for initiating, reviewing and signing all contract terminations and termination settlement contract actions. Additionally, OCS Group Chiefs will review and approve all contract terminations and contract termination settlements prior to execution by the OCS Division Chiefs.

B. All documentation that is the basis for the actions in a termination must accompany the review and approval request submitted to the OCS Group Chief. OCS Division Chiefs serving as the cognizant contracting officer must resolve all review comments and receive approval from their respective Group Chief prior to proceeding with contract terminations and termination settlement contract actions.

C. OCS Group Chiefs and/or Division Chiefs report all pending or approved termination actions to D/OCS and DD/OCS during weekly OCSLG meetings.

Subpart 5X49.5 - Contract Termination Clauses

5X49.501 General

5X49.501-70 Special termination costs

(a) (S-90) The congressional committees on appropriations require a minimum notification of 45 days in advance of any proposed execution of the clause at DFARS 252.249-7000. Contracting Officers must prepare the request, in conjunction with D/OCS, OGC, FM and OCRC, for approval by D/NGA. The congressional notification must include the following:

(1) A detailed breakdown of applicable cost categories in the clause at DFARS 252.249-7000 (a)(1) through (5), which includes the reasons for the anticipated incurrence of the costs in each category.

(2) Information on the financial and program need for the clause including an assessment of the contractor's financial position and the impact of a failure to receive authority to use the clause.

(3) Clear evidence that only costs that arise directly from a termination would be compensated under the clause. Costs that would be incurred by the Government, regardless of whether a termination occurs, must not be covered by the Special Termination Cost Clause.

PART 5X50 EXTRAORDINARY CONTRACTUAL ACTIONS AND THE SAFETY ACT

Subpart 5X50.1 - Extraordinary Contractual Actions

5X50.105 Records

The contracting officer must prepare the preliminary and final records and submit them to the HCA.

Subpart 5X50.102 - Delegation of and Limitations on Exercise of Authority

5X50.102-1 Delegation of authority

(b) All actions less than \$70,000 under the Act and Executive Order must be reviewed by OGC and approved by HCA.

Subpart 5X50.103 - Contract Adjustments

5X250.103-3 Contract Adjustment

(S-90) (a) Contractor requests. If someone receives a request for a contract adjustment other than the HCA, the office or individual receiving the notice must immediately advise the HCA of the request.

5X250.103-5 Processing cases

(1) The contracting officer must prepare the Record of Request and submit it to the HCA within 30 days after receipt of a request for contract adjustment.

(2) The supporting files must contain all documentation pertinent to the request for relief. The HCA performs the functions of a contract adjustment board.

PART 5X51 USE OF GOVERNMENT SOURCES BY CONTRACTORS

Contractors may be authorized to place orders for software licenses from Intelligence Community Information Technology Enterprise (IC ITE) Enterprise License Agreements (ELAs). Contracting officers must refer to the IC Contracting Guide for further information (enclosure 1, reference ac).

PART 5X52 SOLICITATION PROVISIONS AND CONTRACT CLAUSES

Subpart 5X52.1 - Instructions for Using Provisions and Clauses

5X52.100 Scope of subpart

5X52.100-90 FAR, DFARS and local clause matrix

NGA contract specialists and contracting officers must use the NGA FAR, DFARS and local clause matrix located on the OCS NGANet and SBU websites in conjunction with the matrix at FAR 52.301. The NGA clause matrix is not to be relied on exclusively

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when developing a solicitation or contract. Contract specialists and contracting officers must review the FAR, DFARS and NARI in conjunction with using the NGA clause matrix.

5X52.100-91 Listing of NGA local provisions and clauses

Number	Title	Type
5X252.201.602-2-91	Contracting Officer's Representative (COR) (Jan 2004)	Clause
5X252.204-7000-90	Public Release of Information (May 2015)	Clause
5X252.204-9000	Export Authorization Approval for Certain Accommodation Procurement Contract Activities (May 2013)	Clause
5X52.09.507-9000	Organizational Conflict of Interest (Jun 2004)	Clause
5X52.209-9000	NGA OCI Provision for Known Non-Developmental Work (Jun 2013)	Clause
5X52.209-9001	NGA OCI Provision for Known Developmental Work (Jun 2013)	Clause
5X52.209-9003	Protection of Information and Nondisclosure Agreements (Jun 2009)	Clause
5X52.209-9004	Use of Contractor Support (Oct 2009)	Provision
5X252.211-7003	Item Unique Identification and Valuation (Oct 2015)	Clause
5X52.215-9000	Reopener Clause - Downward Adjustment Only (Dec 2010)	Clause
5X52.216-9001	Selection Factors for Award of Task/Delivery Orders (Mar 2016)	Clause
5X52.219-9002	Small Business Goal (Nov 2013)	Clause
5X52.227-9000	Unauthorized Use of NGA Name, Seal and Initials (Jun 2006)	Clause
5X52.227-9001	Activities that affect U.S. persons (Nov 2016)	Clause
5X52.228-9000	Insurance (Sep 2003)	Clause
5X52.232-9000	Submission of Invoice-Federal Payment Center (FPC) (Oct 2017) - For use in contracts paid by the FPC vendor pay office	Clause
5X52.232-9000 *A1	Submission of Invoice DFAS - For use in contracts paid by the Defense Finance and Accounting Service (DFAS) vendor pay office (Alternate 1 – Dec 2019)	Clause

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5X52.232.9001	Special Invoicing Instructions for Implementation of Section 3610 of the CARES Act (Pub.L. 116-136) (Apr 2020)	Clause
5X52.235-9001	COMPTROLLER GENERAL ACCESS TO RECORDS (Jul 2001)	Clause
5X52.37-9000	Contractor Employee Data for Access to NGA Facilities or Sensitive Systems (Oct 2005)	Clause
5X52.237-9001	Contractor Identification (Jan 2012)	Clause
5X52.239-9001	GEOINT Standards Implementation and Compliance (Mar 2023)	Clause
5X52.239-9002	Contingency Planning Requirements for Technology Resources (Sep 2016)	Clause
5X52.242-9000	OCONUS Travel for Contractor Employees on NGA Business (Aug 2005)	Clause
5X52.242-9001	Observance of Legal Holidays, Delayed Arrival or Early Release of Federal Employees. (Apr 2013)	Clause
5X52.242-9002	Government Shutdown, Furlough of government personnel and Closure of NGA Facilities (Nov 2018)	Clause
5X252.242-9000	Approving payments (Cost Reimbursement, Time and Materials and Labor Hour Contracts) (Jun 2017)	Clause
5X52.45.102-9000	Management of NGA Government Property (Nov 2016)	Clause
5X52.45.592-9000	Government-Furnished LIMITED DISTRIBUTION Materials (Jun 2004)	Clause
5X52.246-9000	Contractor Compliance with all applicable National Geospatial-Intelligence Agency (NGA) and U.S. Government installation regulations, directives, instructions, rules, policies and procedures (Jun 2012)	Clause

Subpart 5X52.2 - Text of Provisions and Clauses

5X252.201.602-2-91 Contracting Officer's Representative (COR)

As prescribed in 5X201.602-2-91, insert the following clause:

PRISM Clause: 5X252.201.602-2-91 Contracting Officer's Representative (COR) (JAN 2004)

The following contracting officer's representative(s) (COR) are appointed to this contract: (use for Awards)

PRIMARY:

[FILLIN#1# (Enter Name and Title)]

[FILLIN#2# (Enter Organization, Mail Stop, E-mail, Phone and Fax Numbers)]

ALTERNATE:

[FILLIN#3# (Enter Name and Title)]

[FILLIN#4# (Enter Organization, Mail Stop, E-mail, Phone and Fax Numbers)]

For ordering contracts, the COR(s) will be identified on each delivery/task order.

The COR(s) has a written designation memorandum on file with the procurement office. This memorandum, as directed by DFARS 252.201-7000(b), specifies the extent of the COR's authority to act on behalf of the contracting officer. This authority cannot be re-delegated to any other person. The alternate COR acts in behalf of the primary COR in absence of the primary COR and is appointed through a separate memorandum.

The primary responsibilities of CORs are:

1) Technical Liaison. Oversees the contractor's technical effort to ensure that performance is in strict accordance with the terms and conditions of the contract. Is the primary interface between the contractor and the contracting officer on matters pertaining to the contractor's technical performance. Answers technical questions, furnishes technical instruction and guidance to the contractor relating to contract specifications, and any other instructions of a technical nature necessary to perform the work as specified in the contract. CORs are not to tell the Contractor how to perform, but only what is required of a technical nature. If doubt exists as to whether information to be furnished falls within the scope of the contract, the COR is to coordinate action with the contracting officer prior to transmitting the information to the Contractor. Promptly responds to contracting officer queries for technical information and directs the contractor to submit requests for change, deviation or waiver in writing to the contracting officer. Keeps the contracting officer informed regarding communications with the contractor in order to prevent possible misunderstandings or situations that could affect contract terms and conditions and become the basis for future claims against the Government.

2) Monitoring contractor performance. Ensures delivery schedules are adhered to and provides quality assurance. Provides status to the contracting officer and other program personnel to ensure compliance with the technical requirements of the contract. If performance is not proceeding satisfactorily, or if problems are anticipated, promptly notifies the contracting officer and may provide a recommended technical course of correction action. Reviews and approves progress reports, technical reports, financial/management reports and other items requiring approval. Notifies the contracting officer if such reports or items should be rejected, stating the basis for rejection.

3) Technical Evaluation of Contractor Proposal. Evaluates contractor proposals for modifications and provides a written technical evaluation, to include price or cost elements, to the contracting officer.

4) Reviewing and Approving Payments and Acceptance. Reviews invoices and progress payments for accuracy and appropriateness and reports any discrepancies and provides concurrence (or non-concurrence) to the Contracting Officer. Approves

payments and accepts work on the appropriate forms for services performed or supplies delivered.

5) Administration of Government Property. Submits to the contracting officer and property specialist a written evaluation of the disposition of any material/property furnished by the Government that is accountable to the contract.

6) Security. Coordinates all security requirements of the contract with the contractor and the agency security office, to include DD254s and contractor access to NGA networks. Ensures AIS accounts of departing NGA contractor on-site personnel are cancelled expeditiously. Keeps track of any classified documents or data provided and ensures return or destruction upon completion of the contract.

7) Maintenance of Files. Keeps a file of all records related to the contract to include, but not limited to, the contract, e-mail correspondence, formal written correspondence, reports, receiving and acceptance reports/forms, technical evaluations, trip reports, meeting notes, status reports, past performance reports, government property reports and closeout records.

8) Administration of On-Site contractor personnel information. Maintains information on contractors, prime and subs, performing on-site at NGA facilities. Coordinates with the contractors and the Human Resource Office (HRD) all contractor data changes, to include arrival and departure, names, physical location(s), NGA organization code of office responsible for contractor-occupied-space, and employer name, address and phone. Approves badging of contractors upon contractor completion and submittal of Contractor Data Input Record Form to HR and a standardized NGA non-disclosure statement.

CORs shall not direct the contractor in any manner that would be of the type of supervision or control that converts an individual who is an independent Contractor (such as a contractor employee) into a Government employee.

Notwithstanding the delegated duties listed herein, the COR does not possess the authority of a contracting officer and, therefore, shall not alter the terms and conditions of the contract in any way, to include any commitments or changes that will affect cost, price, quality, quantity, delivery, or any other term or condition of the contract. The contracting officer is the only official with the authority to enter into or modify contractual agreements or commitments. Unauthorized acts could result in personal liability.

The duties and responsibilities set forth herein are not intended to be all-inclusive. The contracting officer may delegate additional functions as deemed necessary.

COR appointment and termination on a specific contract shall be effective upon contract/order award or execution of a modification to the contract by the contracting officer.

(End of Clause)

5X252.204-7000-90 PUBLIC RELEASE OF INFORMATION

As prescribed in 5X204.404-90, insert the clause:

PRISM Clause: NGA 5X252.204-7000-90 PUBLIC RELEASE OF INFORMATION
(MAR 2023)

(a) Except as provided in paragraph (b) of this clause, information pertaining to this contract shall not be released to the public unless authorized by the Contracting Officer in accordance with DFARS 252.204-7000, Disclosure of Information. Requests for approval to release information pertaining to this contract shall be submitted to the Contracting Officer by means of NGA Form 5230-1, National Geospatial-Intelligence Agency Request for Clearance for Public Release.

(b) The contractor may provide past performance information regarding this contract, without completing an NGA Form 5230-1 and without Contracting Officer approval, when submission of such information is to the Office of the Director of National Intelligence (ODNI), the Central Intelligence Agency (CIA), the National Reconnaissance Office (NRO), the National Security Agency (NSA), the Defense Intelligence Agency (DIA), and NGA to support source selections at those agencies. The contractor is responsible for the proper classification and handling of such information, and shall provide a copy of the information provided to the Contracting Officer.

(End of Clause)

5X252.204-9000 EXPORT AUTHORIZATION APPROVAL FOR CERTAIN ACCOMMODATION PROCUREMENT CONTRACT ACTIVITIES

As prescribed in 5X204.7301-90, insert the following clause:

5X252.204-9000 EXPORT AUTHORIZATION APPROVAL FOR CERTAIN ACCOMMODATION PROCUREMENT CONTRACT ACTIVITIES (MAR 2023)

This procurement, including any subcontracts issued pursuant to this contract, is being conducted pursuant to statutory authorities granted to the National Geospatial-Intelligence Agency (NGA). In accordance with 10 U.S.C. § 443 and 50 U.S.C. § 3038, NGA has determined that exports of defense articles, defense services and technical data required by this contract to foreign persons representing the foreign governments specified in this contract will not require licenses under the Arms Export Control Act, 22 U.S.C. § 2778 et seq., and the International Traffic in Arms Regulations, 22 C.F.R. Parts 120-130.

The contractor is cautioned that other restrictions and procedures related to the rendering of services and to the release, disclosure, and dissemination of information and articles associated with this contract may apply. Such restrictions include, but are not limited to, security guidance and procedures. (Reference NGA Instruction 2060.1, Export Control Program, Draft Ver 3, dated 3/1/22. The Department of State (DoS) Form DS-2032 should be filed in ECF Folder C10, Miscellaneous.)

(End of clause)

5X52.09.507-9000 Organizational Conflict of Interest

As prescribed in 5X09.507, insert the following clause:

PRISM Clause: 5X52.09.507-9000 Organizational Conflict of Interest (MAR 2023)

(a) The term "organizational conflict of interest" means that because of other activities or relationships with other persons, a person is unable to or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in

performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. The term "person" includes a business organization.

(b) The principals of organizational conflict of interest and descriptions thereof are set forth at FAR Subpart 9.5.

(c) If the offeror/contractor is aware of a potential organizational conflict of interest (OCI), as defined at paragraph (a) above, with respect to this procurement, the offeror shall make immediate and full disclosure in writing to the Contracting Officer.

(d) If in the performance of this contract the contractor discovers a potential organizational conflict of interest with respect to the contract, it shall make an immediate and full disclosure in writing to the Contracting Officer, which shall include a description of the actions the Contractor has taken or proposes to take to avoid, eliminate, or neutralize the conflict. In the event that the Contractor does not disclose a known potential conflict to the Contracting Officer, the Government may terminate the contract for default.

(e) If the Contractor is directed by authorized Government personnel by written tasks or verbal directions (in program review or otherwise), to perform service which the Contractor believes to constitute a potential organizational conflict of interest, the contractor is required to notify the Contracting Officer in writing of the nature of the conflict within ten (10) days after receipt of the Government directive. The Contracting Officer has the sole responsibility for determining whether a conflict does, in fact, exist. No effort shall be expended toward the performance of the services in question until a determination has been made or otherwise directed by the Contracting Officer.

(f) The Government has the unilateral right to waive one or more of the provisions of FAR Subpart 9.5 and this clause, on a case-by-case basis, under FAR Part 9.503.

(g) Any restraints negotiated in response to FAR Part 9.507-2 as a condition of award due to an organizational conflict of interest, shall be incorporated into the instant contract or Delivery/Task Order(s) as appropriate. These restraints will have duration of not more than [FILLIN#1#] years after completion of the contract effort.

(h) The Contractor shall insert Paragraphs (a) through (g) of this clause in all subcontracts.

(End of Clause)

5X52.209-9000, NGA OCI Provision for Known Non-Developmental work

As prescribed in **5X09.507**, insert the following clause:

5X52.209-9000, NGA OCI Provision for Known Non-Developmental work (JUN 2013)

The work identified in this RFP has been determined to be non-developmental work under the definitions contained in the [FILL IN _____] contract(s).

(End of Clause)

5X52.209-9001, NGA OCI Provision for Known Developmental work

As prescribed in **5X09.507**, insert the following clause:

5X52.209-9001, NGA OCI Provision for Known Developmental work (JUN 2013)

The work identified in this RFP has been determined to be developmental work under the definitions contained in the [FILL IN _____] contract(s). As a result, the Prime Contractor and its Subcontractors shall be excluded from participating on current contracts and bidding on new work to perform any development work and/or provide software, hardware or services for the development, maintenance and/or sustainment of any legacy and or future systems in the NGA architecture.

(End of Clause)

5X52.209-9003 - Protection of information and nondisclosure agreements

As prescribed in 5X09.505-4 and 5X227.7102-3-90, insert the following clause:

5X52.209-9003: Protection of Information and Nondisclosure Agreements (JUN 2009)

(a) Definitions. As used in this clause only:

(1) Protected Information and Computer Software means, unless specifically excluded by paragraph (2) below, all information and computer software, in any form or media, that in the course of performing work under this contract are disclosed to the Contractor, its subcontractors, or their employees, or to which those persons otherwise are given access to, by (i) NGA, (ii) other government agencies, (iii) foreign governments or (iv) other contractors while directly supporting NGA, which is accompanied by written legends identifying use or disclosure restrictions or disclosed under circumstances that the Contractor knows are subject to use or disclosure restrictions established in writing by the Government.

(2) Protected Information and Computer Software does not include information that:

(i) Has been released to the general public through no action of the undersigned in breach of this agreement or through no action of any other party in breach of any other obligation of confidentiality owing to the Government or the owner of the protected information or computer software;

(ii) Has been lawfully obtained by the recipient outside the course of the performance of this contract;

(iii) Has been properly licensed or provided directly by the owner (or other authorized source) of the information or computer software to the recipient to the extent so licensed or provided;

(iv) Is owned by the recipient or was developed independently of the disclosure hereunder;

or

(v) Has been disclosed to the recipient by the Government with explicit authorization to use or disclose the information for another purpose, to the extent so authorized.

(b) Use and disclosure restrictions. The Contractor shall use and disclose Protected Information and Computer Software only as necessary for the performance of the requirements of this contract. Protected Information and Computer Software may not be used or disclosed for any other purpose, including bid or proposal preparation or business marketing, without the written approval of the Contracting

Officer. Furthermore, unless otherwise directed by the Contracting Officer, the Contractor shall comply with all restrictions set forth in any legends, licenses or instructions provided to the Contractor or accompanying Protected Information and Computer Software or other written directives of the Government known to the Contractor. The use and disclosure obligations imposed by this paragraph shall expire as follows:

(1) There shall be no expiration date for the following Protected Information and Computer Software:

(i) Technical data or computer software containing Limited Rights, Restricted Rights, Government Purpose Rights, Special License Rights, or Unlimited Rights legends;

(ii) information or software marked Limited Distribution (LIMDIS);

(iii) information or software marked Source Selection Information;

(iv) contract proposal information marked pursuant to FAR 52.215-1(e) limiting its use for proposal evaluation purposes only;

(v) information and computer software marked Contractor Proprietary or a similar legend;

(vi) data known by the Contractor to be protected by the Privacy Act; and

(vii) information and software marked Controlled Unclassified Information (CUI) or For Official Use Only (FOUO).

(2) For other information or software accompanied at time of disclosure by a written legend identifying use or disclosure restriction time periods, the expiration date shall be as stated in or derived from the legend.

(3) For all other Protected Information and Computer Software, the expiration date shall be 3 years from the date the information or software is first disclosed to the Contractor.

Notwithstanding the above obligations, the Contractor is not in breach of this agreement if the Contractor uses or discloses Protected Information and Computer Software in response to an order of a court or administrative body of competent jurisdiction, but only to the extent permitted by that authority and only if the Contractor gives the Contracting Officer, to the extent practical, notice of the tribunal's order before the use or disclosure is made that allows NGA a reasonable time to object to the order.

(c) Unauthorized Use or Disclosure. The Contractor shall immediately notify the Contracting Officer of any unauthorized use or disclosure known by the Contractor of Protected Information and Computer Software in violation of the obligations contained in this clause.

(d) Disposition. At the conclusion of performance of work under this contract, the Contractor shall immediately return to the Government all Protected Information and Computer Software in its possession. Furthermore, if an employee of the Contractor who has had access to Protected Information and Computer Software is terminated or reassigned and thus is no longer performing work under this contract, the Contractor shall immediately return all Protected Information and Computer Software in the employee's possession. Moreover, if a Contractor's employee is dedicated to support a

specific NGA Office or Directorate or NGA program under this contract, but is subsequently reassigned to support another NGA Office or Directorate or NGA program under this contract, the Contractor shall immediately return all Protected Information or Computer Software in the employee's possession previously furnished by the prior NGA Office or Directorate or NGA program. In lieu of returning Protected Information and Computer Software, the Contracting Officer or Contracting Officer's representative may authorize the destruction of the information or the transfer of the information to another employee of the Contractor working under the contract. Finally, this clause shall not be interpreted as preventing the Contractor from retaining records required by statutes or other clauses of this contract, such as FAR 52.215-2 Audit and Records--Negotiations.

(e) Third party beneficiaries. This clause is executed for the benefit of the Government and the owners of Protected Information and Computer Software. The Government and the owners of Protected Information and Computer Software (and their delegates, successors and assignees) are third party beneficiaries of the obligations contained in this clause who, in addition to any other legal rights they may have, are intended to have the rights of direct action against the Contractor or any person to whom the Contractor has disclosed or released Protected Information and Computer Software, to seek damages from any breach of this clause, or to otherwise enforce this clause.

(f) Duration. The above obligations imposed by this clause shall survive the termination or completion of this contract.

(g) Classified Information. This clause is in addition to and in no manner abrogates requirements, obligations or remedies regarding the protection of classified information and does not supersede the requirements of any laws, regulations, other directives or nondisclosure agreements regarding classified information.

(h) Other Restrictions. This agreement does not abrogate any other obligations currently placed upon the Contractor or which may be imposed upon the Contractor in the future by the Government or other persons; or remedies afforded those persons regarding those obligations.

(i) Nondisclosure agreements. The Contractor shall require and ensure that each of its employees who may receive or be given access to Protected Information and Computer Software signs the nondisclosure agreement provided by attachment to this contract prior to the employee performing work under this contract covered by the nondisclosure agreement. The Contractor shall maintain copies of signed nondisclosure agreements for a period of at least three years after final payment under this contract. At the direction of the Contracting Officer, the Contractor shall make those agreements available for inspection by the Contracting Officer and will furnish the Contracting Officer copies of those agreements at no additional cost to the Government if requested by the Contracting Officer.

(j) The Contractor shall include the substance of this clause in all subcontracts under this contract in which subcontractors may be disclosed or granted access to Protected Information and Computer Software.

(End of Clause)

5. Optional References/Documentation: The revised NGA Nondisclosure Agreement (NDA) created and approved by OGC is posted on OCS's NGANet website under templates and guidance, provided at Appendix 6 in the Organizational Conflict of Interest (OCI) Guide, and provided at Attachment D in the Source Selection Plan (SSP) Template.

5X52.209.9004 Use of Contractor Support

As prescribed in 5X09.505-4-91, insert the following provision:

5X52.209.9004 Use of Contractor Support (OCT 2009)

(a) The Government will use (Insert Contractor Company Name(s) Here as Applicable) for facility support only. The Government will use (Insert Contractor Company Name(s) Here as Applicable) for administrative, technical, and cost analysis support during source selection and during the term of any resulting contract. The exclusive responsibility for source selection will reside with the Government.

(b) Proprietary information submitted in response to this solicitation will be protected from unauthorized disclosure as required by Subsection 27 of the Office of Procurement Policy Act as amended (the Procurement Integrity Act)(41 U.S.C. 423) (hereinafter referred to as "the Act") as implemented in the FAR. (Insert Contractor Company Name(s) Here as Applicable) is/are bound contractually by the Protection of Information and Nondisclosure Agreements clause with respect to proprietary information. By submitting a proposal in response to this solicitation, the Contractor consents to the Government disclosing Contractor proprietary information to the aforementioned contractors for the purposes indicated.

(End of Clause)

5X252.211-7003 Item Unique Identification and Valuation

As prescribed in 5X211.274-6-90, substitute the following paragraphs (c)(3), (c)(4), (f)(1), and (f)(2) for paragraphs (c)(3), (c)(4), (f)(1), and (f)(2), respectively, of the clause at DFARS 252.211-7003:

PRISM Clause: NGA 5X252.211-7003 ITEM UNIQUE IDENTIFICATION AND VALUATION (OCT 2015)

(c) (3) (S-90) The Contractor shall not mark items using two-dimensional data matrix symbology.

(c) (4) (S-91) The Government shall provide NGA barcode labels, containing unique item identifiers, to the Contractor. The Contractor shall affix the NGA barcode labels to each item.

(f) (1) (S-92) The Contractor shall not report items to the DoD IUID Registry nor to the Wide Area WorkFlow (WAWF).

(f) (2) (S-93) The Contractor shall report all items, including Contractor Acquired Property (CAP), using the NGA Total Asset Management (TAM) Asset Delivery Report.

(End of Clause)

5X52.215-9000 Reopener Clause – Downward Adjustment ONLY

As prescribed in 5X15.407-3 (S-90), insert the following template:

5X52.215-9000 REOPENER CLAUSE – DOWNWARD ADJUSTMENT ONLY (DEC 2010)

(a) Contract/Engineering Change Proposal (ECP), number(s) _____, utilized indirect and/or labor rates that were submitted to the Defense Contract Audit Agency (DCAA) but not approved. The Government and the Contractor have agreed that upon negotiation of a new Forward Pricing Rate Agreement (FPRA) for the indirect and labor rates, the value for this contract is subject to adjustment in accordance with the provisions of this clause.

(b) The Contractor shall notify the Procuring Contracting Officer (PCO) upon completion of negotiations of the new FPRA, recalculate the Contract/ECP values, and forward a supplemental cost proposal to the PCO within 30 calendar days of completion of the FPRA negotiations. The supplemental cost proposal shall be supported by cost and pricing data (FAR 15.401) and a Certificate of Current Cost and Pricing Data (FAR 15.406-2). In the event that the application of the new FPRA rates results in a Contract/ECP value equal to, or greater than the current established Contract/ECP values, the current values shall not be adjusted for the purposes of this clause.

(c) If determined necessary by the PCO, the Contractor agrees to commence negotiations concerning the amount of the adjustment within 30 days of receipt of the supplemental proposal by the Government.

(d) Should the Contractor fail to submit the information required in paragraph (b), or should there be no agreement as to the amount of the cost adjustment contemplated by this clause, then the PCO may make a unilateral determination and adjust the estimated cost and fee accordingly.

(e) Failure of the Government and the Contractor to agree on the amount of the adjustment shall be subject to the Disputes clause at Federal Acquisition Regulation 52.233-1.

(f) The cost and rate per hour and/or the indirect rates were established using the following rates:

See Attachment _____ to Section J.

(g) Final payment on this contract will be made only after the above rate adjustment is completed. A maximum of ____% of the total price may be withheld per this clause pending rate agreement.

(h) Except as provided herein, all other terms and conditions of this contract remain in full force and effect.

(End of Clause)

5X52.216-9001 Selection Factors for Award of Task/Delivery Orders

As prescribed in 5X16.506-90, insert the following clause:

PRISM Clause: 5X52.216-9001 Selection Factors for Award of Task/Delivery Orders (MAR 2016)

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(a) The Contracting Officer shall consider the factors listed below in determining the placement of task orders. The importance of the factors will vary depending on the nature of the task to be performed. Factors for consideration include the following:

- (1) performance under previous task orders;
- (2) price/cost issues;
- (3) key personnel capabilities;
- (4) **[FILLIN#1#]**

(b) The Contracting Officer may request written or oral proposals, presentations or pricing information on a given task from each contract holder prior to issuance of an order. The Contracting Officer is not bound to either request such information, or notify contract holders of a requirement for services if, in the Contracting Officers opinion, a decision to award can be made without such notification.

(c) Identification of the above factors does not preclude the Contracting Officer from awarding a task order in accordance with Federal Acquisition Regulation 16.505(b)(2).

(d) If a contractor feels they have not been given fair consideration for the award of a task order they may contact the Contracting Officer to resolve their questions. Should the contractor not be satisfied with the response received from the Contracting Officer, they should contact the NGA Task and Delivery Order Ombudsman. The name of the Ombudsman can be located at: www.nga.mil - search "Task and Delivery Order Ombudsman."

(End of Clause)

5X52.219-9002 –SMALL BUSINESS GOAL

As prescribed in 5X19.708-91, insert the following clause:
5X52.219-9002 –SMALL BUSINESS GOAL (NOV 2013)

(a) The magnitude of this contract may require businesses to team, partner, and/or subcontract with other business concerns large and small. The Government has set a small business subcontracting goal of **(Fill-In) %** of total contract dollars. All large business contractors will be expected to meet and maintain their approved subcontracting goals through the life of the contract in accordance with applicable statutory and regulatory requirements.

(b) Data regarding each large business contractor's small business subcontractor performance shall be provided as follows:

(1) After contract award, large business contractors shall submit data (See paragraph (2)) that identifies the small business subcontractors and work that has been awarded to them in accordance with FAR Part 52.219-9(d)(10)(ii).

(2) The NGA Program Small Business Performance slide (see template in NARI Part 5X53 – Forms) in Section J or commercial contract equivalent shall be submitted during the Program Management Review and based on the approved small business subcontracting plan that is a material requirement of this contract.

(End of Clause)

5X52.227-9000 Unauthorized use of NGA name, seal, and initials

As prescribed in 5X27.90, insert the following clause:

PRISM Clause: 5X52.227-9000 UNAUTHORIZED USE OF NGA NAME, SEAL, AND INITIALS (JUN 2006)

(a) As provide in 10 U.S.C. Section 425, no person may, except with the written permission of both the Secretary of Defense and the Director of National Intelligence, knowingly use the words "National Geospatial-Intelligence Agency", "National Imagery and Mapping Agency", or "Defense Mapping Agency," the initials "NGA", "NIMA", or "DMA," the seal of National Geospatial-Intelligence Agency, National Imagery and Mapping Agency, or the Defense Mapping Agency, or any colorable imitation of such words, initials, or seal in connection with any merchandise, retail product, impersonation, solicitation, or commercial activity in a manner reasonably calculated to convey the impression that such use is approved, endorsed, or authorized by the Secretary of Defense and the DNI.

(b) Whenever it appears to the U.S. Attorney General that any person is engaged or about to engage in an act or practice which constitutes or will constitute conduct prohibited by paragraph (a), the Attorney General may initiate a civil proceeding in a district court of the United States to enjoin such act or practice. Such court shall proceed as soon as practicable to hearing and determination of such action and may, at any time before final determination, enter restraining orders or prohibitions, or take such other action as is warranted, to prevent injury to the United States, or to any person or class of persons for whose protection the action is brought.

(End of Clause)

5X52.227-9001 Activities that affect U.S. persons

As prescribed in 5X227.9001, insert the following clause:

PRISM Clause: 5X52.227-9001 ACTIVITIES THAT AFFECT U.S. PERSONS (NOV 2016)

This contract is sponsored by the National Geospatial-Intelligence Agency. All work and services to be performed hereunder shall be in strict compliance with procedures contained in DoDM 5240.01.

(End of Clause)

5X52.228-9000 Insurance

As prescribed in 5X28.301, insert the following clause:

PRISM Clause: 5X52.228-9000 Insurance (SEP 2003)

Pursuant to FAR 52.228-5, Insurance – Work on a Government Installation, the contractor shall acquire and maintain during the entire performance period of this contract, insurance of at least the following kinds and minimum amounts as set forth below:

(a) Workman's Compensation and Employer's Liability Insurance: In accordance with amounts specified by the laws of the state in which the work is to be performed under

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this contract. In the absence of such state laws, an amount of \$100,000 shall be required and maintained.

(b) General Liability Insurance: Bodily injury liability in the minimum amount of \$500,000 per occurrence.

(c) Automobile Liability Insurance: In the amounts of at least \$200,000 per person and \$500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage.

(d) Aircraft public and passenger liability when aircraft are used in connection with performing the contract: \$200,000 per person and \$500,000 per occurrence for bodily injury other than passenger liability, and \$200,000 per occurrence for property damage. Coverage for passenger liability and bodily injury shall be \$200,000 multiplied by the number of seats or passengers, whichever is greater.

Execution of this proposal/contract shall constitute certification that the contractor is in compliance with all contractual requirements and any applicable State or Federal laws with respect to insurance requirements.

(End of Clause)

5X52.232-9000 Submission of Invoice

As prescribed in 5X32.905(e)(S-90)(A), insert the following clause:

5X52.232-9000: Submission of Invoice-Federal Payment Center (FPC) (OCT 2017) – For use in contracts paid by the FPC vendor pay office.

(a) The contractor shall prepare each invoice in accordance with the Prompt Payment Act and email one copy of the invoice to the DOD/FPC Scott AFB, IL at FMFOINSP@nga.mil. The DOD/FPC at Scott AFB, IL requires an email copy, but will accept a hard copy that is mailed to Federal Payment Center, P.O. Box 25767, Scott AFB, IL 62225.

(b) At the same time of submission of the invoice to the FPC vendor pay office, the contractor shall fax or email one copy to **[ENTER CO's NAME, UNCLASSIFIED EMAIL ADDRESS and FAX NUMBER]**, and one copy to **[ENTER THE COR's NAME, UNCLASSIFIED EMAIL ADDRESS AND FAX NUMBER]**. The contractor shall ensure that the invoice submitted to the payment office is the same invoice that is submitted to the CO and the COR without alteration.

(c) Upon receipt of the invoice, the COR will complete the receiving report and submit via the RRPT database tool. A copy of the completed receiving report shall also be provided to the Contracting Officer shown on the face of this contract/order.

(d) Contractors wishing to check the payment status of their vouchers may do so by calling FPC Vendor Support at 636-321-5251. In addition, questions may be directed to the Contracting Officer's Representative (COR). In the absence of a COR, contact the Procurement Contracting Officer (PCO), whose name and contact information appear on the face page of this contract/order.

(End of Clause)

(ALTERNATE I) 5X52.232-9000, Submission of Invoice DFAS (DEC 2019) – For use in contracts paid by the Defense Finance and Accounting Service (DFAS) vendor pay office.

(a) The contractor shall prepare each invoice in accordance with the Prompt Payment Act and email or fax one copy to the DFAS payment office designated in the contract/order.

(b) At the same time of submission of invoice to the payment office, the contractor will fax or email one copy to **[ENTER CO's NAME, UNCLASSIFIED EMAIL ADDRESS AND FAX NUMBER]**, one copy to **[ENTER THE COR's NAME, UNCLASSIFIED EMAIL ADDRESS AND FAX NUMBER]**.

(c) The COR will complete the receiving report and email or fax one copy to the DFAS payment office designated in the contract/order, and email one copy to the Contracting Officer shown on the face of this contract/order.

(d) Contractors wishing to check the payment status of their vouchers should do so by using the DFAS website at <https://www.dfas.mil/> or by calling the designated payment office phone number. When unable to obtain information on status of vouchers and payments from DFAS, questions may be directed to the Contracting Officer's Representative (COR). In the absence of an Administrative Contracting Officer (ACO), contact the Procurement Contracting Officer (PCO) whose name and contact information appear on the face page of this contract/order.

(End of Clause)

5X52.232-9001 Special Invoicing Instructions for Implementation of Section 3610 of the CARES Act (Pub.L. 116-136)

As prescribed at 5X32.905(b)(S-90), the following clause is incorporated into NGA contracts:

5X52.232-9001- Special Invoicing Instructions for Implementation of Section 3610 of the CARES Act (Pub.L. 116-136) (APR 2020)

(a) Definitions. Unless otherwise defined in CARES Act guidance issued by the Office of Management and Budget or Department of Defense, terms in this clause have the following definitions:

“Government-approved facility”, as used herein, includes NGA facilities, other government facilities, and any contractor or subcontractor facilities that are authorized places of performance under the contract.

“Minimum applicable contract billing rate”, as used herein, includes the company's normal loaded (direct and indirect expenses) for the individual's pay grade level as defined in the contract, excluding fee and profit. It does not include shift differentials, incentive payments, hazardous duty pay, or other forms of premium pay.

“Ready state” is defined as the contractor employee's readiness, willingness, and ability to return to work at a government-approved facility within one business day of being notified. For example, an employee notified on a Monday to return to work, is in a ready state if the employee is ready, willing, and able to report to a government-approved facility at the agreed start time on Tuesday. Employees on leave, including sick leave,

in accordance with Center for Disease Control (CDC) guidelines for the health and safety of Government or contractor personnel are also considered to be in a “ready state.” Individuals who are unable/ unwilling to return to work at an approved government site, for reasons other than those stipulated in CDC guidelines are not considered to be in a ready state.

(b) Applicability: This clause is applicable to CPFF/LOE, CPAF/LOE, T&M, LH, and FFP/LOE contracts performed in a Government-approved facility. The Government will not reimburse contractors for non-labor related charges under the CARES Act or for leave paid for employees that were not in a ready state. All non-labor costs, and all costs associated with other contract types or situations, may be addressed through the applicable Request for Equitable Adjustment procedures.

(c) In accordance with Section 3610 of the CARES Act (Pub. L. 116-136), costs for paid leave (including paid sick leave) that the Contractor provides to keep its employees or subcontractor employees in a ready state during the public health emergency for COVID-19, including to protect health and safety of Government and contractor personnel, provided such costs:

i. Are limited to those that are incurred by the contractor for providing paid leave as a result of the COVID-19 national emergency, to include compliance with mandatory self-isolation orders, and that would not have been incurred in the normal course of the Contractor’s business;

ii. Do not exceed the minimum applicable contract billing rates, defined in paragraph (a) of this clause;

iii. Do not exceed 40 hours per week per full time employee working under this contract or the weekly hours stipulated in the contract for less than full time employees;

iv. Were incurred between 21 March 2020 and 30 September 2020. Costs prior to that date, or for a contract that was not being performed in a Government approved facility, must be separately reviewed through the REA procedures.

v. Are reduced by the amount the contractor or subcontractor is or expects to be eligible to receive under any other Federal payment, allowance, or tax or other credit allowed by current or future law specifically identifiable with the COVID-19 public health emergency, including the tax credit allowed by division G of the Families First Coronavirus Response Act (Pub. L. 116-127) and any tax credits allowed under the CARES Act;

vi. Are reduced by the amount the contractor has accepted or intends to accept under any state or local payment allowance, or tax or other credit allowed by law that is specifically identifiable with the public health emergency declared on January 31, 2020;

vii. Were paid for employees that could not perform work at a Government-approved facility due to facility closures or other restrictions imposed as a result of the COVID-19 national emergency, and could not telework because their job duties cannot be performed remotely; and

viii. Otherwise meet the requirements of Section 3610 of the CARES Act and Defense Federal Acquisition Regulation Supplement (DFARS) part 231.205-79.

(d) Payment under this clause and the CARES Act is subject to the availability of funds, and contract value will not be increased solely to increase the amount of funds available for CARES Act payments under the contract.

(e) Invoicing Instructions

i. Contractors claiming reimbursement under Section 3610 of the CARES Act shall submit two invoices for each billing cycle.

ii. The first invoice shall follow normal invoicing procedures under the contract and will include work performed remotely (i.e. telework) for the billing cycle.

iii. The second invoice will be for paid leave expenses in accordance with Section 3610 of the CARES Act (hereinafter "COVID invoice").

iv. The COVID invoice shall include the term "COVID" in the invoice number, and "CARES Act Section 3610" in the invoice description.

v. The COVID invoice shall include detailed supporting documentation describing the calculated invoice amount and detailing compliance with paragraph (c) of this clause. This shall include a listing of employees provided paid leave for which reimbursement is requested, the number of hours of paid leave provided to each employee, the dates for which paid leave was provided to each employee, an explanation of why the claimed hours could not be worked, the type of leave (sick or other ready status), and the loaded hourly rate (excluding fee and profit) for the employee. The contracting officer may request additional documentation as necessary to determine that claimed costs are reimbursable under Section 3610 of the CARES Act and otherwise reasonable, allocable, and allowable.

vi. The COVID invoice shall be billed against the CLINs/Subclins/ACRNs that the individual(s) would have billed against absent the national health crisis.

The COVID invoice shall include the following certification, signed and dated by the appropriate company officer:

Certificate of Compliance with Section 3610 of the CARES Act and DFARS 231.205-79

I hereby certify, to the best of my knowledge and belief, that the request submitted by _____ dated _____ for reimbursement or equitable adjustment under Section 3610 of the CARES Act (Pub. L. 116-136) is accurate and complete; that the request is only for allocable costs that could not be mitigated by assigning contractor or subcontractor employees to other projects, including bid and proposal efforts; and that the request complies with all requirements and restrictions on reimbursement under Section 3610 of the CARES Act and Defense Federal Acquisition Regulation Supplement (DFARS) part 231.205-79, including the following:

_____ Reimbursement or equitable adjustment is requested only for leave granted to contractor or subcontractor employees during the period of March 21, 2020 to September 30, 2020.

_____ Reimbursement or equitable adjustment is requested only for leave granted to contractor or subcontractor employees who could not perform work at a facility or site approved by the federal government due to closures or other restrictions and who were

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unable to telework because their job duties could not be performed remotely during the public health emergency declared on January 31, 2020 for COVID-19.

_____ Reimbursement or equitable adjustment is requested only for leave granted necessary to keep contractor or subcontractor employees in a ready state or to protect the life and safety of Government and contractor personnel against risks arising from the COVID-19 public health emergency.

_____ The amount of requested reimbursement or equitable adjustment has been reduced by the amount the contractor or subcontractor is or expects to be eligible to receive under any other Federal payment, allowance, or tax or other credit allowed by current or future law specifically identifiable with the COVID-19 public health emergency, including the tax credit allowed by division G of the Families First Coronavirus Response Act (Pub. L. 116-127) and any tax credits allowed under the CARES Act.

_____ The amount of requested reimbursement or equitable adjustment is at the minimum applicable contract billing rates, does not include fee or profit, and does not include a request for reimbursement of paid leave exceeding an average of 40 hours per week for any individual employee.

_____ The amount of requested reimbursement or equitable adjustment has been reduced by the amount the contractor or subcontractor has accepted or intends to accept under any state or local payment, allowance, or tax or other credit.

_____ Applicable Federal, state, and local applications, tax forms, or other documentation substantiating any claim or approval of payment, allowance, or tax or other credit will be provided within 15 days of submission or receipt.

COMPANY:

CONTRACT NUMBER:

SIGNATURE:

PRINTED NAME:

TITLE:

DATE:

5X52.235-9001 COMPTROLLER GENERAL ACCESS TO RECORDS

As prescribed at 5X235.91, insert the following clause:

PRISM Clause: 5X52.235-9001 COMPTROLLER GENERAL ACCESS TO RECORDS (JUL 2001)

The Comptroller General, at its discretion, shall have access to and the right to examine records of any party to this agreement or any entity that participates in the performance of this agreement that directly pertains to, and involved transactions relating to, the agreement.

Excepted from this requirement is any party to this agreement or any entity that participates in the performance of the agreement, or any subordinate element of such party or entity, that has not entered into any other agreement (contract, grant, cooperative agreement, or "other transaction") that provides for audit access by a government entity in the year prior to the date of the agreement.

This clause shall not be construed to require any party or entity, or any subordinate element of such party or entity that participates in the performance of the agreement, to create or maintain any record that is not otherwise maintained in the ordinary course of business or pursuant to a provision of law.

The Comptroller General shall have access to these records until three years after the date the final payment is made by the United States.

The recipient of the agreement shall flow down this provision to any entity that participates in the performance of the agreement.

Local Prescription:

1. All Agreement Officers shall include the enclosed clause that provides access by the Comptroller General to records that directly pertain to other transactions for prototype solicitations and agreements awarded under the authority of 10 U.S.C. 2371. This clause is required only for those agreements in which the total government payments are in excess of \$5,000,000.
2. However, if a contractor or member of a consortium being awarded the other transaction for prototype agreement has not entered into a contract, grant, cooperative agreement or other transaction agreement that contains such an audit clause within the year prior to the date of the prototype agreement, there is no requirement for the audit clause.
3. This requirement may be waived by the head of the contracting activity if it is determined that it would not be in the public interest to apply the requirement to the agreement. If the requirement is waived, a notification must be transmitted to the Committees on Armed Services of the Senate and the House Representatives, the Comptroller General, and the Director, Defense Procurement prior to execution of the agreement.
4. The Agreement Officer must notify the head of the contracting activity of any situations in which (a) companies refuse to enter into agreements as a result of the

inclusion of the subject clause) or (b) the clause restricted NGA access to companies that typically do not do business with the Department of Defense.

(End of Clause)

5X52.37-9000 Contractor Employee Data for Access to NGA Facilities or Sensitive Systems

As prescribed at 5X37.504-90, insert the following clause:

PRISM Clause: 5X52.37-9000 Contractor Employee Data for Access to NGA Facilities or Sensitive Systems (OCT 2005)

1. This clause defines the contractor's responsibilities for providing accurate contractor data, and providing updates to that data, for NGA's Human Capital Management System (HCMS). NGA requires that all contractors provide initial and timely updates to HCMS data for all personnel performing under this contract who have access to NGA facilities or sensitive systems, as determined by the contracting officer.

2. The Contractor shall:

a. Provide the Contracting Officers Representative (COR) a Point of Contact (POC) for providing and maintaining contractor personnel data for the HCMS database. The POC shall be provided to the COR, in writing, within 10 days of contract award (or modification inserting this clause). For contracts with an on-site Project Lead or Program Manager, this person shall serve as the POC.

b. Provide the COR initial HCMS data for their personnel within 10 days of contract award or modification. The information that is to be provided for HCMS shall include: persons full legal name, social security number, citizenship status, NGA contract number, prime contractor name, NGA location and organization where the person will be working, and a 24/7 emergency contact point for the contractor.

c. Notify the COR of all contractor data changes within 10 days of the change. Changes include new or departing contractor personnel and any change to information provided in paragraph b above. If the contract number under which a contractor or its personnel work changes, the POC for the contract receiving the personnel shall notify the COR within 10 days of the change.

d. Provide response to all inquiries made by NGA as to the validity and completeness of contractor data records in the HCMS database within two weeks of date of request.

e. Ensure all employees attend in-processing and out-processing briefings.

(End of Clause)

5X52.237-9001 CONTRACTOR IDENTIFICATION

As prescribed in 5X37.114-90, insert the following clause:

5X52.237-9001 CONTRACTOR IDENTIFICATION (JAN 2012)

The contractor shall ensure that contractor personnel, including their sub-contractor personnel, identify themselves as contractor personnel, by introducing themselves or being introduced as contractor personnel when:

(1) attending meetings with Government personnel or contractors performing under a contract awarded to support NGA requirements,

(2) answering government telephones,

(3) providing any type of written or electronic mail correspondence, and

(4) working in any other situation where their actions could be construed as an official Government act or representation of the Government.

The contractor shall ensure that contractor personnel possess and properly display Government-issued identification badges when on NGA property or when attending NGA meetings not located on NGA property.

The contractor will ensure that contractor personnel, when performing in a contractor capacity, refrain from using their retired or reserve component military rank or title in all written and verbal communications.

The Government may include the results of the contractor's ability to adhere to this clause in quality assurance surveillance plans and award fee plans as part of the overall administration of this contract.

(End of Clause)

5X52.237-9002 RESERVED

5X52.239-9000 RESERVED

5X52.239-9001 GEOINT Standards and Profile Implementation/Compliance for a New Program (hereafter referred to as NPX)

As prescribed in 5X39.101-91, insert the following template:

5X52.239-9001 GEOINT Standards and Profile Implementation/Compliance for a New Program (hereafter referred to as NPX) (DEC 2011)

(a) The Contractor shall engage in a collaborative/iterative process with NGA [specifically the National Center for Geospatial Intelligence Standards (NCGIS) and the NGA Architecture and Standards Board's (NASB) Integrated Architecture Working Group (IAWG)], to identify and assess standards selected from NSG Enterprise Architecture Standards Views (StdV-1 and StdV-2) in order to implement mandated standards through the use of Capability Standards Profiles (CSP) for the specific GEOINT capability being delivered.

(b) The Contractor shall review NSG StdV-1 and StdV-2 updates for new and emerging standards annually, in accordance with DOD IT Standards Registry (DISR)/IC Standards Registry (ICSR) mandated baselines, which may impact the NPX CSP. This assessment shall include cost data, interoperability factors and developer recommendations which will be provided during scheduled program reviews established by Program Management.

(c) The Contractor shall use, reuse and/or extend existing mandated or emerging GEOINT standards and profiles where such use/reuse benefits interoperability and supports cost, schedule, and performance measures. Only where existing standards fail to meet a specific functionality supporting the program's desired capability may the Contractor recommend alternative standards to be followed in the NPX CSP design.

These recommendations will include supporting rationale, drawing on the contractor's knowledge of applicable industry standards, other standards cited in the DISR, ICSR/IC Enterprise Registry and Repository (ER2), or evolving/emerging community standards.

(d) The Contractor shall submit waivers through the Program Manager to the NASB when selecting/implementing standards inconsistent with NGA's StdV-1 and/or those prescribed in DISR/ICSR/ER2, and may be required to brief the government regarding the use of non-StdV-1 standards if they are necessary to satisfy NPX capability and functionality.

(e) The Contractor shall provide the Government access to the CSPs and required architecture views, and present status of CSP and standards conformance at Government readiness reviews if requested.

(f) The Contractor shall obtain Government approval for changes to the NPX CSP. At a minimum, approval shall come from the Program Office/NCCB and the NASB for impacts to the Architecture and NSG interoperability.

(g) The Contractor shall obtain final approval from the cognizant NGA contracting officer prior to implementing NPX CSP changes that affect the requirements of the contract.

(End of Clause)

5X52.239-9002 Contingency Planning Requirements for Technology Resources

As prescribed in 5X39.101-92, insert the following clause:

5X52.239-9002 Contingency Planning Requirements for Technology Resources (SEP 2016)

(a) Definitions. See Appendix A of this clause.

(b) Applicability. This clause applies whether the entire contract or task order (hereafter "contract"), or portion thereof, includes information technology resources or services in which the Contractor is developing a system or application, or operates and sustains any National Geospatial-Intelligence Agency (NGA) system containing, information that directly supports execution of NGA's mission essential function (MEF).

(c) Contractor Responsibilities. The Contractor is responsible for the following:

(1) Developing continuity of operations plans for information systems (hereafter referred to as "IT Disaster Recovery (ITDR) Plans") consistent with NGA policy and the approach contained in the Contractor's bid or proposal that resulted in the award of this contract. The plan is to continue NGA system operations and to ensure their—

(i) Integrity, guard against improper information modification or destruction, and includes ensuring information non-repudiation and authenticity;

(ii) Confidentiality, preserve authorized restrictions on access and disclosure, including means for protecting personal privacy and proprietary information; and,

(iii) Availability, ensure timely and reliable access to and use of information. A loss of availability is the disruption of access to, or use of, information or an information system. The requirement to develop an ITDR Plan for NGA information systems is directly linked to the Availability Categorization (Low, Moderate, or High, per FIPS 199) but is not solely linked to a system's Availability Categorization. Availability for

Contingency Planning purposes does not equate to meeting Service Level Agreement (SLA) requirements to ensure a specific level of system availability/up-time (e.g., 99.98, 99.73, etc.). SLA percentages of up-time do not directly translate into assured system redundancy, off-site data backup and storage, or the ability to recover an information system whose operation has been disrupted by a specific man-made or natural disaster. Availability, with regard to Contingency Planning, shall be centered around customer/functional user stated recovery time objectives (RTO) and recovery point objectives (RPO). Considering alternate site operations is part of the recovery strategy to ensure availability.

(2) Providing ITDR for any NGA or Contractor systems, and information contained therein, connected to an NGA network or operated by the Contractor, regardless of location, on behalf of NGA.

(3) Adopting, and implementing, at minimum, the policies, procedures, controls, and standards of the NGA Continuity Program to ensure the availability of NGA information and information systems for which the Contractor is responsible under this contract, or to which the contractor may otherwise have access under this contract. The NGA Emergency Management Program is outlined in NGAD 3021 (Enclosure 1, reference i) which is available within the NGA Library, Internal Policies website.

(4) Ensure all NGA systems supported are properly developed, implemented, and categorized in accordance with the applicable Federal, DoD and NGA directives, standards, instructions etc. that are listed at Appendix B.

(5) Completed plans shall be entered into the NGA corporate repository known as the Continuity Planning Tool (CPT).

(d) Contractor Contingency Planning Deliverables. In accordance with the timeframes specified, the Contractor shall prepare and submit the following contingency planning related documents to the Contracting Officer/Contract Specialist (CO/CS), Contracting Officer Representative (COR), Program Manager (PM), or NGA Mission Assurance Division as appropriate/required.

(1) System Developers:

(i) IT Disaster Recovery (ITDR) Plan – due prior to system delivery. The ITDR Plan shall document precautions and measures to minimize the effects of an incident or disaster on NGA's related IT infrastructure, systems applications, and data resources. Plans should include specific, detailed, step-by-step procedures for recovering the information system(s) components, operating system, applications, data, and processes to implement in the event of a major hardware/software failure, communications or network outage, or facility unavailability. All ITDR Plans will be developed using the standard NGA ITDR Plan Template provided by the NGA Mission Assurance Division in the CPT. The plan will address all baseline Contingency Planning Controls as required for the system(s) as categorized per FIPS 199 outlined in:

(A) Committee on National Security Systems Instruction (CNSSI) 1253
"Security Categorization and Control Selection for National Security Systems"

(B) National Institute of Standards and Technology (NIST) 800-53
"Recommended Security Controls for Federal Information Systems and Organizations"

(C) National Institute of Standards and Technology (NIST) 800-34 "Contingency Planning Guide for Federal Information Systems"

(ii) IT Disaster Recovery (ITDR) Plan Operational Exercise – due prior to system and/or Application Service Provider (ASP) Initial Operational Capability (IOC). Prior to IOC, the contractor shall conduct an operational exercise of the information system(s) ITDR Plan to ensure its viability and executability. Exercise results and lessons learned shall be documented and any issues noted in executability documented in a Plan of Actions and Milestones (POA&M) and remediated prior to final system delivery as part of the Assessment and Authorization (A&A) process (formerly Certification and Accreditation (C&A) process).

(2) System Operators and Sustainers:

(i) IT Disaster Recovery (ITDR) Plan – due within 6 months of assuming responsibility for the operations and sustainment (O&S) or A&A of any NGA information system. The ITDR Plan shall document actionable precautions and executable measures to minimize the effects of an incident or disaster on NGA's related IT infrastructure, critical systems applications, and data resources. Plans should include specific, detailed, step-by-step procedures for recovering the information system(s) components, operating system, applications, data, and the processes to implement in the event of a major hardware/software failure, communications or network outage, or facility unavailability. All ITDR Plans will be developed using the standard NGA ITDR Plan Template and shall address all baseline Contingency Planning Controls as determined via the security controls at the entity registration meeting and as required for the system(s) as categorized per FIPS 199 outlined in:

(A) Committee on National Security Systems Instruction (CNSSI) 1253 "Security Categorization and Control Selection for National Security Systems"

(B) National Institute of Standards and Technology (NIST) 800-53 "Recommended Security Controls for Federal Information Systems and Organizations"

(C) National Institute of Standards and Technology (NIST) 800-34 "Contingency Planning Guide for Federal Information Systems"

(ii) If an ITDR Plan has already been created by the System Developer for the system, the O&S contractor will assume responsibility for the plan, familiarize themselves with its contents and ensure their ability to execute the existing plan, and staff, exercise, and update the plan per sections iii-v below.

(iii) IT Disaster Recovery Team – due within 6 months. Identify and put in place the appropriate number of personnel with the required skill sets to execute the system ITDR Plan and ensure recovery/reconstitution of the entity.

(iv) IT Disaster Recovery (ITDR) Operational/Functional Exercise – due annually. The contractor shall conduct an operational/functional exercise of the information system(s) ITDR Plan (at minimum annually) to ensure its viability and executability. Exercise results and lessons learned shall be documented and provided to the System Program Manager and any issues noted in plan executability shall be remediated.

(A) Conducting an operational exercise on any given day may not be feasible within the larger scope of NGA operations. However, an operational exercise will be

conducted annually to ensure Agency ability to react to and execute the ITDR Plan under “live” conditions. Planned site power outages may be used to accomplish this task.

(B) Annual ITDR Plan exercise records and results will be maintained to support tracking of Agency contingency planning performance measure/metrics and NGA’s external reporting requirements to higher authority.

(v) IT Disaster Recovery Plan (ITDR) Maintenance – due annually or as required based on changes to system(s) architecture, configuration, processes, or primary points of contact.

(e) Training. All contractors supporting this contract will complete all mandatory Security, Information Assurance, and Business Continuity/Disaster Recovery training required by the Agency. These courses are offered through the NGA College at no cost to the contractor.

(f) Government Access for IT Inspection. The Contractor, upon request, shall afford the Government access to Contractor and subcontractor facilities, installations, operations, documentation, databases, and personnel used in performance of this contract to the extent required to carry out the NGA Continuity Program and audit the ability of the contractor to implement and execute proposed business continuity/disaster recovery plans to safeguard against threats and hazards to the integrity, confidentiality, and availability of NGA information systems and/or data.

(g) Government-Furnished Property (GFP)/Contractor-Acquired Property (CAP). All government funded property purchased by the Government, or the Contractor for the Government, used in execution of this contract, will be entered for accountability purposes into the NGA Total Asset Management (TAM) System.

(h) Subcontracts. The Contractor shall incorporate the substance of this clause in all subcontracts that require protection of NGA information and information systems as described in paragraph (a) of this clause, including those subcontracts that—

(1) Have physical or electronic access to NGA computer systems, networks, or IT infrastructure; or,

(2) Use information systems to generate, store, process, or exchange data with NGA or on behalf of NGA, regardless of whether the data resides on a NGA or the Contractor's information system.

(i) Document Information. The Contractor shall contact the COR for any documents, information, or forms necessary to comply with the requirements of this clause.

(j) Contractor Responsibilities. Upon physical completion of the contract, the Contractor shall return all NGA information and IT resources provided to the Contractor during contract performance and the Contractor shall certify that all NGA information has been purged from Contractor-owned systems used in contract performance.

(k) Failure to Comply. Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause shall be grounds for the Contracting Officer to terminate this contract.

APPENDICES to local clause 5X52.239-9002

Appendix A to 5X52.239-9002 - Definitions

Business Continuity Plans are documents that define resources, recovery responsibilities, and a predetermined set of instructions or procedures that describe how business processes will be restored after a significant disruption to business operations has occurred.

Continuity of Operations Plans provide for the continuation of an organization's essential functions at an alternate site and performing those functions for the duration of an event with little or no loss of continuity.

Continuity Planning Tool is the common repository for business continuity and disaster recovery plans and information within NGA. It is an automated, web-based planning tool accessible to all NGA government and contract staff. The tool is developed and maintained by NGA to support implementation of its overall Continuity Program.

Disaster Recovery Plans provide for the continuity of system operations after a disaster.

Exercise refers to the process of simulating an emergency to validate the viability of one or more aspects of a contingency plan to ensure that the plan is capable of supporting the continued execution of the agency's business functions throughout the duration of a continuity event.

Federal Information means, in accordance with OMB Circular A-130, Management of Federal Information Resources, Appendix 3 (Security of Federal Automated Information Resources), information created, collected, processed, disseminated, or disposed of by or for the Federal Government.

Federal Information System means an information system used or operated by an executive agency, by a contractor of an executive agency, or by another organization on behalf of an executive agency.

Information, in accordance with OMB Circular A-130, Management of Federal Information Resources, Appendix 3 (Security of Federal Automated Information Resources), means any communication or representation of knowledge such as facts, data, or opinions in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual forms.

Information Security means protecting information and information systems from unauthorized access, use, disclosure, disruption, modification or destruction in order to provide—

(a) Integrity, which means guarding against improper information modification or destruction, and includes ensuring information non-repudiation and authenticity;

(b) Confidentiality, which means preserving authorized restrictions on access and disclosure, including means of protecting personal privacy and proprietary information;

(c) Availability, which means ensuring timely and reliable access to and use of information; and

(d) Privacy, which means regulating the appropriate collection, maintenance, use, and dissemination of personal information by federal executive branch agencies. It prohibits disclosure without consent.

Information System means a discrete set of information resources organized for the collection, processing, maintenance, transmission, and dissemination of information, in accordance with defined procedures, whether automated or manual.

Information Technology includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar processes, services (including support services) and related resources.

Mission Essential Function refers to the limited set of agency-level government functions that must be continued after a disruption of normal activities. NGA's single MEF is to "Task, collect, process, exploit, analyze, and disseminate timely, relevant, and accurate geospatial-intelligence consisting of imagery, imagery-intelligence, and geospatial information for use by the Armed Forces, Departments or Agencies of the U.S., and foreign partners."

Recovery Point Objective (RPO) is the point in time to which systems and data must be recovered after an outage (for example, end of previous day's processing). RPOs are often used as the basis for the development of backup strategies, and as a determinant of the amount of data that may need to be recreated after the systems or functions have been recovered.

Recovery Time Objective (RTO) is the period of time within which systems, applications, or functions must be recovered after an outage (for example, one business day). RTOs are often used as the basis for the development of recovery strategies and as a determinant as to whether or not to implement the recovery strategy during a disaster situation. RTO is derived from the point/time of service disruption.

Appendix B to 5X52.239-9002 - List of Applicable Standards, Directives, and Instructions

- (1) Federal Information Security Management Act (FISMA)
- (2) Department of Homeland Security - Federal Continuity Directive (FCD) 1 "Federal Executive Branch National Continuity Program and Requirements";
- (3) Intelligence Community Memorandum (ICM) 2007-100-1 "Intelligence Community Continuity Programs";
- (4) CNSSI 1253 "Security Categorization and Control Selection for National Security Systems";
- (5) DoD Directive 3020.26 "Defense Continuity Program";
- (6) DoD Instruction 3020.39 "Integrated Continuity Program for the Defense Intelligence Enterprise (DIE)";
- (7) DoD Instruction 3020.42 "Defense Continuity Plan Development";

- (8) DoD Instruction 3020.45 "Defense Critical Infrastructure Program (DCIP) Management;
- (9) DoD Instruction 8500.2 "Information Assurance Implementation",
- (10) NIST SP800-34 "Contingency Planning Guide for Federal Information Systems";
- (11) NIST SP800-53 "Recommended Security Controls for Federal Information Systems and Organizations"; and
- (12) All applicable NGA internal Policy Directives (PD), Policy Notices (PN), NGA Instructions (NI), and NGA CIO Directives (NCD).

(End of Clause)

5X52.242-9000 OCONUS Travel for Contractor Employees on NGA Business

As prescribed in 5X42.70, insert the following clause:

PRISM Clause: 5X52.242-9000 OCONUS Travel for Contractor Employees on NGA Business (AUG 2005)

1. Contractor employees, who have been assigned NGANet accounts, traveling OCONUS in the performance of this contract, shall complete the required travel information in eTravel. eTravel is located on NGANet under Business Processes. The eTravel logon screen has a link for new users. The contractor shall follow the procedures contained in eTravel including the steps contained in the OCONUS Travel Checklist for Contractor Employees on NGA Business. To the maximum extent possible, contractor employees shall provide various pieces of information within the time frames stated in the Checklist, however, all information shall be provided no later than 30 days prior to the scheduled travel.

2. Contractor employees, who have not been assigned NGANet accounts, traveling OCONUS in the performance of this contract shall, provide written notice to the COR of the planned travel no later than 45 days prior to the scheduled OCONUS travel. The COR will provide the contractor with documentation to complete relative to the traveler(s) and the intended destination(s). The contractor shall complete the documentation and forward it to the NGA contract identified in the documents no later than 30 days prior to the scheduled travel.

3. OCONUS travel is travel outside of the US and includes travel to Alaska, Hawaii, and U.S. possessions such as Puerto Rico, Guam and the US Virgin Islands.

(End of Clause)

5X52.242-9001 - Observance of Legal Holidays, Delayed Arrival or Early Release of Federal Employees.

As prescribed in 5X42.1301-90, insert the following clause:

5X52.242-9001 - Observance of Legal Holidays, Delayed Arrival or Early Release of Federal Employees. (SEP 2021)

(a) The National Geospatial-Intelligence Agency observes the following days as Federal holidays:

New Year's Day

January 1st

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Martin Luther King's Birthday	3rd Monday in January
Washington's Birthday	3rd Monday in February
Memorial Day	Last Monday in May
Juneteenth Independence Day	June 19 th
Independence Day	July 4 th
Labor Day	1st Monday in September
Columbus Day	2nd Monday in October
Veterans Day	November 11 th
Thanksgiving Day	4th Thursday in November
Christmas Day	December 25 th
Inauguration Day	January 20 th of each fourth year after 1965 Washington DC Metropolitan Area only

Any other day designated by Federal law, Executive Order, or Presidential Proclamation.

(b) Federal law (5 U.S.C. 6103) establishes the public holidays listed. Please note that most contractors work a Monday through Friday schedule. For these contractor employees, when a holiday falls on a non-workday -- Saturday or Sunday -- the holiday usually is observed on Monday (if the holiday falls on Sunday) or Friday (if the holiday falls on Saturday).

(c) Contractor personnel are not prohibited from performing work on a holiday, unless the labor category is not authorized to work as negotiated in the contract. The following list identifies the labor categories that are not authorized to perform work on a holiday based on negotiated terms. Labor categories included on this list are expected to complete their workday as scheduled when NGA government employees are authorized early release prior to a holiday (e.g. two-hour early release) or other such benefit that applies to NGA government employees only.

LABOR CATEGORY

(d) If the Contractor's personnel work on a holiday, no form of holiday, premium or differential compensation is an allowable cost under the Contract unless another clause in the Contract explicitly authorizes work on holidays and for the time period covered by the special compensation.

(e) When Federal employees working in an NGA facility are authorized a delayed arrival, released early or excused in bulk from work, the Contractor may authorize its personnel whose normal workplace is in that facility: (1) to continue working in the facility (unless prohibited by the NGA Facility Site Manager); (2) to work at alternate work locations; or (3) to refrain from performing services during that period of time; as long as any work performed does not result in the incurrence of any form of holiday, premium or differential compensation, or additional costs for alternate work locations to

be reimbursed by the Government as a direct or non-nominal indirect cost. Such costs are not allowable under the Contract. Further, when services are not performed (e.g., a contractor employee takes leave) the non-working hours are not allowable as a direct charge under the Contract.

(End of clause)

5X52.242-9002 - Government Shutdown, Furlough of government personnel and Closure of NGA Facilities

As prescribed in 5X42.1301-91, insert the following clause:

5X52.242-9002 - Government Shutdown, Furlough of government personnel and Closure of NGA Facilities (NOV 2018)

(a) An NGA facility may be closed down for all or a portion of a business day(s) as a result of:

- 1) Failure of Congress to appropriate funds, resulting in a government shutdown and furlough of government personnel;
- 2) Actual Continuity of Operations (COOP) or COOP training exercises;
- 3) Severe weather;
- 4) Unplanned events; or
- 5) Any other reason deemed appropriate by the D/NGA.

(b) In specific reference to (a) 1, and notwithstanding any other provision of the contract, contractors should continue to perform work in accordance with the terms of the contract, provided funding is available on the contract. Unless otherwise directed by the Contracting Officer, no work shall continue in the absence of available funding on the contract. A Contracting Officer will issue specific stop-work notices to those contractors who must stop work due to the government shutdown. Once a stop-work notice is received, contractors should implement an orderly shutdown (e.g., secure files, make preparations to preserve work, etc). Unless otherwise directed by the Contracting Officer, the stop-work order will automatically lift when Congress appropriates funds and work performance should resume provided there is funding on the contract.

(c) In specific reference to (a) 2 through (a) 5, the Contractor's personnel may be authorized by the cognizant Contracting Officer or Contracting Officer's Representative (COR) to work during a Government shutdown or closure as described in this clause, as long as any work performed does not result in the incurrence of any form of holiday, premium or differential compensation or additional costs for alternate work locations to be reimbursed by the Government as a direct or non-nominal indirect cost. Unless otherwise explicitly authorized by another clause, such costs are not allowable under the Contract. Further, when services are not performed (e.g., a contractor employee takes leave) the non-working hours are not allowable as a direct charge under the Contract.

(End of clause)

5X252.242-9000 Approving payments (Cost Reimbursement, Time and Materials, and Labor Hour Contracts)

As prescribed in 5X242.803(b)(S-90), insert the following clause:

PRISM Clause: 5X252.242-9000 Approving payments (Cost Reimbursement, Time and Materials, and Labor Hour Contracts) (MAR 2023)

(a) Interim Voucher Receipt and Approval in accordance with DFARS 242.803(b)(i)(A) and (B), the contractor shall prepare an original and three (3) copies of each voucher in accordance with the applicable Prompt Payment Clause (see 5X52.232-9000). The remaining copies of the vouchers shall be submitted to the Contracting Officer shown on page 1 of the contract/modification and the Contracting Officer's Representative shown in Section G.

(b) In the event discrepancies are discovered by the Contracting Officer/Contracting Officer's Representative before payment of the voucher, the Contracting Officer/Contracting Officer's Representative will notify the DCAA auditor, who will coordinate resolution of the discrepancies and secure a corrected voucher as deemed necessary. Copies of the corrected voucher will be submitted to the Contracting Officer/Contracting Officer's Representative. If an offset is required due to a discrepancy on a paid voucher, then the contractor will show the offset on a subsequent voucher.

(c) Completion/Final Voucher: The contractor shall submit final vouchers and closing documents to DCAA and the Contracting Officer. After DCAA review, the contracting officer approves all completion/final voucher(s) and sends to the paying office.

(End of Clause)

5X52.45.102-9000 Management of NGA Government Property

As prescribed in 5X45.107-91-- Management of NGA Government Property PRISM Clause, insert the following:

PRISM Clause: 5X52.45.102-9000 Management of NGA Government Property (MAR 2023)

Management of NGA Government Property

(a) Definitions

(1) NGA Accountable Property System of Record (APSR) is the enterprise system for property accountability, stewardship, and financial reporting. Contains the official records that form the basis for accountability, audit, and fiduciary reporting of accountable property. Functions as a sub-ledger to the NGA accounting system for financial reporting purposes.

(b) Contractor Responsibilities.

(1) The Contractor shall account for all accountable Government Furnished Property (GFP) in NGA APSR in accordance with DoDI 5000.64.

(2) The Contractor shall designate an Asset Custodian (AC) to manage and account for no greater than 3,000 GFP assets per AC in the NGA APSR.

- (3) The Contractor shall physically inventory 100% of all accountable GFP in its possession on an annual basis based on NGA-SIOP Inventory Schedule and ensure reconciliation within the APSR.
- (4) Contractors should submit their annual inventory report to SIOP, in turn for OCS to incorporate as the official GFP support record.
- (5) Contractors with no access to COE/APSR shall report inventory results, asset deliveries/receipt, and asset disposal within 10 days of completion to the NGA Security and Installation Operations Office, Policy and Programs Division (SIOP) at NGA/SIOP, Mail Stop N82-SIOP, 7500 GEOINT Drive, Springfield, VA 22150 to update the NGA APSR.

(c) Government Responsibilities.

- (1) The NGA Security and Installation Operations Directorate, Installation Operations Office, Policy and Programs Division (SIOP) shall perform the property administration function identified in FAR 42.302(a)(27).
- (2) The Government shall provide instruction on the use of the NGA APSR.
- (3) The Government shall designate a Program Asset Manager to perform receipt and acceptance on behalf of the Government for property managed in the NGA APSR.

(End of Clause)

5X52.45.592-9000 Government-Furnished LIMITED DISTRIBUTION Materials

As prescribed in 5X45.107-91, insert the following clause:

PRISM Clause: 5X52.45.592-9000 Government-Furnished LIMITED DISTRIBUTION Materials (JUN 2004)

(a) Definition - LIMITED DISTRIBUTION (LIMDIS) materials mean any unclassified geospatial information and data or imagery distributed by or created by the National Geospatial-Intelligence Agency, as well as materials derived from National Geospatial-Intelligence Agency information and data that is marked or labeled as "LIMITED DISTRIBUTION" or "LIMDIS."

(b) Geospatial information and data or imagery identified as being "LIMITED DISTRIBUTION" are protected from public disclosure pursuant to Title 10, United States Code, Section 455. The Government may provide LIMITED DISTRIBUTION materials to the Contractor (or Subcontractor) for use in the performance of this contract.

(c) In addition to the restrictions and obligations contained in the clause at DFARS 252.245-7000, "Government-Furnished Mapping, Charting, and Geodesy Property (April 2012)," the Contractor (or Subcontractor) shall:

(1) Grant access to LIMDIS materials to only those individuals having a need for access in the performance of this contract. In furtherance of this requirement, the contractor shall:

- a. Prohibit storage of LIMDIS materials on systems accessible by other individuals who do not require such access.
- b. Ensure that LIMDIS materials are not used to either demonstrate products or capabilities outside the scope of the contract or as a marketing tool.
- c. Ensure that LIMDIS materials are not used to create other products or derivative products.

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d. Prohibit the processing or transmission of LIMDIS materials on unencrypted or unsecured systems accessible by the public such as the World Wide Web.

e. Ensure that LIMDIS materials are not displayed or made otherwise accessible to the public.

f. Ensure that LIMDIS materials are not released, accessed by, or sold to foreign governments or international organizations.

g. Take whatever additional measures are necessary to prevent unauthorized access to LIMDIS materials.

h. Employ storage and inventory controls adequate to ensure that LIMDIS materials are protected from loss or unauthorized use or access.

(2) Ensure each reproduction of LIMDIS materials includes the following LIMDIS caveat:

LIMITED DISTRIBUTION

Distribution authorized to DoD, IAW 10 U.S.C. § 130 & § 455. Release authorized to U.S. DoD contractors IAW 48 CFR § 252.245-7000. Refer other requests to Headquarters, NGA, ATTN: Release Officer, Mail Stop D-136. Destroy as "FOR OFFICIAL USE ONLY." Removal of this caveat is prohibited.

(3) Ensure LIMDIS materials that are no longer required for contract performance and chosen for destruction are destroyed by a method that prevents reconstruction of the materials to their original condition. Paper products should be destroyed by a method such as pulping, burning, or cross-cut shredding. Electronic media should be returned to the Contracting Officer or destroyed locally in a manner that prevents reconstruction of the media and abides by any environmental regulations.

(4) Immediately submit a report to the Contracting Officer upon discovery that LIMDIS material has been lost, stolen, or disclosed to unauthorized persons. Follow-up reports containing additional facts will be provided immediately when those facts become known. The Contractor (and/or Subcontractor) shall provide an assessment of the extent to which LIMDIS material has been compromised and shall propose corrective action to limit the extent of compromise and to prevent a reoccurrence.

(d) The Contractor shall include the terms and conditions of subparagraphs (a) through (c) of this provision in every subcontract.

(End of Clause)

5X52.246-9000 - Contractor Compliance with all applicable National Geospatial-Intelligence Agency (NGA) and U.S. Government installation regulations, directives, instructions, rules, policies and procedures.

As prescribed in 5X46.105, insert the following clause:

5X52.246-9000 - Contractor Compliance with all applicable National Geospatial-Intelligence Agency (NGA) and U.S. Government installation regulations, directives, instructions, rules, policies and procedures. (MAR 2023)

A. The Contractor shall comply with, and shall ensure that its personnel, to include subcontractors, comply with all applicable NGA regulations, directives, instructions, rules, policies and procedures. The Contractor may request copies from the Contracting Officer's Representative (COR), the Contracting Officer or their designated representative(s).

B. The Contractor shall comply with, and shall ensure that its personnel, to include subcontractors, comply with regulations, directives, instructions, rules, policies, procedures and other applicable requirements issued by the U.S. Government Installation Commander where NGA is a tenant activity, including, but not limited to, those relating to force protection, security, health and safety. The Contractor may request copies from the Contracting Officer's Representative (COR), the Contracting Officer or their designated representative(s).

C. The Contractor shall institute and implement an effective program to ensure their employees and subcontractors, comply with all applicable requirements in accordance with paragraphs A and B above as well as paragraphs E and H below.

D. The specific requirements covered in paragraphs A, B, E, and H may be specified in the Performance Work Statement, elsewhere in the contract, or in NGA and/or Government installation regulations, directives, instructions, rules, policies and procedures. Specific requirements may include, but are not limited to categories such as:

- Security in/out processing
- Personnel in/out processing
- Facility access, parking, and in/out processing
- Information technology access and in/out processing
- PeopleSoft access, updates and in/out processing
- Periodic and special training requirements

E. Facility Access and Badging.

The following criteria must be met in order to be issued an NGA IC badge and to gain access to an NGA-controlled facility:

(1) NGA IC badges will only be issued to those contractors who provide direct-charge support on an active TS/SCI NGA contract, even when seated at corporate locations outside of NGA Government facilities. Green badges must be used at least once during a one-month period at an NGA Government facility. Failure to use an NGA IC badge may result in suspension or termination of the badge for lack of activity. The badges will expire at the end of the supported contract. Note: NGA IC badges will not be issued to any contractor who does not need access to an NGA facility, i.e., Corporate VIPs, etc. Infrequent visitors must report to the Visitor's Center.

(2) Notwithstanding the above, NGA badges will be issued to contractors, who are required by contract, to gain access to an NGA facility in the event of an emergency or when after-hours access is required. The Government POC or Contracting Officer's Representative (COR) coordinates the submission of an application for an NGA badge; establishment of a PeopleSoft record of SCI accesses; completion of NGA Form 5212-7A, "Request for Identification/Building Access Picture Badge"; and submission of the

application to the appropriate Site Security Office for approval. (Reference NGA Instruction 5210.8, Physical Security Program)

F. The Contracting Officer may direct the Contractor, at its own expense, to remove and replace any Contractor personnel who fail to comply with or violate applicable requirements of this clause. Such action may be taken at the Government's discretion without prejudice to its rights under any other provision of this contract, including the Termination for Default clause.

G. The Contracting Officer may include the results of the Contractor's ability to adhere to this clause in past performance reports, quality assurance surveillance plans and award fee plans as part of the overall administration of this contract.

H. NGA Inspector General

(1) The contractor must report to the NGA Inspector General (IG), DoDIG, or Intelligence Community IG any and all possible violations of federal law or illegal intelligence activities related to this contract by individuals charging directly or indirectly to this contract.

(2) The IG shall have access to any individual charging directly or indirectly to this contract whose testimony is needed for the performance of the IG's duties. In addition, the IG shall have direct access to all records, reports, audits, reviews, recommendations, documents, e-mails, papers, or other material that relate to this contract with respect to which the IG has responsibilities. Failure on the part of any contractor to cooperate with the IG shall be grounds for administrative action by the Director, Office of Contract Services, including contractual remedies.

(3) NGA contractors and contractor personnel may report suspected instances of improper conduct through the NGA IG Hotline. Contractors shall make their employees aware of this Hotline: 571-557-4849, secure 578-4849, or toll free 1-800-380-7729 or by contacting the OIG at IG@nga.mil or secure at IG@nga.ic.gov.

(4) The contractor agrees to include the substance of this clause in all subcontracts exceeding the simplified acquisition threshold except those for commercial products or commercial services and those where the NGA association must be protected.

(5) This requirement is supported in the Federal Acquisition Regulation (FAR) clause 52.203-13, which requires timely disclosure to the Government of credible evidence of violation of law, and timely and complete response to OIG requests for documents and access to employees and information.

(6) This requirement is supported in NGA policy. NGA 7410.1 requires all personnel, to include contractors, to cooperate fully with NGA OIG audits, inspections, and investigations.

(End of Clause)

PART 5X53 FORMS

Subpart 5X253.2 - Prescription of Forms

All forms and templates can be found on the OCS website.

- A. NGA Contracting Officer Warrant Nomination Form
- B. 5X53.04.402-91: Contractor Personnel Security Clearance Decision Analysis
- C. 5X253.204-70-90: DD Form 350, Individual Contract Action Report
- D. 5X207.103(e): Streamlined Acquisition Plan (AP) (Summary Sheet and Checklist)
- E. 5X07.105: Acquisition Plan Template
- F. 5X52.219-9002: NGA Program Small Business Performance Slide

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GLOSSARY

ACRONYMS

A&S	Acquisition and Sustainment
ACO	Administrative Contracting Officer
ACRN	Accounting Classification Reference Number
AGC	Acquisition Governance Council
AMR	Acquisition Management Review
AO	Approving Official
A/OPC	Agency/Organization Program Coordinators
APC	Agency Program Coordinator
ARC	Acquisition Research Center
BAA	Broad Agency Announcement
BOA	Basic Ordering Agreement
BPA	Blanket Purchase Agreement
CAE	Component Acquisition Executive
CDRL	Contract Data Requirements List
CO	Contracting Officer
COR	Contracting Officer's Representative
COTR	Contracting Officer's Technical Representative
CPM	Component Program Manager
DAU	Defense Acquisition University
D&F	Determination and Findings
DFARS	Defense Federal Acquisition Regulation Supplement
DPC	Defense Pricing and Contracting (Formerly Defense Procurement and Acquisition Policy (DPAP))
EVM	Earned Value Management
FAR	Federal Acquisition Regulation
FOCI	Foreign Ownership, Control, or Influence
FOIA	Freedom of Information Act
FSS	Federal Supply Schedule
GEO-F	GEOINT Financial Accounting System
GFMSA	GEOINT Functional Manager Standards Assessment
GFPR	Government Furnished Property Record

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GPO	Government Printing Office
GWAC	Government Wide Acquisition Contracts
GWG	Geospatial-Intelligence Standards Working Group
HCA	Head of the Contracting Activity
ICOR	Independent Contracting Officer Review
ICCG	Intelligence Community Contracting Guide
IC ITE	Intelligence Community Information Technology Enterprise
IIPM	Industry Interaction Program Manager
IT	Information Technology
IDIQ	Indefinite Delivery Indefinite Quantity
J&A	Justification and Approval
LIMDIS	LIMITED DISTRIBUTION
MIPR	Military Interdepartmental Purchase Request (DD Form 448)
NCCB	NGA Configuration Control Board
NDA	Nondisclosure Agreement
NSGD	National System for GEOINT Directive
OCONUS	Outside the Continental United States
OCS	NGA Office of Contract Services Directorate
OCSP	OCS Policy and Acquisition Resources Division
ODNI	Office of the Director of National Intelligence
OPC	Organization Program Coordinator
OSBP	Office of Small Business Programs
OT	Other Transaction
OTA	Other Transaction Authority
OUSD	Office of the Undersecretary of Defense
PAR	Performance Assessment Report
PBSA	Performance-Based Services Acquisition
PWS	Performance Work Statement
RFC	Request for Change
RFP	Request for Proposal
RFQ	Request for Quotation

SAE	Senior Acquisition Executive
SAF	Subject to Availability of Funds
SOW	Statement of Work
SBA	Small Business Administration
SPE	Senior Procurement Executive
SSA	Source Selection Authority
TAM	Total Asset Management
UCA	Undefinitized Contract Action

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Table 1. NARI Update Table.

Change Type*	Change Date	Revised By	Page(s) Affected	Change Description
ADM		OCSP	2	Corrects Table of Contents.
ADM		OCSP	5	Corrects paragraph numbers.
ADM		OCSP	35-36	Adds classification levels in section 5X05.201 – General, for clarity.
ADM		OCSP	39	Adds inadvertently omitted section 5X06.305 – Availability of the Justification.
ADM		OCSP	141	Removes previously rescinded Form 5X53.242 – NGA Performance Assessment Report, from listing of forms.
ADM	9/7/2016	SI/OCSP	43	Updates references in section 5X07.194 – Authority to Provide NGA Facility Space to Contractors.
ADM	9/7/2016	OCSP	49	Corrects content in section 5X09.505-4-91-- Use of Contractor Support to read “contract” instead of “clause.”
SUB	9/7/2016	OCSP	66-67	Adds section 5X17.206 - Evaluation, approved by the SPE in NARI Change Notice (NCN) 16-07, to update policy and guidance regarding the utilization of FAR clause 52.217-8, Option to Extend Services.
ADM	9/7/2016	OCSP	92, 125	Removes and reserves section 5X237.170-2 (S-94) Notification of High Priced Service Contract Full-Time Equivalents (FTEs) and associated local clause 5X52.237-9002 - Notification of High Priced Service Contract Full-Time Equivalents (FTEs) pending OCS revisions.
ADM	9/7/2016	OCSP	128, 131	Updates paragraph (g) and changes clause date to SEP 2016 in local clause 5X52.239-9002 Contingency Planning

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				Requirements for Technology Resources, to reflect use of the Total Asset Management (TAM) System.
ADM	10/4/2016	OCSP	13-14	Updates content in section 5X01.601-90, Legal review; raising the dollar threshold to \$700,000 in place of \$650,000.
ADM	10/4/2016	OCSP	63	Updates section 5X216.504(c)(1)(ii)(D) (i) - Limitation on single award contracts, to reflect the delegation by the NGA Head of Agency for Acquisition to the NGA Senior Procurement Executive (SPE) for the determination authorized in FAR 16.504(c)(1)(ii)(D)(1).
ADM	10/4/2016	OCSP	76	Adds new FAR subpart 5X22.20 - Fair Pay and Safe Workplaces (effective 25 October 2016) and section 5X22.2004-2 – Definitions (effective 25 October 2016). The Chief of OCSP is designated as the Agency Labor Compliance Advisor (ALCA).
ADM	10/4/2016	OCSP	85	Deletes line (vi) from section 5X33.104(a) (3)(S-90).
ADM	10/4/2016	OCSP	91	Updates section 5X237.170-2, Approval requirements, paragraph S-92 to reflect Office of the NGA Executive Secretariat (ONE) approval.
ADM	10/4/2016	OCSP	109-110	Adds section 5X52.100-91, table of NGA local provisions and clauses.
ADM		OCSP	49	Updates section 5X09.506-90 by deleting the September 2013 date of the Organization Conflict of Interest Guide.
ADM		OCSP	82-83	Updates section 5X33.102-91 -- Agency Coordination, to clarify internal OCSP reporting requirements.

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ADM		OCSP	99-100	Updates subpart 5X42.15 - Contractor Performance Information, section 5X42.1503-90 Procedures; deleting the term Program Manager (PM) from the section to accurately reflect roles assigned in PRISM Vendor Past Performance module.
ADM		OCSP	110, 122-123	Updates local clause 5X52.227-9001-- Activities that affect U.S. persons, to update a reference in the clause to DoDM 5240.01 and change the clause date to NOV 2016.
ADM		OCSP	110, 139-140	Updates local clause 5X52.45.102-9000-- Management of NGA Government Property, to clarify property administration responsibilities consistent with NARI section 5X42.202-90-- Assignment of property administration and change the clause date to NOV 2016.
ADM	12/2/2016	OCSP	19	Adds the requirement to provide the contractor a copy of the COTR appointment letter at section 5X201.602-2-92, paragraph E.
ADM	12/2/2016	OCSP	21	Revises section 5X01.602-3-90, paragraph e.5., Procedures for ratification of unauthorized commitments, by adding the requirement to report information in the OCS Ratification Log.
ADM	12/2/2016	OCSP	33	Updates section 5X04.805 and section 5X04.805-90 to reference FAR section 4.805 in accordance with FAR change.
ADM	12/2/2016	OCSP	45	Adds section 5X08.405-6 -- Limited Sources, paragraph (d) - Justification approvals; provides cross reference to

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				approval authorities in section 5X06.304 for the approving official required at FAR 8.405-6(d).
ADM	12/2/2016	OCSP	103	Updates section 5X43.201-91, paragraph E, to update definitization modification numbering in accordance with DFARS 204-1603 Procedures.
ADM	11/2/2016	OCSP	144	Adds the acronym SBA – Small Business Administration to the Glossary.
ADM	1/3/2017	OCSP	44-45	Revises Subpart 5X07.5 - Inherently Governmental Functions, to identify COR use of the HDSP Workforce Mix Worksheet to document review and certification of Inherently Governmental Functions.
ADM	1/3/2017	OCSP	63	Revises section 5X216.504(c)(1)(ii)(D) - Limitation on single award contracts. The word “determination” is deleted from paragraph S-91 to comply with DFARS language and paragraph S-92 is deleted in its entirety to eliminate reference to provisional award fee, which is no longer authorized.
ADM	1/3/2017	OCSP	92	Updates section 5X39.101-90 -- Approval of IT purchases, by adding NI 8400.3 (Enclosure 1, reference z) to paragraph A.
ADM	2/3/2017	OCSP	38-39	Revises the table at section 5X06.304 --Approval of Justification to clarify roles and responsibilities.
ADM	2/3/2017	OCSP	44	Revises section 5X07.194 -- Authority to provide NGA facility space to contractors, by updating NGA policy references and removing SI review/approval.
ADM	2/3/2017	OCSP	88	Revises section 5X35.003-90 - - Other transactions to reflect

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				NGA authority for prototype projects provided by USD AT&L memorandum dated 12 December 2016.
ADM	2/3/2017	OCSP	97	Revises section 5X42.202-- Assignment of contract administration. Deletes paragraph (b), eliminating written determinations related to contract delegations.
ADM	2/3/2017	OCSP	69-72, 101-104	Subpart 5X217.74-- Undefined Contract Actions and subpart 5X43.2—Change Orders
ADM	2/3/2017	OCSP/FM	109-110, 123-124	Revises local clause 5X52.232-9000 --Submission of Invoice-Federal Payment Center (FPC). The revisions eliminate the fax number and change the date of the clause to Feb 2017.
ADM	3/3/2017	OCSP	13-14	Revises section 5X01.601-90 – Legal Review, to standardize the language to read “legal review comments.”
ADM	3/3/2017	OCSP	66	Revises section 5X216.601(d) --Time and Materials Contracts, to reformat subsection (i) 5X to conform with the DFARS.
ADM	3/3/2017	OCSP	90	Revises subsection 5X37.103(a)(i) --Contracting Officer Responsibility, to update the location of the new “Certificate of Nonpersonal Services” template on OCS webpage.
ADM	3/3/2017	OCSP	91	Revises subsection 5X237.104(b)(i) – Personal services contracts, clarifying the contents of the determination and finding to conform with the DFARS.
ADM	3/3/2017	OCSP	144	Revises section 5X53.253.2— Prescription of Forms, by deleting Item G, the Certificate of Non Personal Services

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				template. The template is now on the OCS webpage.
ADM	3/3/2017	OCSP	All	Removes the term Acquisition Wizard throughout the document and replaces with OCS website.
ADM	4/4/2017	OCSP/ COR Program Office	16-18	Revises subsections 5X201.602-2-90 --Contracting Officer's Representative (COR) and 5X201.602-2-91 -- COR local clause, appointment memorandum and delegated duties statement. Changes reflect COR nomination, training requirements and appointment procedures are contained on the OCS website and conform to DFARS requirements. Deletes subsection 5X201.602-2-92 -- Contracting Officer's Technical Representative (COTR) appointment memorandum and delegated duties statement. Subsection is reserved.
ADM	4/4/2017	OCSP	40	Revises section 5X07.104 to only reference paragraph (d); deleting reference to subparagraphs (2) (i), in order to conform with revised FAR content made by FAC 2005-95.
ADM	4/4/2017	OCSP	41	Deletes section 5X07.107 - Additional Requirements for Acquisitions Involving Consolidation, Bundling, or Substantial Bundling, to eliminate redundant language and the dollar threshold added to the FAR by FAC 2005-95.
ADM	4/4/2017	OCSP	56	Revises paragraph (S-91) from section 5X15.303 - Responsibilities, updating reference to read DoD Source Selection Procedures.

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SUB	4/4/2017	OCSP	59, 77, 90	Adds sections 5X16.102 - Policies, Subpart 31.2 Contracts with Commercial Organizations, subsection 5X31.205-6 -Compensation for Personal Services, and revises subsection 5X237.170-2 – Approval requirements. Changes approved by the SPE in NARI Change Notice (NCN) 17-01, to update policy and guidance regarding allowable compensation for contractor and subcontractor employees.
ADM	4/4/2017	OCSP	71	Revises subsection 5X19.705-4-90 -- Reviewing the Subcontracting Plan, by changing the reference to read “OSBP Subcontracting Plan Checklist, instead of “OCS Subcontracting Plan Checklist.”
ADM	4/4/2017	OCSP	86	Revises section 5X35.003-90 – Other transactions, by deleting reference to OCS policy letter 02-20, and updating reference to DoD's Other Transactions (OT) Guide for Prototype Projects dated January 2017.
ADM	6/6/2017	OCSP	5, 44, 91	Revises Enclosure 1-References, deleting reference y, NI 8400.1, “Acquiring Information Technology Products,” due to the instruction being rescinded. Deletes subsections 5X8.001 and 5X08.002 along with reference NI 8400.1. Deletes paragraph D in subsection 5X39.101-90, along with reference to 8400.1.
ADM	6/6/2017	OCSP	18-19	Revises subsection 5X01.602-3-90 -- <i>Procedures for ratification of unauthorized commitments</i> by updating the unauthorized commitment

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				reporting log location, the order of subparagraphs, and clarifying the difference between unauthorized commitments and Antideficiency Act violations.
ADM	6/6/2017	OCSP	31	Revises subsections 5X04.804-90 -- <i>Closeout of contract files</i> and 5X204.804-90 -- <i>Closeout documentation</i> , by updating the reference to read "OCS Closeout SOP" and deleting use of the local NGA Contract Completion Statement in the OCS Closeout SOP.
ADM	6/6/2017	OCSP	33	Revises subsection 5X05.101 (a) (2) (S-90) -- <i>Posting Contract Actions Greater Than \$15K but Less Than \$25K</i> . The revision clarifies posting to the GPE in accordance with FAR 5.101(a)(2)(ii) and deletes posting of proposed contract actions to the NGA public website.
SUB	6/6/2017	OCSP	39-40	Revises subsection 5X07.104 -- <i>General procedures</i> and subsection 5X07.104-90 -- <i>Acquisition Plan (AP) Approval Authority</i> . Revisions approved by the SPE in NARI Change Notice (NCN) 17-03 to update the required reviews and approval authority for Acquisition Plans.
ADM	6/6/2017	OCSP	59	Deletes and reserves paragraph (S-91) in section 5X216.405-2 -- <i>Cost-plus award fee (CPAF) contracts</i> . The revision deletes the requirement to prepare a notification for ODNI/SAE for award fee decisions on contracts valued at over \$500M.

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ADM	6/6/2017	OCSP	106, 134-135	Revises date of local clause 5X252.242-9000 Approving payments (Cost Reimbursement, Time and Materials, Level of Effort and Labor Hour Contracts) to June 2017, and revises paragraph (d) to clarify the contracting officer's responsibility to approve all completion/final vouchers and send to the paying office.
ADM	8/3/2017	OCSP	18-19	Revises subsection 5X01.603-90 -- NGA Contracting Officer Warrant Program. The revision adds reference to Other Transaction training and adds Other Transaction and Agreements content throughout for consistency.
ADM	8/3/2017	OCSP	29, 51-52	Revises references to the Micro-Purchase dollar threshold to reflect the increase to \$5,000 consistent with DoD Class Deviation 2017-O0006 issued on 13 July 2017. Revises subsection 5X04.803-90 <i>File documentation checklists</i> and Subpart 5X13.2 - <i>Actions at or Below the Micro-Purchase Threshold</i> .
ADM	8/3/2017	OCSP	38-39	Revises subsection 5X07.104-90 -- Acquisition Plan (AP) Approval Authority. The revisions clarify approving and concurring roles for Acquisition Plans as previously approved in NARI Change Notice (NCN) 17-03.
ADM	8/3/2017	OCSP	87	Revises subsection 5X237.170-2 <i>Approval requirements</i> to conform with DFARS approval thresholds and use of a determination to document the contract file for

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				acquisition of services that are not performance based.
ADM	8/3/2017	OCSP	95	Revises Subpart 5X42.15 - <i>Contractor Performance Information</i> at 5X42.1502-90 <i>Policy</i> , to clarify that NGA is exempt from reporting to CPARS.
SUB	10/5/2017	OCSP	5, 12, 48, 64, 89, 104, 140	Revisions approved by the SPE in NARI Change Notice (NCN) 17-04 to add references to advisory guidance contained in the Intelligence Community Contracting Guide (ICCG). Revisions at the following locations: Enclosure 1 – References; Table of Contents; section 5X01.301 – Policy; adds new section 5X09.506-91; adds new subsection 5X17.502-2-90; section 5X39.101; adds new Part 5X51; and Glossary/Acronyms.
SUB	10/5/2017	OCSP	1, 15-16, 34-35, 42, 71	Revisions approved by the SPE in NARI Change Notice (NCN) 17-05 to delete references to CIA Contracting Authority. Revisions at the following locations: Applicability; section 5X01.601-92; section 5X05.303; deletes section 5X07.195; and section 5X19.708-91.
ADM	10/5/2017	OCSP	41	Revises section 5X07.193 <i>NGA Infrastructure Space Board (NISB) authority to acquire space</i> . The revisions clarify the definition to acquire NGA space and adds the NISB group email for PMs/requiring activities to receive NISB approval to acquire space.
ADM	10/5/2017	OCSP	79-80	Revises subsection 5X32.905(e)(S-90) <i>Payment</i>

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				<i>Documentation and Process</i> , to delete clause dates and add content to cross reference 5X242.803 (b) (S-90) when issuing Cost Reimbursement, Time and Material, and Labor Hour Contracts.
ADM	10/5/2017	OCSP	106, 119-120	Revises Part 5X52 Solicitation Provisions and Contract Clauses. Local clause 5X52.232-9000 with its Alternate 1 is revised to read October 2017 and adds cross reference to local clause 5X252.242-9000 when issuing Cost Reimbursement, Time and Material, and Labor Hour Contracts.
SUB	12/5/2017	OCSP	28, 43, 69, 94	Makes multiple revisions to add reference to DoD Class Deviation 2017-E0001 <i>Reporting Unclassified Contract Actions</i> at: Subpart 5X04.6; subsection 5X209.105-2-70; subsection 5X19.708-90; and subsection 5X42.1502-90.
ADM	12/5/2017	OCSP	18-20	Revises subsection 5X01.603-90 – <i>NGA Contracting Officer Warrant Program</i> by making administrative changes under subparagraphs (b) <i>Examination</i> and (c) <i>Contracting Officer Warrant Board</i> .
ADM	12/5/2017	OCSP	29	Revises subsection 5X04.803 -- <i>Contents of contract files</i> , at (S-90) (a)(41) to add mandatory use of the Contract Admin Turnover Checklist in the contract file.
ADM	12/5/2017	OCSP	71	Updates Equal Employment Opportunity websites at Subpart 5X22.8 -- <i>Equal Employment Opportunity</i> and section 5X22.805 – <i>Procedures</i>

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ADM	12/5/2017	OCSP	72	Makes revisions to comply with FAC 2005-96 by removing and reserving Subpart 5X22.20 – <i>Fair Pay and Safe Workplaces</i> and removing subsection 5X22.2004-2 – <i>Definitions</i> .
ADM	12/5/2017	OCSP	85-86	Revises Subpart 5X36.6 – <i>Architect-Engineer Services</i> and section 5X236.604 – <i>Performance evaluation by deleting use of obsolete DD Form 2631</i> and updating the threshold to \$35,000.
ADM	2/5/2018	OCSP	5	Revises <i>Enclosure 1 – Responsibilities</i> , to update the CAE delegation to the DD/NGA.
ADM	2/5/2018	OCSP	31	Adds section 5X204.7107 <i>Contract accounting classification reference number (ACRN) and agency accounting identifier (AAI)</i> to describe the order of use for two-character ACRNs at NGA.
ADM	2/5/2018	OCSP	8, 72	Deletes Subpart 5X225.74 - <i>Defense Contractors outside the United States</i> and Subsection 5X225.7402-3 <i>Government support in accordance with DFARS change</i> .
ADM	2/5/2018	OCSP	4, 91, 104, 121	Deletes the following content due to incorporation into the DFARS: <i>DoD 8570.01M (Enclosure 1, reference h); section 5X239.7102 Policy and responsibilities; subsection 5X239.7102-1 General; section 5X239.7103 Contract Clause; Clause 5X52.239-9000: Information Assurance Workforce Improvement Program Implementation</i> .
ADM	4/5/2018	OCSP	5, 38	Deletes references to obsolete NGA governance boards, including the National System

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				for Geospatial-Intelligence Acquisition Review Board (NARB); adds reference to coordination with the CAE secretariat at 5X07.104 <i>General Procedures</i>
ADM	4/5/2018	OCSP	11	Adds <i>Subpart 5X01.1 - Purpose, Authority, Issuance, section 5X201.170 Peer reviews, subparagraph (b) Component peer reviews.</i> Cross references NGA procedures to 5X01.601-92 -- <i>Independent Contracting Officer Review (ICOR) Process.</i>
SUB	4/5/2018	OCSP	21	Approved by the SPE in NARI Change Notice (NCN) 18-01, revises <i>NARI 5X01.603-3-90(b)--Contracting Officer's Authority</i> to clarify warrant authority and provide reference to the Contracting Officer's Warrant Desk Guide.
ADM	4/5/2018	OCSP	61-62	Revises <i>5X17.204 Contracts</i> , subparagraph (e)(S-90), by adding additional reference to <i>DFARS 217.204(e)(i)</i> when establishing an IDIQ contract up to 10 years.
ADM	4/5/2018	OCSP	69-70, 103,115	Revises <i>section 5X19.708-90 Contract Clause (Intelligence Community Electronic Subcontracting Reporting System (IC eSRS))</i> and local clause <i>5X52.219-9001 Intelligence Community Electronic Subcontracting Reporting System (IC eSRS)</i> (MAR 2018) to specify use of FAR clause 52.219-9 Alternate III at NGA and use of the DoD reporting code when using eSRS.

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ADM	4/5/2018	OCSP	83	Revises <i>Subpart 5X34.2 - Earned Value Management System, section 5X34.201-90 Policy</i> by updating the responsible office and website to the NGA Office of Ventures & Innovation (OVI).
ADM	6/6/2018	OCSP	4, 28	Adds NGA Instruction (NGAI) 5200.4, "Operations Security," dated 11 August 2016 at Enclosure 1, References as reference (h) and at <i>NARI 5X04.403(b)(1)</i> .
ADM	6/6/2018	OCSP	14, 30	Revises section <i>5X01.601-92 Independent Contracting Officer Review (ICOR) Process</i> and changes title of section <i>5X04.803-90 to Contract file indexes</i> ; cross references these sections to standardize content and use of contract file indexes.
ADM	6/6/2018	OCSP	15	Revises section <i>5X01.601-94 Acquisition management reviews (AMRs)</i> to clarify internal OCS AMR procedures and reporting.
ADM	6/6/2018	OCSP	21-22	Revises section <i>5X01.603-3-90 Appointment</i> ; at (c)(3) <i>Warrant Dollar Threshold Levels</i> to reflect initial warrant level up to the Simplified Acquisition Threshold (SAT) and at (d)(2) <i>Adjustments to Existing Warrants</i> to add guidance for temporary warrant increases and the corresponding OCS standard operating procedures (SOP).
ADM	6/6/2018	OCSP	64	Revises section <i>5X17.502-2 The Economy Act, paragraph (c) Requirements for determinations and findings</i> ; deleting reference to obsolete OCS Administrative Notice (AN) 15-01.

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ADM	6/6/2018	OCSP	69	Revises <i>section 5X19.201 General policy, paragraph (10)</i> ; changes “\$150,000 or more” to read “greater than the Simplified Acquisition Threshold (SAT).”
ADM	8/8/2018	DXOI	1	Added language rescinding NGAM 5100.1, “NGA Acquisition Regulation Implementation (NARI) Manual”
SUB	8/24/2018	OCSP	17-18	Revises <i>section 5X01.602-3-90 Procedures for ratification of unauthorized commitments</i> in accordance with SPE approved NARI Change Notice (NCN) 18-02. The changes clarify the approval authorities and processing procedures in NGA.
ADM	8/24/2018	OCSP	88	Revises <i>section 5X39.101-90 Approval of IT purchases, paragraph B</i> , to remove reference to a pre-approved hardware list and update to reflect the NGA requirement for submitting all IT hardware purchases through the ITEMS Change Request (CRQ) process in Remedy.
ADM	8/24/2018	OCSP	90	Adds subpart 5X239.73 - <i>Requirements for Information Relating to Supply Chain Risk</i> providing a cross reference to the Intelligence Community Contracting Guide (ICCG) for information on IC enhanced procurement authority when procuring IT products for national security systems.
ADM	11/28/2018	OCSP	18	Revises <i>section 5X01.603-90 NGA Contracting Officer Warrant Program</i> , at subsection 5X01.603-1-90 <i>General, paragraph (c)</i> to remove the requirement to complete the GRT 201 course.

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ADM	11/28/2018	OCSP	41-42	Revises subpart <i>5X07.5 Inherently Governmental Functions</i> at <i>5X207.503 Policy, paragraph (1) (S-90) and paragraph (2) (S-91)</i> to clarify the requirement for PMs/requiring activities or their representative to complete their portion of a Workforce Mix Worksheet.
SUB	11/28/2018	OCSP	69, 113	Revises subpart <i>5X19.7 - The Small Business Subcontracting Program</i> ; deletes <i>5X19.708-90 Contract Clause (Intelligence Community Electronic Subcontracting Reporting System (IC eSRS))</i> ; and deletes local clause <i>5X52.219-9001 Intelligence Community Electronic Subcontracting Reporting System (IC eSRS)</i> in accordance with SPE approved NARI Change Notice (NCN) 18-03.
SUB	11/28/2018	OCSP	128-129	Revises local clause <i>5X52.242-9002 - Government Shutdown, Furlough of government personnel and Closure of NGA Facilities</i> in accordance with SPE approved NARI Change Notice (NCN) 18-04. The revisions make date of the clause to Nov 2018 and paragraph (a) of the clause to update guidance provided to contractors.
ADM	2/14/2019	OCSP	1	NGA Corporate Policy Office issued Administrative Update 19 to make a corporate administrative change and issued OCS Administrative Update of 11/28/2018 as Administrative Update 19. Therefore, this update is issued as Administrative Update 20 dated 14 February

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				2014 in order to maintain consistent numbering with NGA Corporate Policy.
ADM	2/14/2019	OCSP	4	Updates multiple references at Enclosure 1, <i>References</i> to ensure most recent version is cited.
ADM	2/14/2019	OCSP	4, 32	Revises Enclosure 1, <i>References</i> and subsection <i>5X204.7301-90 NGA Authority to Approve Exports of Defense Articles, Defense Services and Technical Data</i> ; adding updated NGA references on Export Controls and Accommodation Procurements.
ADM	2/14/2019	OCSP	19-20	Revises subsection <i>5X01.603-2-90 Selection, paragraph (b) Examination and paragraph (d) The OCS Warrant Administrative Officer</i> to clarify examination and administrative officer responsibilities in OCS.
ADM	3/21/2019	OCSP	18-22	Revises section <i>5X01.603-90 NGA Contracting Officer Warrant Program</i> and subsections <i>5X01.603-1-90 through 5X01.603-4-90</i> to revise content IAW the new OCS Standard Operating Procedure (SOP) titled "NGA Contracting Officer/Grants and Agreements Officer Warrant Program."
ADM	3/21/2019	OCSP	35-36	Revises the table at section <i>5X06.304 Approval of Justification</i> to clarify the responsibilities for Programmatic Certification of Facts within the table.
ADM	3/21/2019	OCSP	136	Revises the <i>Glossary</i> to update and add content.
ADM	5/16/2019	OCSP	57	Revises section <i>5X216.504(c)(1)(ii)(D) Limitation on single award</i>

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				<i>contracts</i> by deleting and reserving (i)(S-90) and (ii)(S-90) due to DFARS change contained in DPN 20190401.
ADM	5/16/2019	OCSP	80	Revises <i>subsection 5X34.201-90 Policy</i> to read <i>5X234.201-90</i> and updates the location of the Earned Value Management System (EVMS) Decision Matrix on the NGA CAE website.
SUB	7/15/2019	OCSP	53	Adds section <i>5X215.371-5 Waiver</i> , in accordance with HCA approved NCN 19-01, subject: HCA Delegation of Waiver authority to OCS Division Chief level.
ADM	7/15/2019	OCSP	62	Adds section <i>5X17.703 Policy, paragraph (e) Waiver</i> . Documents the Director, Contract Policy, Office of the Director, Defense Pricing and Contracting re-delegated authority to approve the written determination required at FAR 17.703(e) to the NGA Senior Procurement Executive.
SUB	9/6/2019	OCSP	5, 13, 20-21	Revises content at <i>Enclosure 2 Responsibilities</i> , section <i>5X01.601 General</i> , and section <i>5X02.101 Definitions</i> to reflect the D/OCS re-delegation of HCA responsibilities to the OCS Group Chief, Information Technology and Mission Support (IT & MS) and the OCS Group Chief, Acquisition Management and Corporate Investment for all contract actions arising within their respective Groups. In addition, the Deputy Director, OCS (DD/OCS) is re-delegated HCA authority in the absence of both OCS Group Chiefs.

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SUB	9/6/2019	OCSP	5,13	Revises content at <i>Enclosure 2 Responsibilities</i> and section <i>5X01.601 General</i> to reflect the D/OCS re-delegation of Acting SPE responsibilities to the DD/OCS. The DD/OCS is delegated responsibilities to serve as the Acting SPE in the absence of the SPE.
ADM	9/6/2019	OCSP	53	Removes and reserves section <i>5X15.307 Proposal revisions after receipt of final revisions</i> , deleting the obsolete requirement for a CO to gain written approval if it's necessary to obtain proposal revisions after the receipt of final proposal revisions.
ADM	9/6/2019	OCSP	57	Removes and reserves subsection <i>5X216.405-2(b)(3) Provisional award-fee payments are no longer authorized</i> and section <i>5X216.406 Contract</i> clauses, deleting obsolete references to Provisional award-fee payments and DFARS clause 252.216-7005, Award Fee.
SUB	12/18/2019	OCSP	13-14, 28, and 34	In accordance with changes made in NARI Change Notice (NCN) 20-01 signed by the SPE; revises legal review dollar thresholds at <i>5X01.601-90 Legal review</i> , adds <i>5X04.803 (a)(24) Contents of contract files</i> , and revises one legal-review related threshold at <i>5X06.304 Approval of Justification</i> .
ADM	12/18/2019	OCSP	76, 102, and 115-116	Revises section <i>5X32.905(e)(S-90) Payment Documentation and Process</i> and associated clause (<i>ALTERNATE I</i>) <i>5X52.232-9000, Submission of Invoice DFAS (DEC 2019)</i> in order to

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				update DFAS related information for this clause.
ADM	12/18/2019	OCSP	31	Revises section 5X05.201 <i>General</i> to clarify requests for document posting on the IC-ARC website must be coordinated with the OCS Policy and Acquisition Resources Division (OCSP) representative at the National Reconnaissance Office (NRO) Acquisition Center of Excellence (ACE).
ADM	12/18/2019	OCSP	61	Revises section 5X17.502-90 <i>Funding documents and DD Form 448 MIPRs</i> by clarifying location of the FM MIPR Desk guide reference.
ADM	7/1/2021	OSCP	14	Revises section 5X01.601-90 Legal review to state that legal review is mandatory prior to debriefing offerors following a source selection.
ADM	7/1/2021	OSCP/ PMR	20	Adds section 5X01.603-3(d) Special Circumstances Temporary Warrant Increase allowing the Senior Procurement Executive to temporarily increase a warrant on a case by case basis.
ADM	7/1/2021	OCSP	32	Revises 5X205.303 Announcement of contract awards which increases the Contractual actions identified in accordance with DFARS 205.303, that require public announcement and congressional notification from \$7 million to 7.5 million including modifications, excluding unexercised options.
ADM	7/1/2021	OCSP	37, 38	5X07.105 Contents of written acquisition plans adds two additional bullets to the table: 5X07.192 Authority to acquire Government Owned or Leased Motor Vehicle (GMV) and

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				5X07.193 Approval for NGA Real Property and Space Management.
ADM	7/1/2021	OCSP	41	Revises Subpart 5X09.5 - Organizational and Consultant Conflicts of Interest 5X09.503 Waiver to reflect the administrative decision to delegate the authority to waive organizational conflicts of interest through the Group Chiefs to D/OCS for final approval. Appeals language was deleted.
ADM	7/1/2021	OCSP	51	Updates the 5X15.604 Agency Points of Contact for unsolicited proposals to reflect the administrative change to the address.
ADM	7/1/2021	OCSP	55	Revises 5X216.601 Time and Materials Contracts to add that the approval authority in NGA for the determination and findings required at DFARS 216.601(d)(i)(A)(2)(i) for time and material contracts exceeding three years base plus any options is the head of the contracting activity. This authority may not be delegated.
ADM	7/1/2021	OCSP	98	Revises 5X52.209-9001, NGA OCI Provision for Known Developmental work to include language disqualifying certain developmental contractors from follow on work.
ADM	7/17/2021	OCSP/ PMR	44	Revises 5X12.101 Acquisitions of Commercial Items – General. Policy. Obtain approval one level above the CO.
ADM	8/4/2021	OCSP	42	Revises 5X09.506-90 NGA organizational conflict of interest handling procedures to reflect the administrative decision to delegate the

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				authority for approval/signature from the SPE to the cognizant OCS Group Chief. SPE still handles appeals.
ADM	8/24/2021	OCSP	63	Revises 5X19.708-91 Contract Clause (Small Business Goals) to reflect an increase in the dollar value from \$700K to \$750K.
ADM	8/24/2021	OCSP	120	Revises 5X252.242-9001, Observance of Legal Holidays, Delayed Arrival or Early Release of Federal Employees adds Juneteenth as a holiday.
ADM	8/27/2021	OCSP	53	Revises 5X216.504(c)(1)(ii)(D) Limitation on single award contracts. (S-91) is changed from \$112M to \$100M to be consistent with the FAR.
ADM	3/16/2023	OCSP	19, 20, 36, 38, and 89	Five minor editorial changes were made: (1) 5X01.403-90 (2nd para) to remove the comma and add the word and between "prepare" and "Contracting". (2) 5X01.601 General (para a.) to add "the" to HCA spelled out. (3) 5X204.7301-90 (para C.) to remove the space after the hyphen in Office of General "Counsel-Mission". (4) 5X205.303 (a)S-90 (para 1.) to change the Office acronym from PAO to OCCN and add an office acronym OCCL. (5) 5X42.1301-91 (para C.) to change the word "a" to "an" before "NGA facility"
ADM	3/16/2023	OCSP	2 and 12 thru 17	Table of Contents.
ADM	3/16/2023	OCSP	9 and 10	Revises Enclosure 1 - References. Any of these references cited in the NARI content have also been updated.

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ADM	3/16/2023	OCSP	11	Revises Enclosure 2 - Responsibilities. Replaces in paragraph 3, Senior Procurement Executive (SPE) and Head of the Contracting Activity with Director, Office of Contract Services. Changes paragraph 4 to a subparagraph of 3 and removes Director, Office of Contract Services.
ADM	3/16/2023	OCSP	18	Revises 5X01.304-90, Agency control and compliance procedures, to replace PRISM with GEO-F and to provide instruction for GEO-F supporting documentation.
ADM	3/16/2023	OCSP	19	Changes 3 references to DPAP to DPC in 5X201.304(4)-90, NGA Plan for Control of Clauses. One exception is under the Acronyms where DPC is introduced stating it was formerly DPAP.
ADM	3/16/2023	OCSP	23	Revises 5X201.602-2-90, Contracting Officer's Representative (COR), to remove incorrect language at B. (3) and (4), All information pertaining to the individual held by OCSP is destroyed.
ADM	3/16/2023	OCSP	24	Revises 5X201.602-2-91, COR local clause, appointment memorandum and delegated duties statement to add the ECF Implementation.
ADM	3/16/2023	OSCP	25 and Forms 134	Revises 5X01.603-90, NGA Contracting Officer Warrant Program, and 5X01.603-1, General, to reflect the most recent title of the SOP.
ADM	3/16/2023	OCSP	26	Revises 5X01.603-3, Appointment, to revise subparagraph (c) and to add Branch Chiefs (PB) and

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				"exceptions" language. In addition, subparagraph (d) Special Circumstances - Temporary Warrant Increase, has been removed in its entirety.
ADM	3/16/2023	OCSP	28	Revises 5X03.101-3, Agency Regulations, to correct the reference cited.
ADM	3/16/2023	OCSP	31	Revises 5X04.402-90, Information and information systems security and technology control, to update the reference.
ADM	3/16/2023	OCSP	32	Revises 5X04.402-92, Responsibilities of contracting officer's representatives, to clean up the formatting.
CONF	3/16/2023	OCSP	33	Revises 5X04.6, Contract Reporting, to reflect the most recent Class Deviation.
ADM	3/16/2023	OCSP	33	Revises 5X04.802-90, Contract Files, to add ECF language and reformat.
ADM	3/16/2023	OCSP	34	Revises 5X04.803, Contents of contract files, to add "along with adjudication of comments" and the word Template.
ADM	3/16/2023	OCSP	34	Revises 5X04.803-90, Contract file indexes, to increase the dollar value to \$10,000.
ADM	3/16/2023	OCSP	34	Revises 5X04.803-92, Organization and marking of file folders, to include WCF and ECF language.
ADM	3/16/2023	OCSP	35	Revises 5X04.804-90, Closeout of contract files. In order to be eligible for close out, a contract must have an unliquidated obligation value of zero and all Government Furnished Property must have been returned to the Government. All contracts must be closed out in ECF.

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				Also includes ECF folder reference.
SUB	3/16/2023	OCSP	36	Revises 5X204.7301-90, NGA Authority to Approve Exports of Defense Articles, Defense Services and Technical Data to include a reference to NGA Instruction 2060.1, Export Control Program, Draft Ver 3, dated 3/1/22. Also includes ECF Folder reference.
ADM	3/16/2023	OCSP	39	Revises 5X06.304, Approval of Justification, to reflect higher dollar thresholds.
ADM	3/16/2023	OCSP	41	Revises 5X06.502, Duties and responsibilities, to update the dollar thresholds.
ADM	3/16/2023	OCSP	44	Revises 5X07.105, Contents of written acquisition plans, to remove the duplicate sentence and to replace Best Procurement Approach Determination with Interagency Business Decision.
ADM	3/16/2023	OCSP	46	Revises 5X209.105-2-70, Inclusion of determination of contractor fault in Federal Awardee Performance and Integrity Information System (FAPIIS), to reflect the latest Class Deviation.
ADM	3/16/2023	OCSP	51	Revises 5X12.101, Policy, to replace \$1M with Simplified Acquisition Threshold and to change commercial item to commercial product/service.
ADM	3/16/2023	OCSP	59	Revises 5X16.207-3, Limitations, to reflect the correct subparagraph.
ADM	3/16/2023	OCSP	59	Revises 5X216.401, General; 5X216.401-71, Objective criteria; and 5X216.405-2, Cost-plus award fee (CPAF) contracts, to change any reference to Manual to Instruction and delete the

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				reference. Deletes paragraphs S-91 and S-92 because they are from the DFARS PGI verbatim.
ADM	3/16/2023	OCSP	62	Revises 5X17.204(e)(S-90), Options, Contracts, to add the following: Written justifications that exceed a 10-year limitation shall be sent to the head of the agency for approval.
ADM	3/16/2023	OCSP	68	Revises 5X19.201, General policy, to cite the link to the mailbox for submission of 2579s.
SUB	3/16/2023	OCSP	69	Revises 5X19.7, The Small Business Subcontracting Program, to remove the Class Deviation language and replace it with the IC eSRS language in the OSBP and OCS SOP. Also included is where the initial and quarterly reports are to be filed in ECF and a Reference to the IC eSRS SOP.
SUB	3/16/2023	OCSP	69	Revises 5X19.705-4-90, Reviewing the subcontracting plan, to change the name of the checklist and to change its location from OSBP website to the OCS Webpage.
ADM	3/16/2023	OCSP	74	Revises 5X31.205-6, Compensation for Personal Services, to delete it and mark it Reserved. It was also deleted as a reference in 5X16.102.
ADM	3/16/2023	OCSP	80	Revises 5X33.290, Reporting of claims and disputes, to add SPE and OGC along with their email addresses. OGC confirmed \$5K is a valid threshold.
ADM	3/16/2023	OCSP	81	Revises 5X35.003-90, Other transactions, to update the date of the guide referenced.

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ADM	3/16/2023	OCSP	83	Revises 5X37.103, Contracting Officer Responsibility to correct the FAR Part cited.
ADM	3/16/2023	OCSP	84	Revises 5X237.170-2, Approval requirements, to increase the thresholds.
ADM	3/16/2023	OCSP	90	Revises 5X42.1502-90, Contractor Performance Information, Policy, to cite the current Waiver.
ADM	3/16/2023	OCSP	95	Revises 5X45.101, Definitions, to change the name of the system from "NGA Enterprise instance of Remedy" to "NGA Accountable Property System of Record" and what it contains.
ADM	3/16/2023	OCSP	95	Revises 5X45.102-90, Providing Property to Contractors, to add FAR 52.245-1.
ADM	3/16/2023	OCSP	95	Revises 5X45.102-91, Changes to Government Property on a Contract, to change PIPC to GFP and TAM System to APSR.
ADM	3/16/2023	OCSP	96	Revises 5X46.105, Quality Assurance, Responsibilities, to correct a reference.
ADM	3/16/2023	OCSP	99	Revises 5X52.100-91, Listing of NGA local provisions and clauses, to reflect the title change of the clause and the date the change was made.
ADM	3/16/2023	OCSP	102	Revises 5X252.204-7000-90, Public Release of Information, to clarify subparagraph (b).
SUB	3/16/2023	OCSP	103	Revises 5X252.204-9000, Export Authorization Approval for Certain Accommodation Procurement Contract Activities, to include a reference to NGA Instruction 2060.1, Export Control Program, Draft Ver 3, dated

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				3/1/22. Also adds the ECF Folder to file it in.
ADM	3/16/2023	OCSP	103	Revises 5X52.09.507-9000, Organizational Conflict of Interest, to reference FAR Part 9, and delete the waiver language because it is repeating what is in FAR Part 9.
ADM	3/16/2023	OCSP	129	Revises 5X252.242-9000, Approving payments (Cost Reimbursement, Time and Materials, and Labor Hour Contracts), to make a correction to COR spelled out and to be consistent. Also, to revise the date the change was made to the clause.
ADM	3/16/2023	OCSP	129	Revises 5X52.45.102-9000, Management of NGA Government Property, to change the word template to clause and to change the system name from "NGA Enterprise instance of Remedy" to "NGA Enterprise IT Management System".
SUB	3/16/2023	OCSP	131	Revises 5X52.246-9000, Contractor Compliance with all applicable National Geospatial-Intelligence Agency (NGA) and U.S. Government installation regulations, directives, instructions, rules, policies and procedures, to clean it up and add Badging and NGA IG language.
ADM	3/16/2023	OCSP	135 and 136	Adds new acronyms to the Acronym List as part of the Glossary; corrects the alphabetical order on a couple; and capitalizes some of the words in an existing acronym.

Change Type:
Administrative (ADM)

Conforming (CONF)
Substantive (SUB)
Reissuance (REI)
Rescission (RESC)